2024 CALIFORNIA JUSTICE GAP STUDY

The State Bar of California



June 2025

EXECUTIVE SUMMARY

In 2019, the State Bar published the first-ever comprehensive study of the California justice gap, examining the gap between Californians' civil legal needs and the resources available to meet those needs. The study revealed that the justice gap was widespread, pervasive, and multifaceted. The 2024 California Justice Gap Study builds on that work by assessing the current justice gap for Californians across all income levels and the availability of attorneys and legal services to meet legal needs. The report concludes with recommendations.



CALIFORNIANS' CIVIL LEGAL NEEDS ARE GROWING, YET FEW SEEK AND RECEIVE LEGAL HELP.

In 2024, the State Bar partnered with NORC at the University of Chicago to survey over 6,000 Californians to document the current prevalence of civil legal needs and assess how well those needs are met. Key findings from the survey and comparisons with the 2019 study include the following:

In 2019, 55 percent of California households experienced at least one civil legal problem in the previous 12 months. In the past year seven in 10 California households experienced at least one civil legal problem in the past year, with an average of six problems per household.

- Civil legal problems are widespread across all income groups in California, with little variation in prevalence—between 72 and 75 percent of households in every income group experienced at least one civil legal issue in the past year.

- In 2019, Californians sought legal help for just 32 percent of their civil legal problems. Results from the 2024 survey suggest that this share has declined, with Californians currently seeking legal help for just 18 percent of their problems overall and 29 percent of problems that substantially impact them. Regardless of income level, most Californians do not seek legal help for their civil legal problems, even those that substantially impact them.

- When Californians speak to lawyers, they are told they have a valid case and should pursue legal action for one in three of their problems; for one in five, they are told their case is valid but not financially worthwhile for the lawyer to pursue.

The justice gap is the difference between Californians' civil legal needs (problems that could be addressed through civil legal action) and the legal help people receive to address those needs. For this study, the justice gap is defined as not receiving any or enough legal assistance to address a civil legal problem.

Californians do not receive any or enough legal help for 85 percent of their civil legal problems, the same as reported in 2019. Californians do not receive any or enough legal help for 77 percent of problems that substantially impact their lives.

- The justice gap is found across all income groups in California, with little variation in prevalence—between 84 and 86 percent of civil legal problems for every income group experiencing a justice gap.
- Despite the prevalence of consumer and health care-related problems faced by California households, Californians seek legal help for just one in 10 of these problems. In instances where they seek out help, Californians are more likely to do so for problems related to immigration, personal injury, and family and safety.

Additional findings from the NORC survey show that the persistent and pervasive gap in seeking and receiving legal help is driven by a knowledge gap, perceptions of the civil legal system, and low confidence in accessing affordable legal help. Finally, the report highlights the distinct legal challenges faced by immigrants, criminal defendants, and small business owners, shedding light on critical—and often overlooked—dimensions of California's justice gap.



THE SUPPLY OF ATTORNEYS AND LEGAL SERVICES AVAILABLE TO MEET CALIFORNIANS' CIVIL LEGAL NEEDS REMAINS CONSTRAINED BY MANY FACTORS.

Meeting California's vast civil legal needs requires a sufficient number of attorneys and a legal services infrastructure that is accessible, affordable, and equitably distributed. This section of the report explores key elements of California's legal services landscape.

California's legal market mostly serves the organizational market.

The PeopleLaw legal market refers to services provided to individuals and households—everyday people seeking help with personal legal issues such as family law, housing, employment, immigration, debt, and consumer protection. As such, the PeopleLaw market is central to addressing the justice gap. A 2018 study commissioned by the State Bar showed that the national legal market shifted from predominantly serving the PeopleLaw sector in the early 1970s to primarily serving the organizational market in 2017. In 2024, the State Bar commissioned an update to this study, focusing on understanding California's $57.8 billion legal market, the largest legal economy in the nation. Key findings are as follows:

- Just 25 percent of California's legal market serves individual clients.
- The number of in-house lawyers in California grew by 45 percent from 2016 to 2023, compared to 20 percent for law firms and 14 percent for government lawyers during the same period.
- The significant growth in California attorneys working as in-house counsel may be partly due to compensation. In 2023, in-house attorneys earned an average salary of $254,544, compared to $215,890 for those in law firms—a gap of $38,654. This salary gap has more than doubled since 2016, when it was $16,590.

As fewer California lawyers practice in the PeopleLaw sector, more people go without legal help, leaving millions of Californians to navigate complex legal systems alone.

Shifts in California's overall active attorney population and the persistent scarcity of attorneys in rural areas of the state have led to more attorney deserts.

Attorney deserts are areas with fewer than one active attorney per 1,000 California residents. Identifying counties and rural areas within counties that are attorney deserts or at risk of becoming attorney deserts is critical for assessing gaps in legal representation and informing policy efforts to address attorney shortages in underserved communities. In the last 10 years, several shifts have occurred in California's active attorney workforce, raising concerns about access to legal services across the state.

- The number of active attorneys residing in California grew by just 3 percent, falling short of the state's 4 percent resident growth.
- The share of active California attorneys living in other states has increased from 11 to 13 percent.
- Three-quarters of California counties have experienced a decline in the number of active attorneys residing within them, and just over half of all counties experienced a decrease in active attorneys while simultaneously experiencing an increase in their resident population.
- The share of active attorneys residing in rural areas has remained small; just 3 percent of California's active attorneys live in rural areas, compared to 12 percent of California's residents.

The combined effect of these trends—shifts in the overall active attorney population and the persistent scarcity of attorneys in rural regions—has led to increasing and widespread attorney deserts.

- The number of counties that are attorney deserts has increased from 11 to 16 over the last 10 years.
- Most California counties are attorney deserts or at risk of becoming one.
- Even within counties, disparities persist between urban and rural communities, exacerbating challenges in accessing legal services.
- Ten counties do not have enough attorneys in both rural and urban areas.

Over half of California attorneys did not provide pro bono services in 2022.

Pro bono legal services help bridge the justice gap by mobilizing private attorneys to provide free assistance to those who cannot afford representation. Since 1989, the State Bar has encouraged attorneys to contribute at least 50 hours of pro bono service annually. This section of the 2024 California Justice Gap Study describes the State Bar's pro bono initiatives—including the Pro Bono Practice Program and related grant funding—and presents findings from the State Bar's analysis of over 3,000 California attorney responses to an ABA survey on pro bono. Key findings include the following:

- Three-quarters of California attorneys have provided pro bono services at some point in their career.
- Over half provided no pro bono services in 2022, unchanged from 2016.
- Nearly one in four (23 percent) met the State Bar's goal of providing 50 or more hours of pro bono service in 2022, up from 20 percent in 2016.
- Attorneys who offered pro bono services in 2022 averaged 116 hours, a 47 percent increase from 79 hours in 2016. Based on these findings, an estimated 88,000 active California attorneys provided pro bono services in 2022, contributing nearly 10 million hours—the equivalent of over 4,700 full-time attorneys.
- Attorneys who haven't provided pro bono services cited time constraints, lack of resources, malpractice concerns, and doubts about feasibility—especially among newer attorneys. Mentorship, malpractice coverage, and firm support were reported as key motivators.

- The most common ways that employers supported pro bono work were allowing pro bono work during business hours and providing internal resources. Nearly half of non-participating attorneys said their employers don't permit pro bono during work hours.

Addressing barriers to providing pro bono service could expand pro bono participation and enhance access to justice, advancing the State Bar's goal of meeting the legal needs of underserved Californians.

State Bar funding for legal aid organizations increased by more than 62 percent between 2019 and 2023, yet Californians who qualify for free legal help do not receive any or enough legal help for most of their civil legal problems.

Legal aid organizations are California's primary providers of free civil legal services. In 2024, the State Bar—through its Legal Services Trust Fund Commission—awarded over $180 million in statutory and discretionary grants to more than 100 organizations, making it the state's largest funder. These services support Californians living at or below 200 percent of the federal poverty level, including those receiving Supplemental Security Income and certain individuals with developmental disabilities. The State Bar analyzed all funding sources—government, foundations, and individual donors—that support these providers and staffing. Key findings include the following:

- State Bar funding for legal aid grew sharply over the past decade—from $30.4 million in 2014 to over $180 million in 2024.
- Discretionary grants saw the steepest growth, rising from $1.5 million in 2014 to $53.7 million in 2024.
- State Bar grants made up 16 percent of the total funding for legal aid organizations from all sources in 2019, rising to 18 percent by 2023.
- Between 2019 and 2023, State Bar funding increased by more than 62 percent. State Bar grantees added 388 attorneys to their staff, with an average of three more attorneys per organization. These additions represent a 24 percent increase in attorney staffing. With these staffing increases, the ratio of legal aid attorneys to indigent Californians has meaningfully improved in the past five years (one legal aid attorney per 5,338 indigent Californians in 2023 versus one legal aid attorney per 7,466 indigent Californians in 2019).
- More attorneys provided pro bono through legal aid organizations in 2023 compared with 2019, but total volunteer hours remain below pre-pandemic levels, limiting capacity.
- Between 2019 and 2023, legal aid organizations achieved 656,365 legal outcomes, including obtaining court orders, negotiating settlements, and winning monetary awards. During that time, they also served 764,861 people via self-help clinics and handled 571,269 hotline calls (65,089 in 2019 versus 166,810 in 2023, a 156 percent increase).
- Legal aid organizations recovered nearly $544 million for clients in 2024.
- High interest rates are expected to drive a record $252 million distribution from Interest on Lawyer Trust Account funds in 2025.

Legal aid organizations, supported by funding from the State Bar and other sources, are vital in expanding access to justice for Californians living at or below 200 percent of the federal poverty level. (In 2022, income eligibility increased from 125 percent of the federal poverty level to 200 percent. This change made approximately 4.5 million more Californians eligible for free legal services, an almost 73 percent increase.) Although these organizations provide many services and achieve many positive outcomes for their clients, the 2024 NORC survey results indicate that nearly 80 percent of California's lowest-income group (those who qualify for legal aid) do not receive any or enough legal help for civil legal problems that substantially impact them.

The 2024 California Justice Gap Study also contains research on emerging and ongoing strategies to expand the supply of legal help that promotes access to justice, including the Legal Aid Leaders Fellowship, legal incubators, and Lawyer Referral Services.

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INTRODUCTION

A core component of the State Bar of California's mission is a commitment to protect the public by enhancing access to and inclusion in the legal system. Access to legal help is a fundamental principle of the justice system. However, unlike in criminal proceedings, there is no right to an attorney in most civil matters, including those involving housing, employment, divorce, child custody, and domestic violence. Many Californians across all income levels navigate high-stakes civil legal issues without representation or adequate support. The consequences of going to court without legal representation can be severe and long-lasting, especially when critical needs such as housing, health care, employment, and family stability are at stake. This gap between legal needs and the ability to access meaningful assistance is known as the civil justice gap, and it undermines the justice system's fairness.



In 2019, the State Bar conducted the first-ever comprehensive study of California's justice gap to measure residents' civil legal needs and the gap between those needs and the resources available to meet those needs. The 2019 California Justice Gap Study had several components, including a survey conducted in partnership with NORC at the University of Chicago. The survey found that over half of California households experienced a civil legal problem in the previous 12 months. However, Californians sought legal help for just 32 percent of their civil legal problems and received no or inadequate help for 85 percent. Moreover, the justice gap was observed across all income levels.

The study concluded that California's justice gap was widespread, pervasive, and multifaceted, characterized by two dimensions: a gap in knowledge about how to access legal help and a gap in service—namely that California's legal services delivery system cannot meet the legal needs of Californians. The final report contained a set of policy recommendations, several of which were adopted in subsequent years, such as the following:

- On January 1, 2022, the Business and Professions Code was amended to incorporate a new, higher income eligibility standard (from 125 to 200 percent of the federal poverty level) to qualify for free civil legal services.
- In 2023, the Legal Services Trust Fund Commission (LSTFC) began distributing the Legal Aid Leaders Fellowship grant to support legal aid organizations to pay law students a living wage during their summer internships.
- Driven by higher interest rates in recent years, increases to Interest on Lawyers' Trust Account (IOLTA) income in 2023 and 2024—which the State Bar collected to distribute as legal aid grants in 2024 and 2025—enabled the LSTFC to offer multiyear budgeting to support long-term planning and provide a consistent funding base for grantees.
- The LSTFC's discretionary grant selection criteria now incorporate a preference for projects that serve clients in underserved areas of the state, such as rural areas.
- The 2025 State Bar fee bill (signed in 2024) allows for the establishment of a partnership program between State Bar-certified Lawyer Referral Services (LRS) and nonprofit organizations to expand services to underserved Californians.

The 2024 California Justice Gap Study



The State Bar's 2022-2025 Strategic Plan prioritizes expanding access to "high-quality, affordable, and culturally competent legal advice and services" for all California residents. As part of this commitment, the State Bar conducted a follow-up to its 2019 study on civil legal needs to assess what, if anything, has changed in the last five years.

The 2024 California Justice Gap Study explores the demand for civil legal assistance and the supply available to meet those demands. The following research was conducted to illuminate the demand for civil legal help:

- A survey of over 6,000 Californians, refined with stakeholder feedback to the 2019 study, was administered in partnership with NORC. The survey assessed civil legal needs and the extent to which they are met across all income groups—not just the lowest-income households. Barriers to legal help can affect Californians at every income level, and effective policy must be grounded in a comprehensive view of the statewide landscape.
- In-depth research was conducted into the distinct civil legal needs of immigrants, individuals involved in the criminal justice system, and California's small business owners.[1]

The following research components were undertaken to assess the supply of legal assistance available to meet Californians' civil legal needs:

- A commissioned study of California's $57.8 billion legal market that focuses on understanding the PeopleLaw legal market (legal services provided to individuals and households seeking help with personal legal issues).
- An analysis of how shifts in California's active attorney population and persistent attorney scarcity in some areas of the state, particularly rural areas, have led to increasing and widespread attorney deserts.
- An analysis of over 3,000 California attorneys' responses to the 2023 American Bar Association's pro bono survey that sheds light on the share of California attorneys that engage in pro bono work, how much time they contribute, and how these metrics have changed. Results also illuminate what factors drive or limit pro bono participation.
- An overview of the funding landscape for California legal aid organizations that receive grants to provide services to the state's lowest-income residents.
- An exploration of targeted strategies intended to expand the pool of attorneys supporting access to justice.

The research revealed that California's justice gap remains persistent and widespread, with most civil legal problems continuing to go unaddressed for most Californians with civil legal needs, regardless of income. The report concludes with recommendations that translate the study's research findings into actionable strategies to expand access to civil legal help.

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1 In 2022, California Assembly Bill 2958 specifically authorized continued study of the use of technology to provide "immigration legal services, [services to] low-income individuals, and small businesses." (See Business and Professions Code section 6034.1(c).) For the 2024 California Justice Gap Study, the State Bar sought to examine the unique civil legal needs of American Indian/Alaska Native individuals living on tribal lands in California. The state is home to more people of American Indian/Alaska Native heritage than any other, as well as approximately 110 federally recognized tribes—each a sovereign nation with its own laws and governance, often operating alongside state and federal systems. With 27 tribal courts statewide, including three inter-tribal courts, civil legal matters in tribal communities are shaped by overlapping jurisdictions and legal complexities. The State Bar was unable to obtain data on the civil legal needs of people who identify as American Indian/Alaska Native living on tribal land. However, the State Bar remains committed to exploring ways to include tribal communities in future justice gap research.



MEASURING CALIFORNIANS' UNMET CIVIL LEGAL NEEDS

In 2019, the State Bar of California partnered with NORC at the University of Chicago to survey Californians about their civil legal needs. The final report, titled The California Justice Gap: Measuring the Unmet Civil Legal Needs of Californians (hereafter 2019 NORC report), found that 55 percent of households experienced at least one civil legal problem in the past year. Moreover, Californians sought legal help for fewer than one in three problems and received either no or inadequate legal help for 85 percent of their civil legal problems. In 2024, the State Bar again partnered with NORC to assess the current landscape by surveying over 6,000 Californians. The narrative below is an overview of NORC's final report, The 2024 California Justice Gap: Understanding California's Unmet Civil Legal Needs (hereafter 2024 NORC report), which explored the prevalence of civil legal needs and the extent to which legal needs are met across California's income distribution.

KEY FINDINGS

Overall, California's justice gap remains deep and persistent. Key findings from the 2024 NORC report and the State Bar's analysis that compares findings from the 2019 survey with the 2024 survey are as follows:



Prevalence of Civil Legal Needs

- Californian's civil legal needs appear to be growing: In 2019, just over half of California households experienced at least one civil legal problem in the previous 12 months.
- In the past year, seven in 10 California households experienced at least one civil legal problem, with an average of six problems per household.
- Civil legal problems are widespread across all income groups in California, with little variation in prevalence—between 72 and 75 percent of households in every income group experienced at least one civil legal issue in the past year.
- One in four households experienced a civil legal problem that substantially impacted their lives, including financial, mental, physical, and relational impacts. Civil legal problems took a greater toll on California's lowest-income households.
- The two most common civil legal problems among all income groups were related to consumer issues and health care.



Seeking Legal Help

- The 2019 NORC survey found that Californians sought legal help for 32 percent of their civil legal problems. Results from the 2024 survey suggest that this share has declined, with Californians currently seeking legal help for just 18 percent of their problems overall and just 29 percent of problems that substantially impact them.
- Most Californians, regardless of income level, do not seek legal help for their civil legal problems, even for those that substantially impact them.
- Overall, Californians seek help from a lawyer for only three in 10 civil legal problems that substantially impact them, with lowest-income Californians seeking legal help from lawyers for just 23 percent of such problems.
- When Californians speak to lawyers, they are told they have a valid case and should pursue legal action for one in three of their problems-and for one in five, they are told their case is valid but not financially worthwhile for the lawyer to pursue.



The Justice Gap

- Californians do not receive any or enough legal help for 85 percent of their civil legal problems overall, the same as what was reported in 2019, and Californians do not receive any or enough legal help for 77 percent of problems that substantially impact their lives.
- The justice gap is found across all income groups in California, with little variation in prevalence—with between 84 and 86 percent of civil legal problems for every income group experiencing a justice gap.

- Despite the prevalence of consumer and heath care-related problems faced by California households, Californians seek legal help for just one in 10 of these problems. In instances where they seek out help, Californians are more likely to do so for problems related to immigration, personal injury, and family and safety.



Barriers to Seeking and Receiving Legal Help

- Californians believe a lawyer or legal professional could resolve just one in three of their civil legal problems.
- Lower-income Californians are more likely to have uncertain or negative perceptions of the civil legal system than middle- and high-income Californians.
- Just six in 10 Californians are confident they could find an affordable lawyer or legal professional, with lowest-income Californians the least confident.

MEASURING CALIFORNIANS' UNMET CIVIL LEGAL NEEDS

Between August 8 and October 7, 2024, NORC surveyed more than 6,000 California adults using the 2024 California Justice Gap Survey.[2] The survey instrument was largely based on a survey NORC developed for the Legal Services Corporation's 2022 Justice Gap Study.[3] The survey's objectives were as follows:

- Measure the prevalence of civil legal problems;
- Assess the extent to which Californians seek legal help;
- Learn what lawyers tell Californians about their civil legal problems;
- Assess the extent to which legal needs are met; and
- Identify barriers to seeking and receiving legal help.

The survey collected detailed information on civil legal needs experienced by the respondent and the respondents' household using NORC's probability-based AmeriSpeak® Panel, Ipsos's KnowledgePanel®, and Dynata's opt-in panel. While the 2024 survey shares many similarities with the 2019 survey, the State Bar initiated several notable enhancements:

Larger sample size. Over 6,000 Californians participated—approximately 2,000 more than in 2019—allowing for more robust statistical analysis and greater representation across all four income groups analyzed (see below for how income groups are defined).

Expanded language options. The 2024 survey was available in English, Spanish, Simplified Chinese, Traditional Chinese, Vietnamese, and Korean, compared to English and Spanish in 2019.

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2 See the 2024 NORC report's appendix for a detailed description of the survey's methodology, including survey panels, sampling plan, and data collection procedures. The appendix also describes a re-ask survey NORC conducted in early 2025 with 2,209 of the original respondents to correct a questionnaire error and gather data on three new consumer civil legal problems related to personal injury, contracts, and compromised personal information.

3 This study is similar to the approach the State Bar took in 2019. The 2019 California survey was based on a 2017 survey NORC developed for the Legal Services Corporation (LSC). The 2021 survey design on which the LSC 2022 report was based was significantly revised, so much so that the LSC cautions readers "against making direct comparisons of precise estimates although comparisons of general magnitude are fine." As will be shown in this report, the State Bar has compared findings from the 2024 NORC report with those of the 2019 study.

New questions reflecting stakeholder feedback to the 2019 survey. These include questions about what lawyers told respondents about their problem (including whether they had valid cases and should take legal action), how respondents prefer to receive legal help, respondents' willingness to pay for legal advice, and actions Californians take when full legal help is not obtained.

Additional civil legal problems. In response to stakeholder feedback, three new consumer civil legal problems were added—compromised personal information, contract disputes, and personal injury.

NORC's final report also includes reporting for 10 regions in California and eight subpopulations of interest: households with seniors aged 65 years or older, households with a veteran, individuals from rural areas, individuals with high housing costs, households with children under 18 years old, households with recent domestic violence survivors, households with people with disabilities, and Spanish-speaking individuals with limited English proficiency. Key findings for regions and subpopulations are reported in this summary as well.

Civil Legal Problems

For this study, "civil legal problems" are defined as problems that typically raise justiciable civil legal issues that could be addressed through civil legal action. The survey presented up to 86 problems to respondents and asked whether they or anyone in their household had experienced each one in the past 12 months.[4] In short, civil legal problems were not self-identified by respondents, but rather were tabulated by presenting respondents with lists of civil legal problems, organized by categories, and asking whether they or anyone in their household had experienced them. This method aligns with standard practice in the literature for measuring the prevalence of civil legal problems. While an in-depth interview with a legal expert might reveal that some reported problems are not actually justiciable given specific details surrounding individual problems, most are. For consistency with established research and ease of reporting, all problems are referred to as "civil legal problems" and are grouped into 11 categories for reporting purposes.

See the full list of 86 civil legal problems in Appendix 1.

Income Groups

While the 2019 study compared Californians at or below 125 percent of the federal poverty level (FPL) to those above that threshold, the 2024 study sampled four income groups to provide a more nuanced understanding of civil legal problems across income levels.[5] The four income categories used for sampling and reporting are shown in table 1.[6]

4 Results are based on respondents' reports of problems personally experienced and experienced by others in the household in the past year among 86 distinct problems. As noted above, NORC conducted a second-wave survey with 35 percent of original respondents to correct for a questionnaire error and capture information on three new consumer problems that were not included in the first survey. As a result, the prevalence of civil legal problems reported by NORC is a potential undercount, given that 65 percent of respondents were asked about up to 83 civil legal problems while 35 percent were asked about up to 86. The second-wave survey was limited to the AmeriSpeak sample to maximize response rate. See 2024 NORC report for more details.

5 The 2019 report NORC prepared for the State Bar compared these two income groups. A report published by the State Bar that summarized key findings from the 2019 NORC report contained an analysis that explored the justice gap by further disaggregating income groups above 125 FPL. At the time of the 2019 Justice Gap Study, the poverty threshold for eligibility for free legal aid was 125 percent of the FPL. Effective January 1, 2022, the threshold increased to 200 percent due to the adoption of SB 498.

6 Recognizing that housing is both a key economic and a legal issue in California—where housing costs vary significantly by region and are a major driver of cost-of-living differences—the State Bar asked NORC to classify households using an income matrix adapted from the California Department of Housing and Community Development (HCD), which is based on county-level area median incomes (AMI). This matrix is commonly used to establish eligibility for subsidized housing programs. See the appendix in the 2024 NORC report for more details about how the five-category HCD matrix was adapted to produce a four-category income variable for this study.

Table 1. Income Categories, Definitions, and Sample for 2024 California Justice Gap Survey

Income category	Definition	Survey respondents
Lowest-income	< = 200 percent of the FPL, regardless of county	1,576
Low-income	> 200 percent of the FPL and < 80 percent AMI	1,495
Middle-income	80 percent–120 percent AMI	1,501
High-income	> 120 percent AMI	1,758

The NORC report contains an analysis that describes California's adult population according to this income classification. Key insights include the following:

- High-income Californians are the largest income group, making up 36 percent of Californians, with lowest-income Californians following at 27 percent.
- Latinos account for 50 percent of Californians in the lowest-income group.
- Over half of lowest-income Californians have a high school equivalent or lower, while half of high-income Californians have a college degree.
- Seniors constitute nearly a quarter of lowest- and low-income Californians.
- Women slightly outnumber men within California's lowest-income group.

Important Notes

Base sizes: Base sizes are provided for visuals wherever possible, and bases with fewer than 200 observations are marked with an asterisk (*). For visuals with multiple levels of disaggregation, see Significant Testing Resource for all base sizes associated with each figure from the 2024 NORC report.

Rounding: Not all distributions add up to 100 percent due to rounding.

Units of analysis: The units of analysis and sets of observations used for the estimates vary throughout the 2024 NORC report, including respondents (or their households), civil legal problems, and subsets of respondents, households, or problems. Readers are encouraged to pay close attention to information describing the units of analysis and relevant sets of observations.

Significance testing: The 2024 NORC report includes both statistically significant and nonstatistically significant differences by income category and other groups. Both are included to show meaningful differences as needed for a full understanding of civil legal needs in California. Please see the Significance Testing Resource for a complete list of significant differences for all analyses reported in the 2024 NORC report.

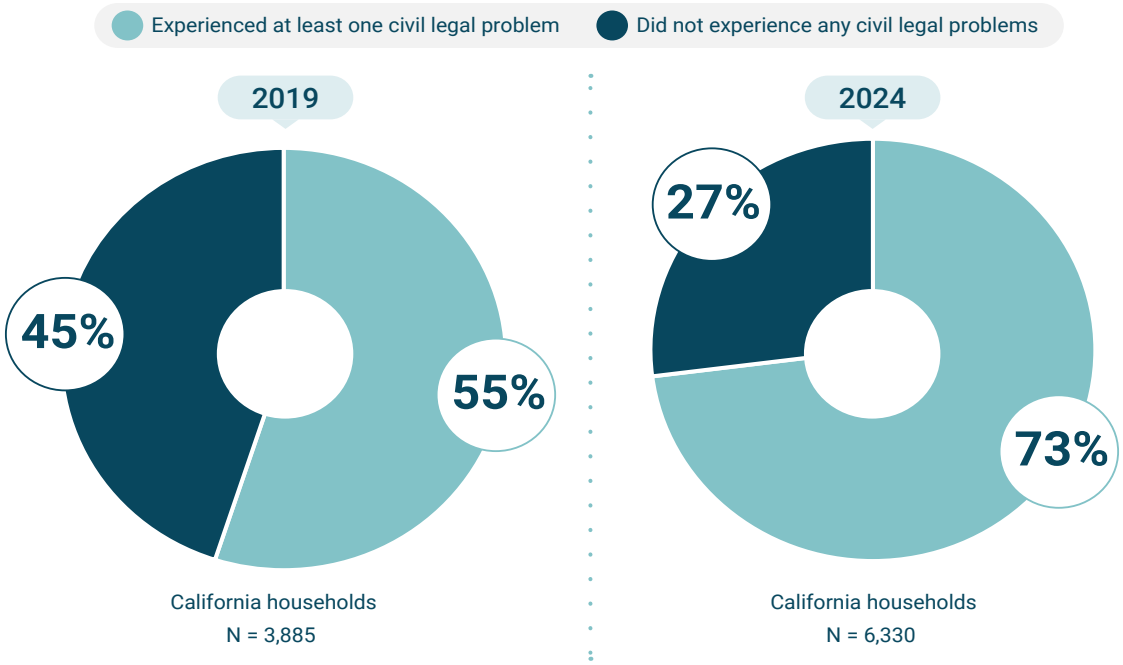
PREVALENCE OF CIVIL LEGAL PROBLEMS

This section presents findings on the prevalence of civil legal problems among California households, which households were more likely to face civil legal problems than others, and the impact these problems had on Californians' lives. As described above, the survey asked about a total of 86 distinct problems, most of which are grouped into 11 categories—consumer issues, health care, housing, income maintenance, employment, family and safety, wills and estates, education, official records, disability, and immigration—for this report. Personal injury, contracts, and compromised personal information were only asked of 35 percent of respondents during the second wave of data collection and thus are not included in the consumer issues overall problem type. Results are based on respondents' reports of problems personally experienced and experienced by others in the household in the past year, among 86 distinct problems.[7] Note that a given problem can only be counted once per household. The primary unit of analysis in this section is households.

More California households are experiencing civil legal problems compared with five years ago.

The 2019 study found that 55 percent of California households experienced at least one civil legal problem in the previous 12 months. The 2024 survey suggests that this figure has increased, with nearly three-quarters of California households (73 percent) reporting at least one problem (see figure 1). Civil legal problems are widespread across all income groups in California, with little variation in prevalence—between 72 and 75 percent of households in every income group experienced at least one civil legal issue in the past year.

Figure 1. Percent of California Households that Experienced at Least One Civil Legal Problem in the Previous 12 Months: 2019 and 2024



Note: Data for 2019 drawn from the 2019 NORC report. Data for 2024 drawn from figure 3A in the 2024 NORC report which presents results by income group.

7 This summary uses both past and present tense intentionally. Past tense is used when referring to legal problems experienced in the previous 12 months, as reported by survey respondents. Present tense is used when discussing patterns in seeking and receiving legal help, to reflect ongoing and commonly observed behaviors that likely extend beyond the specific survey period.

California households reported experiencing an average of six civil legal problems.

Lowest- and middle-income households reported an average of seven problems, and low-income households reported an average of eight problems, while high-income households reported an average of five problems (see table 2).

Note: The average number of problems calculations include households that experienced no civil legal problems.

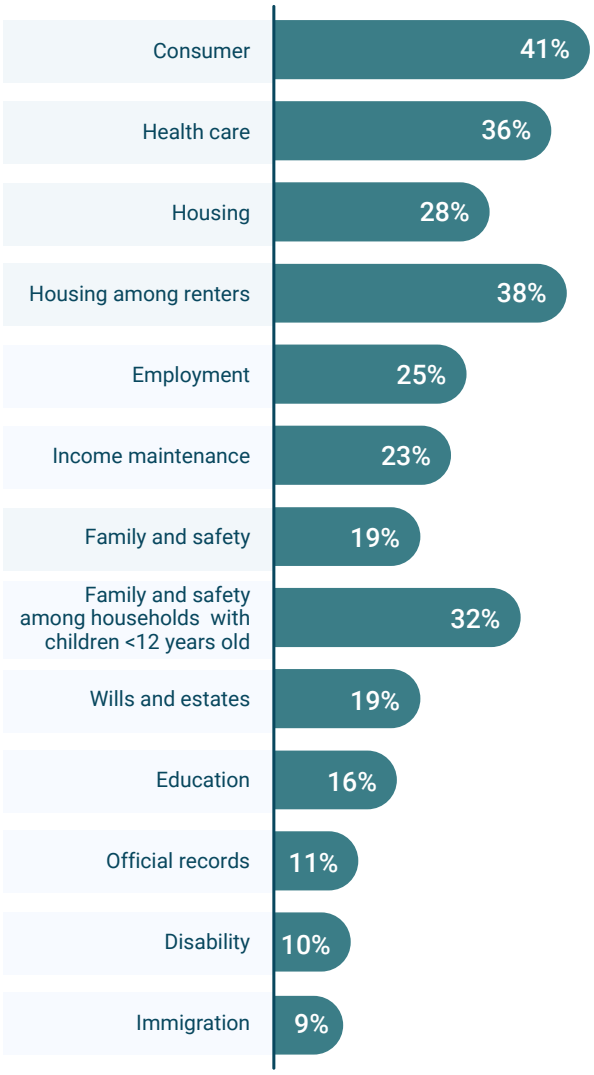
Table 2. Average Number of Civil Legal Problems Experienced by California Households

	Average number of civil legal problems
Overall	6
Lowest-income	7
Low-income	8
Middle-income	7
High-income	5

The two most common types of civil legal problems among all California households are related to consumer and health care issues.

Figure 2 presents the types of civil legal problems experienced by California households. The most common civil legal problems were related to consumer issues followed by health care—reversing the pattern observed in 2019, when health care was the most prevalent issue, followed by consumer problems. In 2024, over four in 10 California households experienced a consumer problem, and over three in 10 experienced a health care problem in the past year.

Figure 2. Percent of California Households that Experienced Civil Legal Problems by Type of Problem

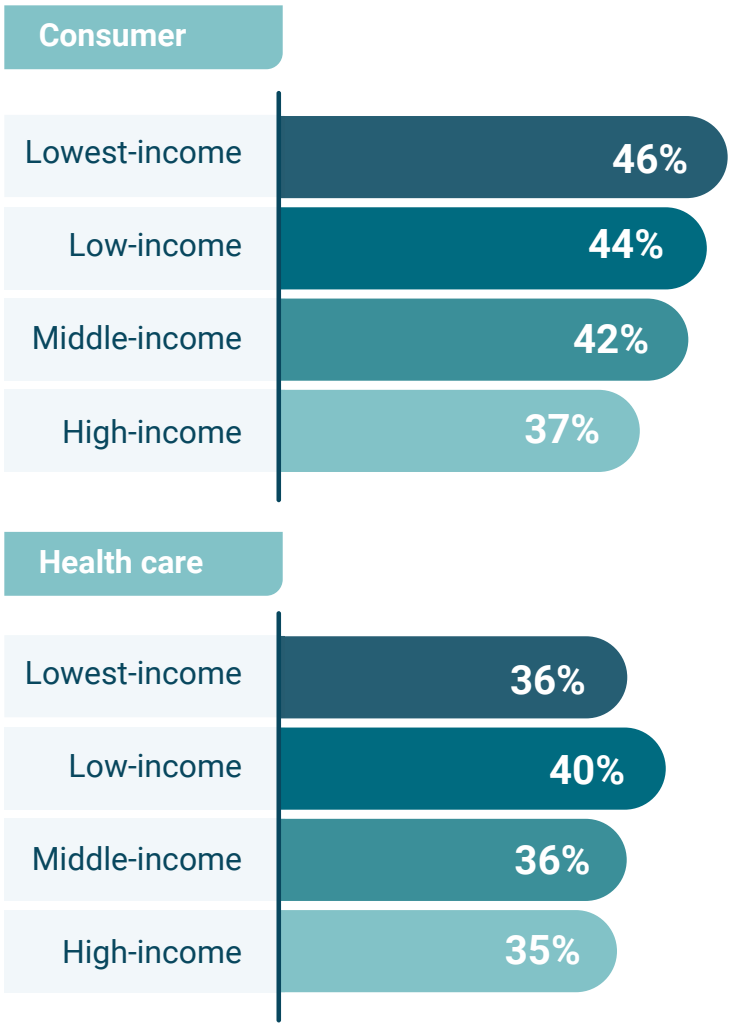


Note: Data reflects percent of households. Number of households vary as follows: renters (2,274); households with children less than 12 years old (458); all other problem types (6,330). See figure 3B in the 2024 NORC report.

Consumer issues and health care problems are the most common problems among all income groups.

As was the case in 2019, the two most common types of civil legal problems for all income groups involve consumer issues and health care. Nearly half of the lowest-income households experienced a consumer issue, compared to 37 percent of high-income households. In contrast, there is less variation across income groups in the prevalence of health care-related problems. See figure 3.

Figure 3. Percent of California Households that Experienced Consumer and Health Care Problems

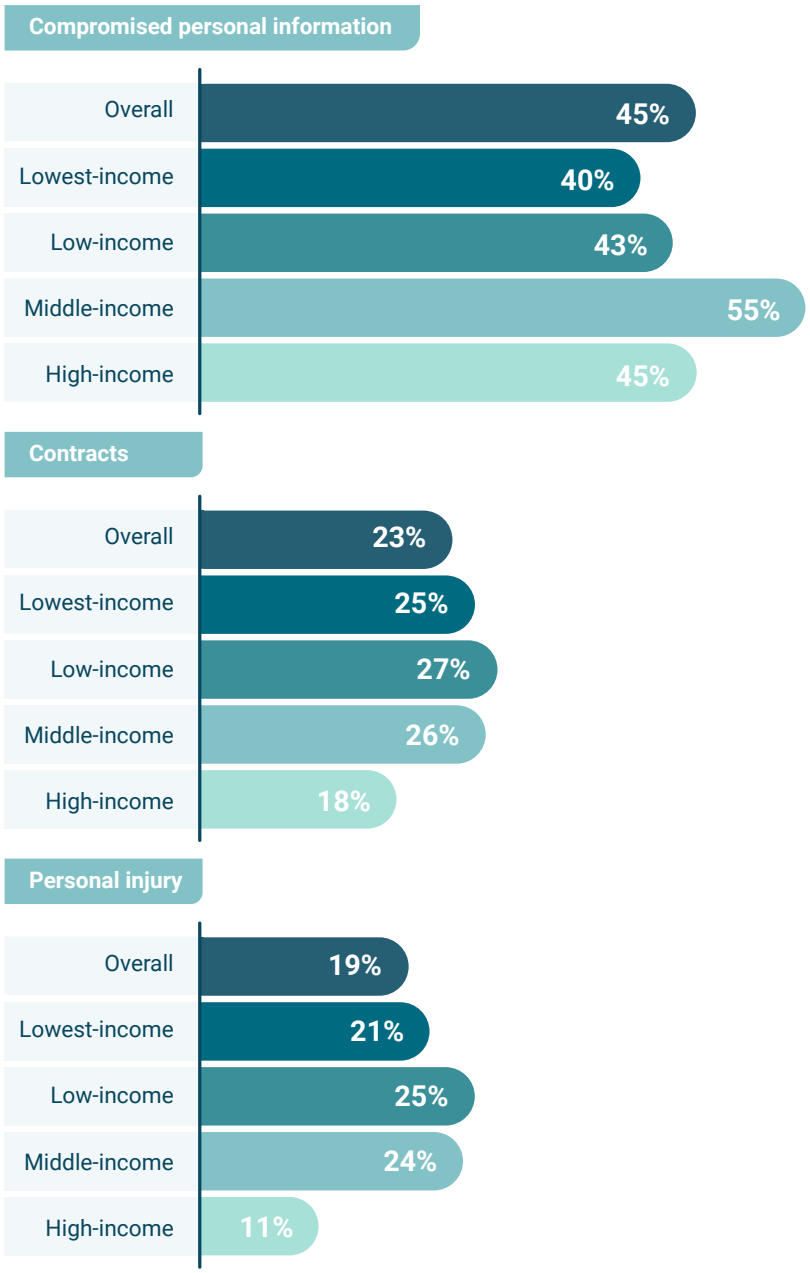


Note: Data reflects percent of households. Number of households vary as follows: lowest-income (1,576); low-income (1,495); middle-income (1,501); high-income (1,758). See figure 3B in the 2024 NORC report for income variation for all categories of civil legal problems.

Nearly half of California households had their personal information compromised in the last year.

As noted above, 41 percent of California households experienced a consumer-related problem in the last year. The most common consumer problems reported included compromised personal information (45 percent), contracts (23 percent), and personal injury (19 percent). The experience of middle-income households is particularly notable: Over half reported compromised information (55 percent), and their rates of legal problems related to contracts and personal injury more closely resemble those of lowest- and low-income California households than those of high-income households. See figure 4.

Figure 4. Top Three Consumer-Related Problems Experienced by California Households

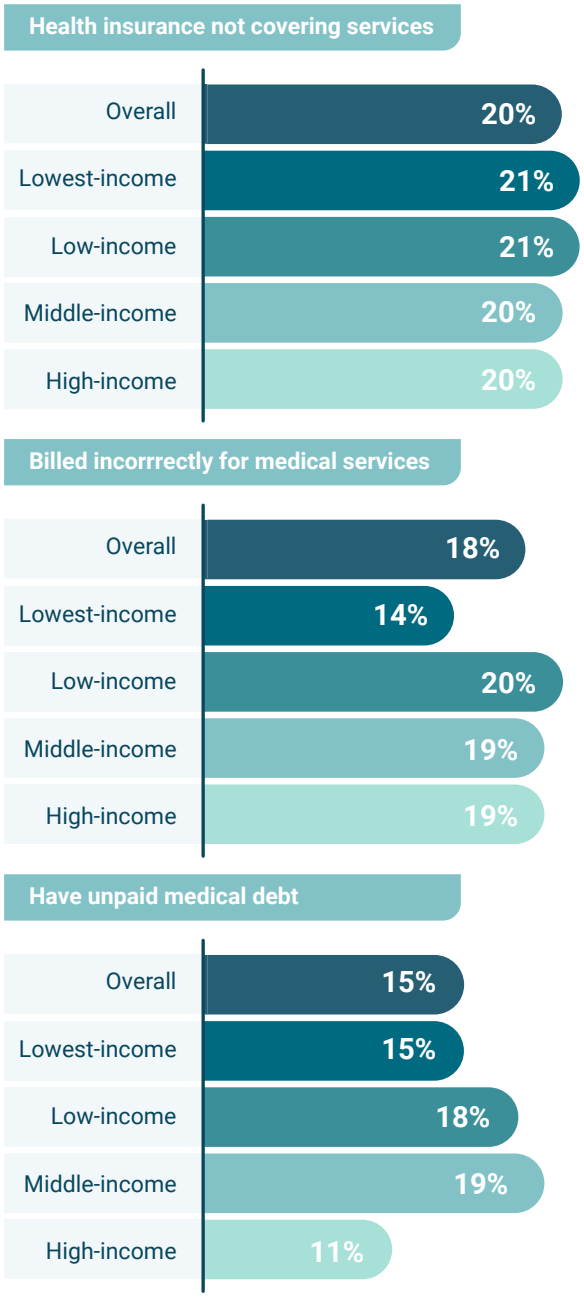


Note: Data reflects percent of households. See supplementary resource for Ns. See figure 3C in the 2024 NORC report for the results for all 16 consumer problems in the survey, disaggregated by income.

One in five California households experienced a health care problem where their health insurance did not cover medically necessary services.

As noted above, over one-third (36 percent) of households experienced a civil legal problem related to health care in the past year. The most common problems reported by California households overall included health insurance not covering needed services (20 percent), being billed incorrectly for medical services (18 percent), and having unpaid medical debt (15 percent). See figure 5. Challenges related to health insurance not covering services cut across income levels, with households of all incomes similarly affected by coverage denials. All income groups except for the lowest-income households experienced a similar prevalence of being billed incorrectly for medical services. Nearly one in five low- and middle-income households experienced a problem related to unpaid medical debt.

Figure 5. Most Common Health Care Problems Experienced by California Households

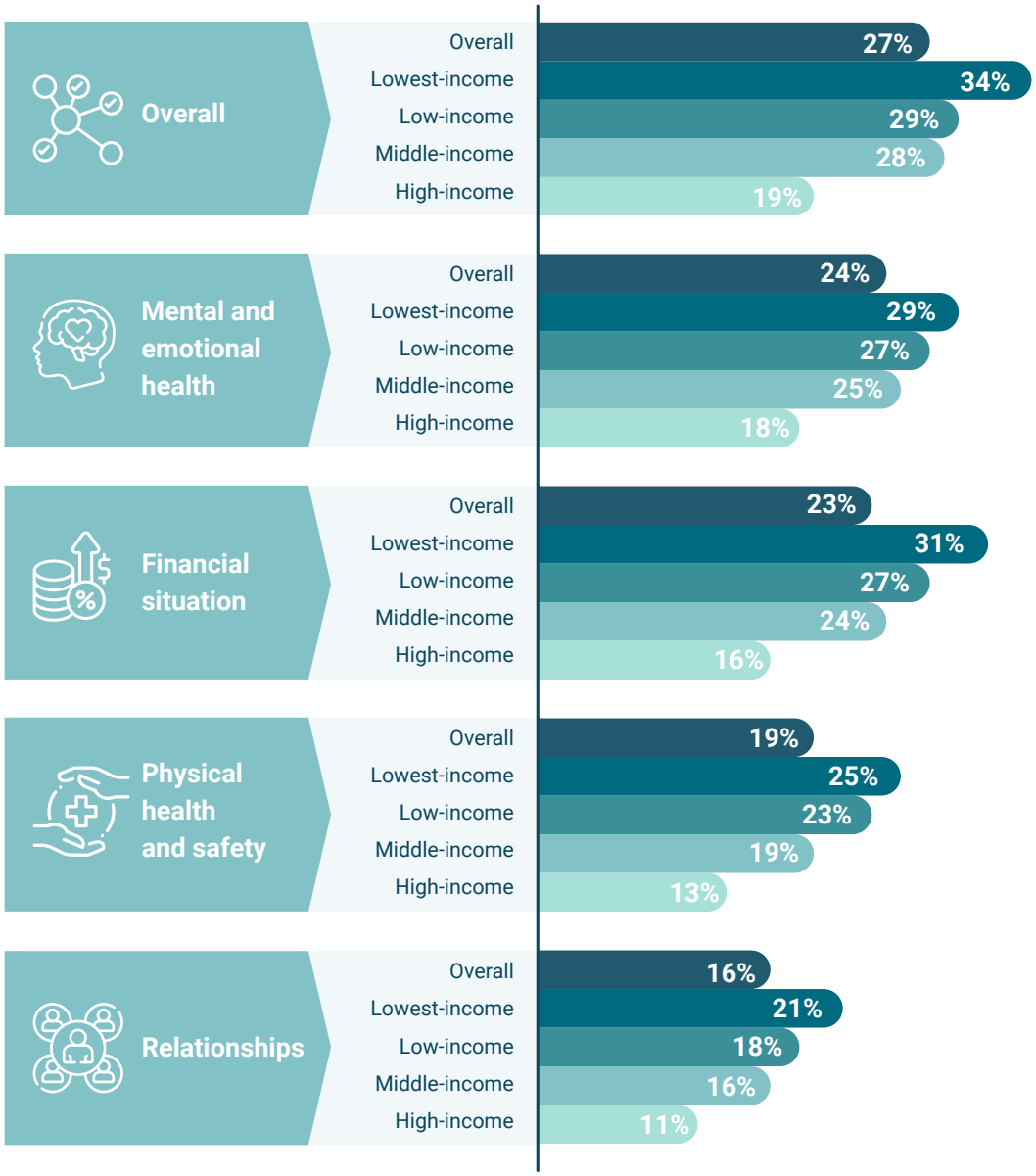


Note: Data reflects percent of households. Number of households vary as follows: overall (6,330); lowest-income (1,576); low-income (1,495); middle-income (1,501); high-income (1,758). See figure 3D in the 2024 NORC report for results for all eight health care problems included in the survey, disaggregated by income.

In the past year, one-quarter of California households experienced a civil legal problem that substantially impacted their lives.

Overall, civil legal problems took a greater toll on lower-income households compared with other income level (see figure 6). For the lowest-income households, the most common impacts were on finances and mental health, with 31 percent reporting substantial impacts on their household's financial situation and 29 percent reporting the same for their mental and emotional health. Middle- and low-income households reported roughly similar experiences with civil legal problems having substantial impacts on their lives. While high-income households were less likely to report substantial impacts due to civil legal problems, nearly one in five (19 percent) reported that the civil legal problems they experienced substantially impacted their lives.

Figure 6. Percent of California Households that Experienced Civil Legal Problems with Substantial Impacts in Various Aspects of Their Lives



Note: Data reflects percent of households. See figure 3F in the 2024 NORC report.

Prevalence of Civil Legal Problems

Regions: Households in Los Angeles County, the Inland Empire, and the Southern San Joaquin Valley households on average faced more problems in the past year compared with households in the North Coast, the Central Coast, Orange County, and San Diego – Imperial regions.

Special focus groups: Households with high housing costs, children, veterans, people with disabilities, and domestic violence were more likely to face civil legal problems, as were Spanish-speaking Californians with limited English proficiency, than their counterparts. Senior households were less likely to face civil legal problems than non-senior households.

How California compares with the nation:

- Lowest-income American and California households experienced civil legal problems at similar rates. About seven in 10 experienced at least one problem, while about one in five experienced more than 10.
- Consumer and health care problems were the most commonly experienced civil legal problems for both lowest-income American and California households, and both groups experienced the problems at similar rates.
- About half experienced at least one problem pertaining to consumer issues, while about four in 10 experienced at least one health care problem.



SEEKING LEGAL HELP

This section presents findings on how often Californians seek legal help, the types of legal professionals they talk with, and the forms of legal help they seek. The primary unit of analysis in this section is problems. The focus is exclusively on problems that respondents personally experienced (i.e., excluding problems experienced by other household members) and problems that negatively impacted respondents overall to some extent (i.e., excluding problems that impacted them "not at all").[8] Key terms include the following:

- **Problems for which Californians seek legal help:** These are problems where respondents reported talking with a legal professional about the problem, including a lawyer, legal aid provider, legal helpline, or paralegal.[9]
- **Problems with substantial impact:** These are problems impacting respondents "very much" or "severely."

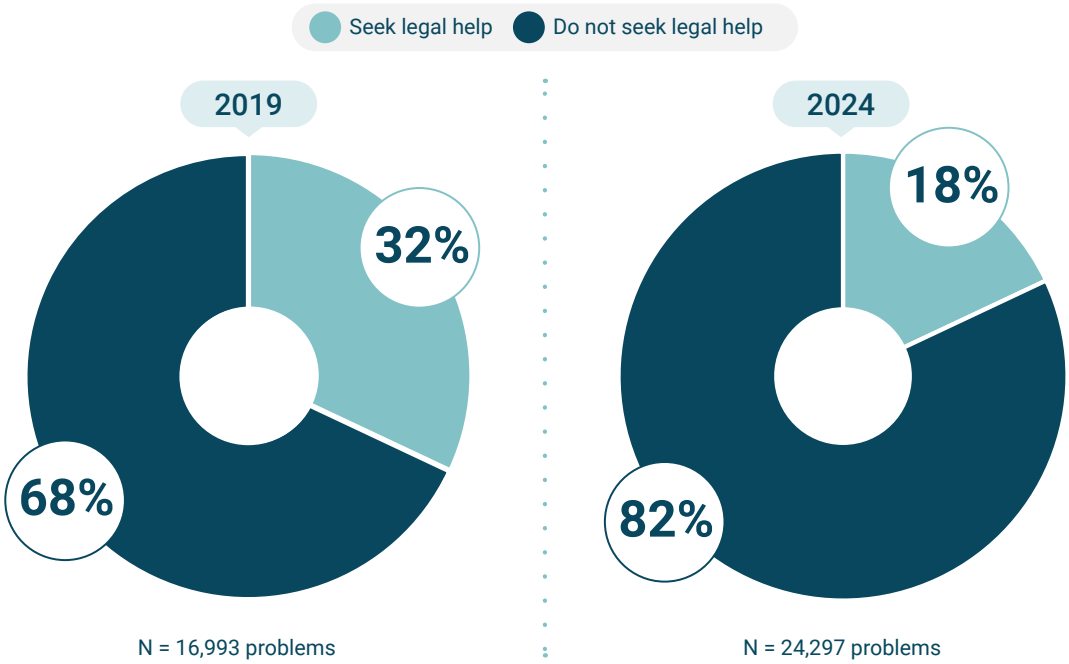
Californians still rarely seek help for civil legal problems.

The 2019 survey found that Californians sought legal help for 32 percent of their civil legal problems. Results from the most recent survey suggest that this share has declined, with Californians seeking legal help for just 18 percent of their problems (see figure 7).

8 The survey only asked for details on problems that had a negative impact on respondents' lives overall (i.e., negatively affected them "slightly," "moderately," "very much," or "severely"); the survey did not ask for detail on problems the respondents said had "not at all" impacted them. A vast majority of respondents (84 percent) personally experienced 10 or fewer problems that impacted their lives to some extent. Where respondents experienced more than 10 problems that impacted their lives, the survey selected a subset of 10 of their problems about which to ask for details. To maximize the potential for learning about problems relating to veterans, disabilities, housing, family, and immigration problems, these types of problems were given priority for inclusion if they met the other criteria for negative impact. See the appendix in 2024 NORC report for more details.

9 See footnote 17 in 2024 NORC report for more details about how seeking legal help is defined.

Figure 7. Percent of Problems for Which Californians Seek Legal Help: 2019 and 2024



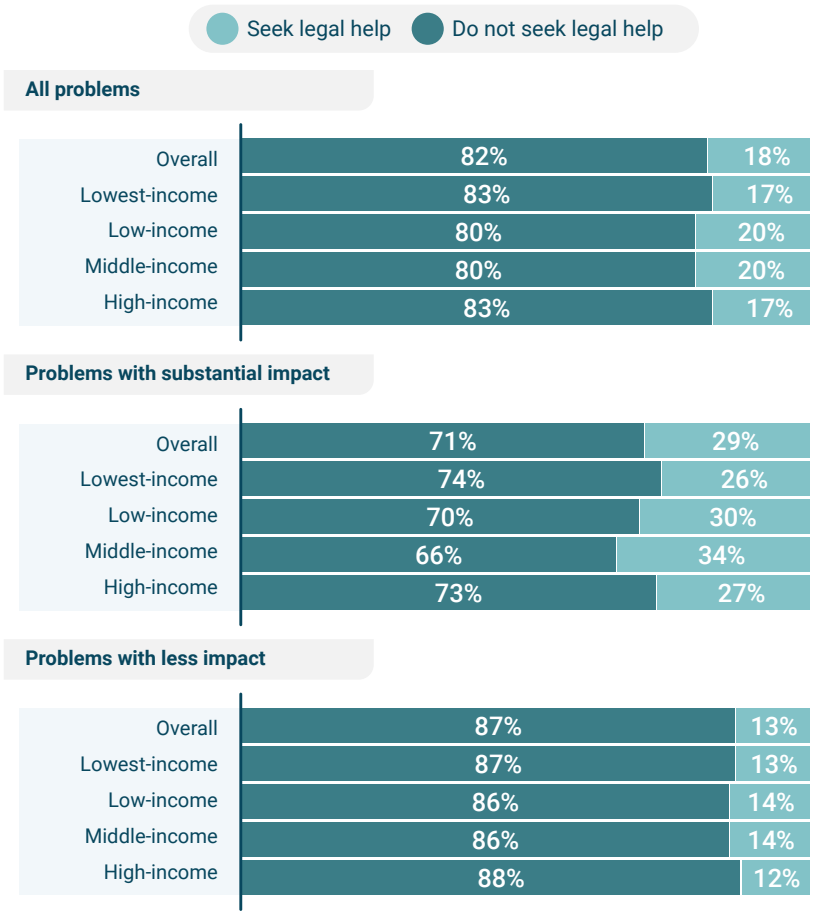
Note: Data for 2019 drawn from the 2019 NORC report. Data for 2024 drawn from figure 4A in the 2024 NORC report.

Although the likelihood of seeking legal help is higher for problems with substantial impact, most Californians do not seek legal help for their civil legal problems regardless of income, even for those problems that substantially impact them.

Californians are more likely to seek legal help for problems that substantially impact them than for problems with less impact (see figure 8). Although this impact differential is more pronounced for middle-income Californians, it is universal across all four income groups. Lowest- and high-income Californians seek legal help for just one in four civil legal problems that substantially impact them, while low- and middle-income Californians seek help for three in 10.

Note: Results reflect percent of problems. Problems with substantial impact are problems impacting respondents "very much" or "severely." Number of problems vary as follows: all problems (24,297); problems with substantial impact (8,183); problems with less impact (16,114). Data drawn from figure 4A in the 2024 NORC report.

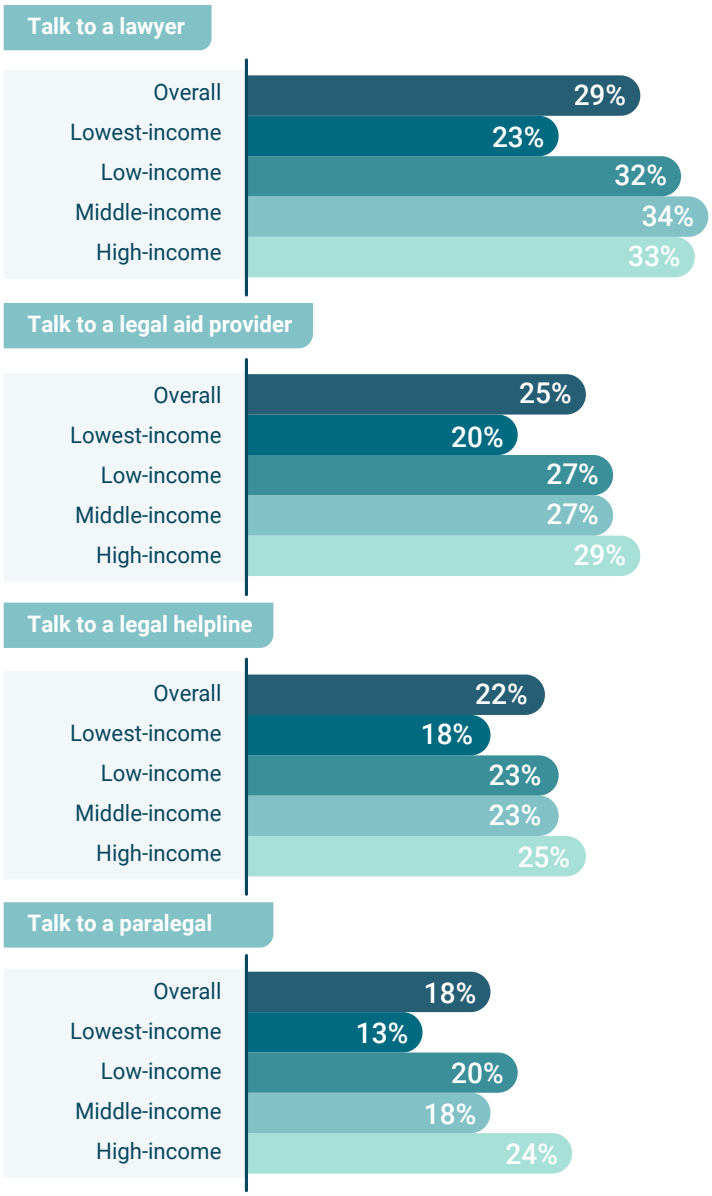
Figure 8. Percent of Problems for Which Californians Seek Legal Help



Californians seek help from a lawyer for only three in 10 civil legal problems that substantially impact them.

Figure 9 displays the different types of legal professionals Californians seek legal help from. As noted above, Californians do not seek help from a legal professional for most of their civil legal problems. However, they are more likely to seek help from a lawyer than any other source when they do seek legal help. While Californians seek out a lawyer for 29 percent of their civil legal problems, they only seek help from a legal aid provider for 25 percent of their problems, a legal helpline for 22 percent of their problems, and a paralegal for 18 percent of their problems. Lowest-income Californians seek legal help for just 23 percent of the civil legal problems that substantially impact them. Although lowest-income Californians are eligible to receive free legal aid services, just one in five seek help from a legal aid provider for problems that substantially impact them.

Figure 9. Percent of Substantial Problems for Which Californians Seek Legal Help by Type of Legal Professional

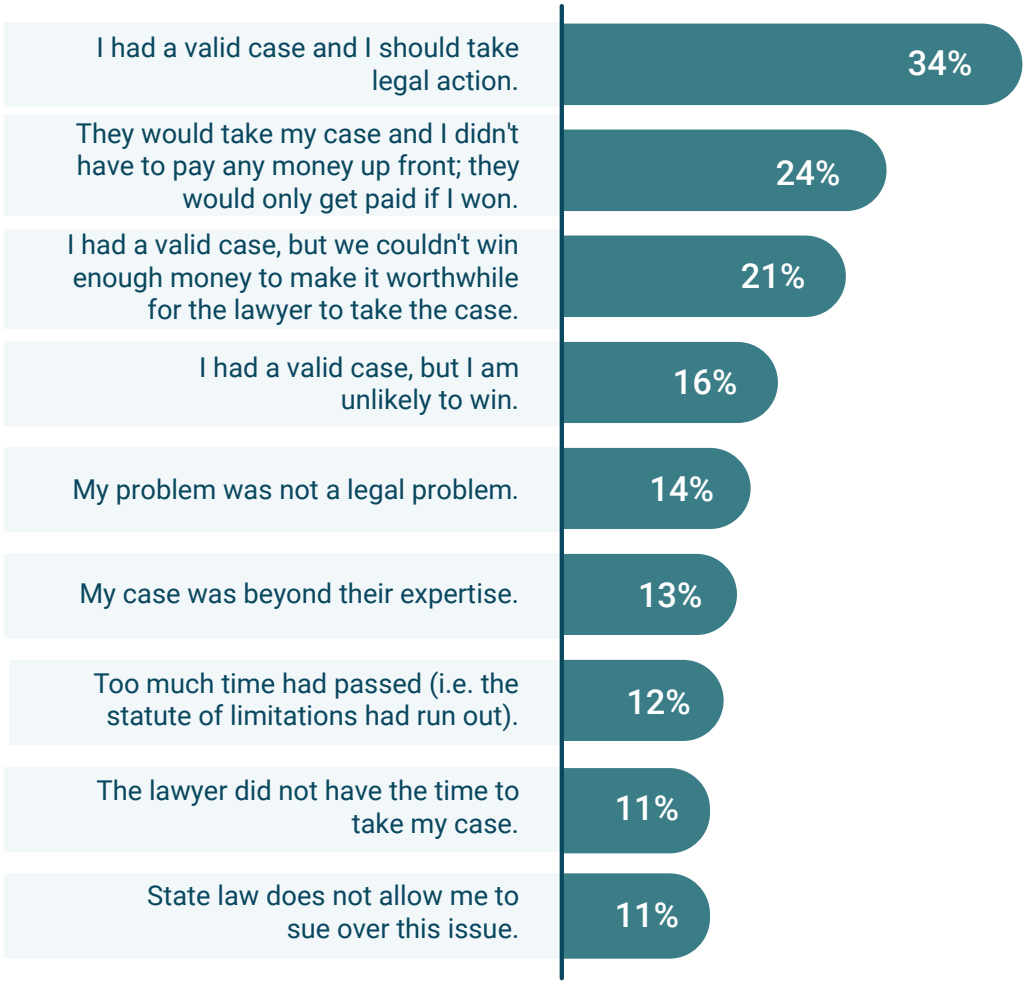


Note: Data reflects the percent of substantial problems for which respondents seek legal help. Number of problems vary as follows: overall (5,155); lowest-income (1,788); low-income (1,341); middle-income (1,261); high-income (765). See figure 4D in the 2024 NORC report.

When Californians consult a lawyer, the most common response is that their case is valid and legal action is recommended.

For 34 percent of problems discussed with a lawyer, Californians are informed that they have a valid case and should take legal action. For around one in four problems discussed with a lawyer, Californians are told that a lawyer would take their case without requiring any payment upfront. One in five of the problems Californians bring to a lawyer is deemed valid, but the potential recovery amount is too low for a lawyer to take the case. See figure 10.

Figure 10. What Californians Hear from Lawyers About Their Civil Legal Problems



Note: Data reflects the percent of problems about which respondents talked to a lawyer (N = 2,682). The survey question was "Did the lawyer you spoke with tell you any of the following?" and was only presented for problems where respondents reported they talked with a lawyer. Respondents were invited to select all that applied. See figure 5D in the 2024 NORC report.

The types of legal help Californians seek reflect the various ways legal professionals can help people with these problems.

Californians across all income groups are most likely to seek legal advice from a legal professional about their specific situation, representation by a lawyer in court, or help negotiating with the other people involved in the problem (see figure 11).

Figure 11. Percent of Problems for Which Californians Seek Various Types of Legal Help from a Legal Professional



Note: These estimates correspond only to problems for which respondents said they talked with a legal professional (N = 4,161 problems). The survey question was, "What kind of legal help did you want when you decided to talk to a lawyer or other legal professional?" See figure 4E in the 2024 NORC report for results, disaggregated by income.

Seeking Legal Help

Regional variations: Californians across the majority of regions seek help for three in 10 of their civil legal issues that impacted them substantially, with the exception of North Coast (16 percent) and Orange County (36 percent).

Special focus groups: Similar to Californians overall, individuals within special focus groups seek help for about three in 10 of their substantial civil legal issues, with the exception of individuals with high housing costs (22 percent), individuals living in households with survivors of domestic violence (23 percent), and Spanish-speaking Californians with limited English proficiency (63 percent).

How California compares with the nation:

- Lowest-income American and California households experienced civil legal problems at similar rates. About seven in 10 experienced at least one problem, while about one in five experienced more than 10.
- Consumer and health care problems were the most commonly experienced civil legal problems for both lowest-income American and California households, and both groups experienced the problems at similar rates.
- About half experienced at least one problem pertaining to consumer issues, while about four in 10 experienced at least one health care problem.

THE JUSTICE GAP

The 2024 California Justice Gap Measurement Survey asked respondents to provide details about their experiences receiving legal help for problems they had personally experienced in the past year. The justice gap is the difference between Californians' civil legal needs (problems that could be addressed through civil legal action) and the legal help people receive to address those needs. For this study, the justice gap is defined as not receiving any or enough legal assistance to address a civil legal problem. NORC calculated a survey-based measure of the justice gap as follows:

$$\text{Justice gap} = \frac{\text{(Problems not receiving any legal help)} + \text{(Problems not receiving enough legal help)}}{\text{all problems experienced}}$$

Each part of the measure is defined as follows:

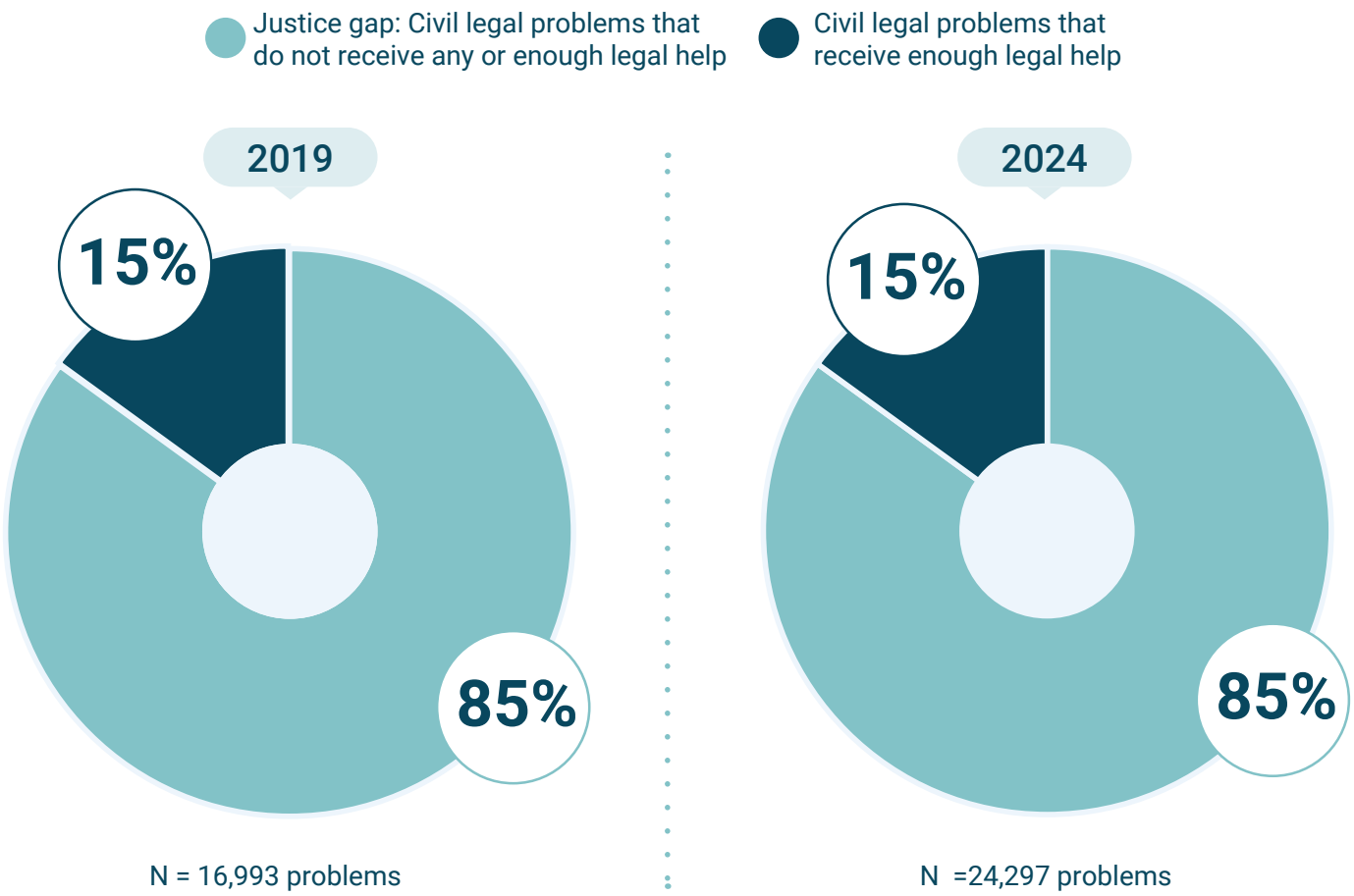
- **All problems experienced:** All personally experienced problems that impacted respondents to some extent in the past year.
- **Problems not receiving any legal help:** The subset of problems for which respondents did not seek any legal help.
- **Problems not receiving enough legal help:** The subset of problems for which respondents sought legal help but did not receive as much as they needed.

While this definition provides a framework for understanding the justice gap, it is important to acknowledge that there is ongoing debate on how the term should be defined or measured.[10]

Californians still do not receive any or enough legal help for the vast majority of their civil legal problems.

Californians do not receive any or enough legal help for 85 percent of their civil legal problems overall, the same as what was reported in 2019 (see figure 12).

Figure 12. Percent of Problems for Which Californians Do Not Receive Any or Enough Legal Help (The Justice Gap)



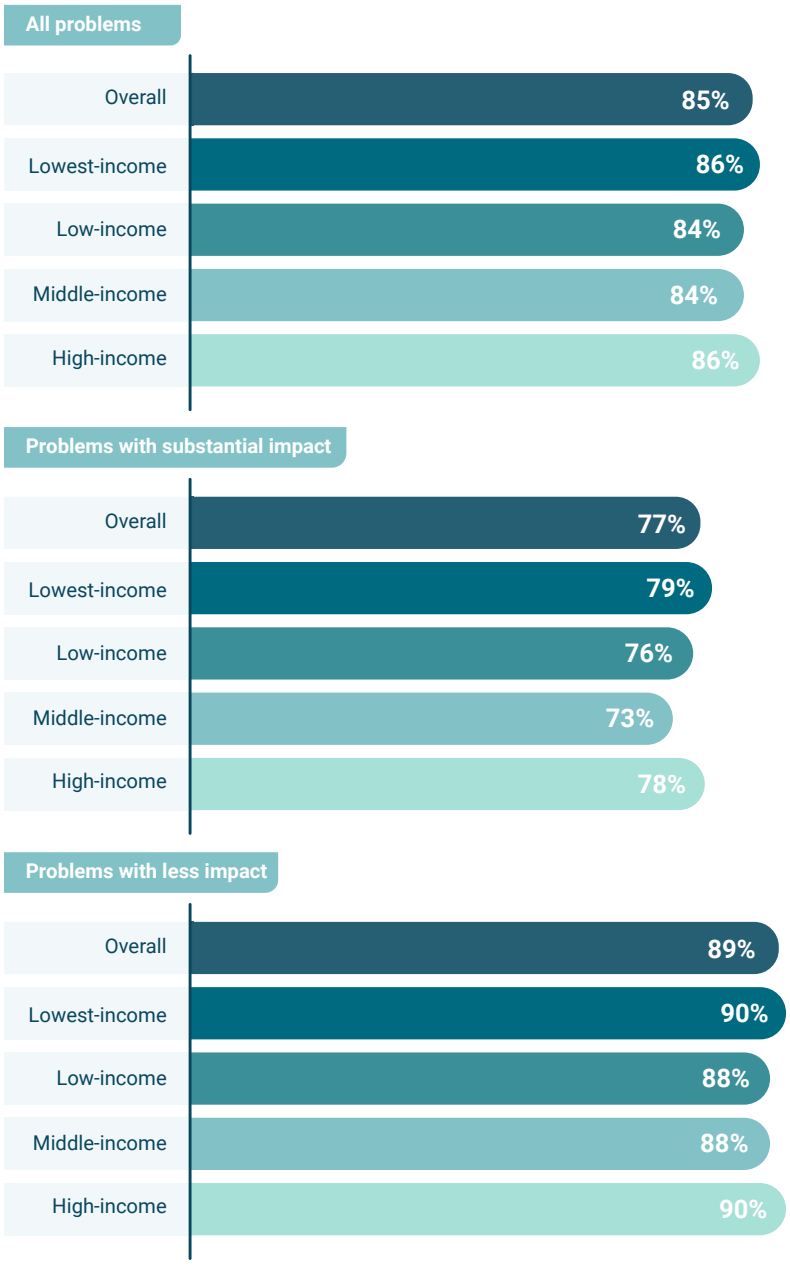
Note: Data for 2019 drawn from the 2019 NORC report. Data for 2024 drawn from figure 5A in the 2024 NORC report.

10 Problems for which lawyers told respondents that their problem was not a legal problem or that state law did not allow them to sue over the issue, as reported in figure 10, were considered to have received legal help for the purpose of calculating the justice gap. See the 2024 NORC report for more details.

Californians across the income distribution do not receive any or enough legal help for the vast majority of their civil legal problems, including problems that substantially impact them.

Although Californians are more likely to receive enough legal help for problems with a substantial impact than for those with less impact, Californians experience a justice gap for nearly eight in 10 problems that substantially impact them (see figure 13). Regardless of income level, most Californians do not receive any or enough legal help for problems either with a substantial or lesser impact.

Figure 13. The Justice Gap: Percent of Problems for Which Californians Do Not Receive Any or Enough Legal Help



Note: Results reflect percent of problems. Problems with substantial impact are problems impacting respondents "very much" or "severely." Number of problems vary as follows: all problems (24,297); problems with substantial impact (8,183); problems with less impact (16,114). Data drawn from figure 5A in the 2024 NORC report.

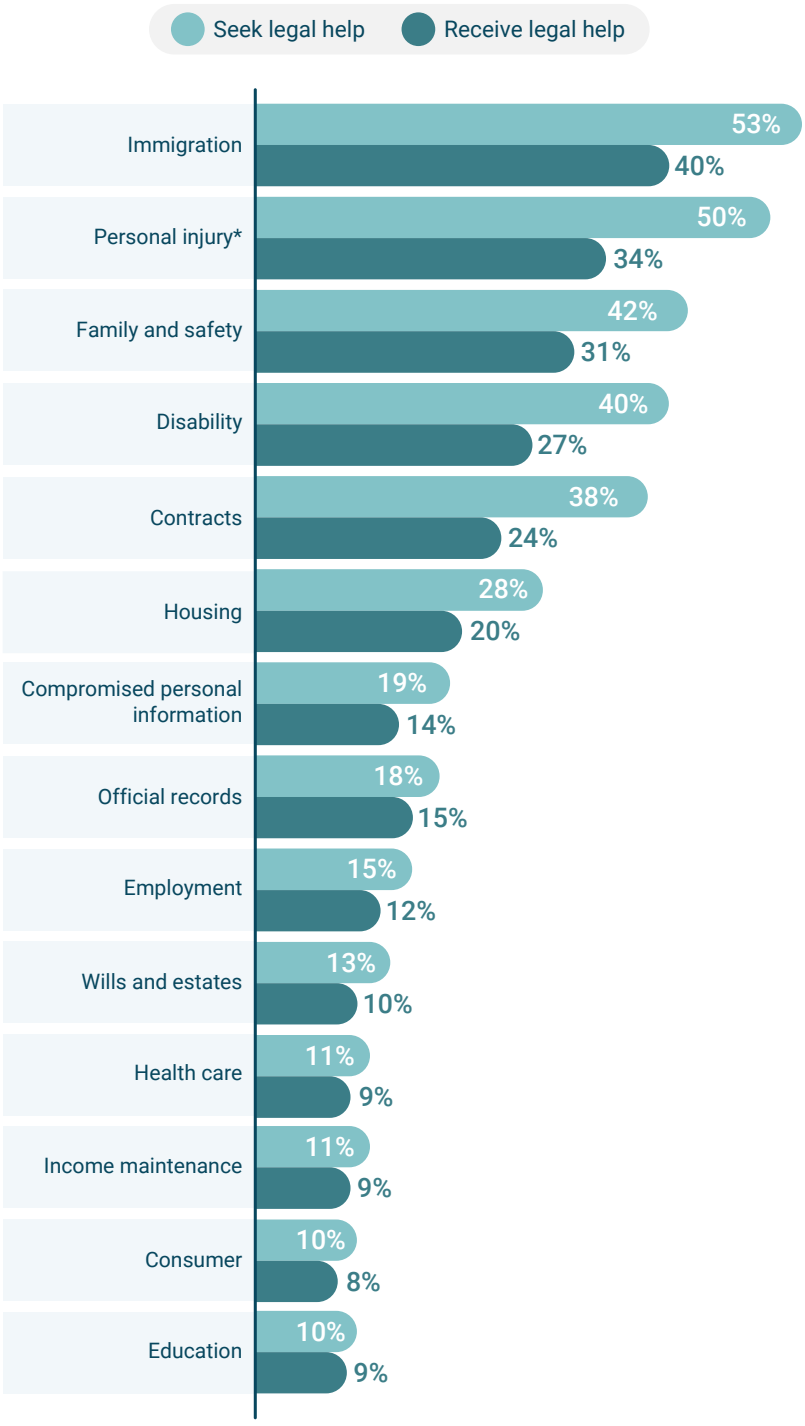
Californians seek legal assistance for only a small fraction—approximately one in 10—of consumer and health care problems.

As noted above, the two most common types of civil legal problems among California households are related to consumer issues and health care. Analyses of the three consumer problems added to the survey in response to stakeholder feedback show that nearly half of California households had their personal information compromised in the last year. Given the high prevalence of these issues, an important question follows: To what extent do Californians seek and receive legal help for these problems?

Figure 14 displays the percent of problems for which Californians seek and receive legal help by problem. Although consumer and health care problems were the most prevalent legal issues, they seek legal help for approximately one in 10 of these problems and receive legal help for an even smaller share. Californians sought legal help for just one in five problems related to compromised personal information and received legal help for just 14 percent.

As noted in figure 2 above, 9 percent of California households experienced a problem related to immigration. However, immigration problems are the most common type of problem for which Californians seek legal help, followed by personal injury and family and safety. Figure 14 also highlights gaps between seeking and receiving legal assistance across different areas of need. In the case of immigration problems, although Californians sought legal help for more than half of their immigration-related problems, they received legal help for just 40 percent, underscoring potential challenges in accessing services even among those who actively pursue assistance. This gap is highest among personal injury problems, where individuals sought legal help for 50 percent of those problems but received help for just one-third.

Figure 14. Percent of Problems for Which Californians Seek and Receive Legal Help by Problem Type



*Small base size

Note: This analysis is based on problems and the figure was derived from figures 4C and 5C in the 2024 NORC report.

Californians who cannot get all the help they need from a lawyer or legal professional take additional steps to resolve their problems.

Survey respondents who sought help from a lawyer or other legal professional but did not receive the help they wanted were asked, "Since you didn't get all the legal help you wanted from a lawyer or legal professional, what did you do to try to solve the problem?" Californians attempted to solve 34 percent of their problems by looking online for legal information. Additionally, they contacted an alternative source of help or searched for another lawyer for about a quarter of their problems, attempted to resolve the problem on their own or sought legal help in other ways for about a fifth of their problems, and did not attempt any action for 15 percent of their problems.

The Justice Gap

Regions: The justice gap is similar across most California regions, with about eight in 10 residents not receiving any or enough legal help for their substantial civil legal issues. However, residents of the North Coast region do not receive any or enough legal help for nine in 10 of substantial legal issues, and residents of Orange County and Northern San Joaquin Valley do not receive enough legal help for six in 10 substantial legal issues.

Special focus groups: People with high housing costs did not receive enough legal help for 84 percent of substantial problems.

How California compares with the nation: A higher share of lowest-income Americans than lowest-income Californians do not receive any or enough legal help: Similar to lowest-income Americans, lowest-income Californians do not receive any or enough legal help for the vast majority of the civil legal problems that substantially impact them. However, a higher share of lowest-income Americans (nine in 10) than lowest-income Californians (eight in 10) do not receive sufficient legal help for civil legal problems that substantially impact them.



BARRIERS TO SEEKING AND RECEIVING LEGAL HELP

The NORC survey provides key information on multiple types of barriers to seeking and receiving legal help:

Knowledge barriers: The extent to which Californians know that legal professionals can help resolve the types of civil legal problems explored in this survey.

Attitudinal barriers: Californians' beliefs about the civil legal system.

Cost barriers: Californians' real or perceived cost of receiving legal help.

Knowledge Barriers

Most Californians are unaware that lawyers or other legal professionals can help resolve many of the everyday civil legal problems they face.

For each of their civil legal problems identified, survey respondents were asked, "In your opinion, is this a type of problem that a lawyer or other legal professional could help resolve?" The share of Californians who do not believe that lawyers or other legal professionals can help resolve their civil legal problems does not vary by income group (see figure 15). Regardless of income, Californians do not think that lawyers or other legal professionals could help them solve their problems (39 to 41 percent of problems). However, the share of Californians who are unsure varies by income. California's lowest-income individuals are not sure if lawyers or legal professionals can help nearly one in three of their problems, compared with one in four for the highest-income individuals. The belief that lawyers or other legal professionals could help also varies according to income: Lowest-income Californians believe lawyers and other legal professionals could help with only 29 percent of their problems, compared to high-income Californians, who believe lawyers and legal professionals could help with 39 percent of their problems.

Figure 15. Percent of Problems Californians Believe a Lawyer or Other Legal Professional Could Help Resolve



Note: This analysis is based on problems (Overall n=24,297 | Lowest-income n=6,967 | Low-income n=6,201 | Middle-income 6,523 | High-income n=4,606) and was based on figure 5H in the 2024 NORC report.

Attitudinal Barriers

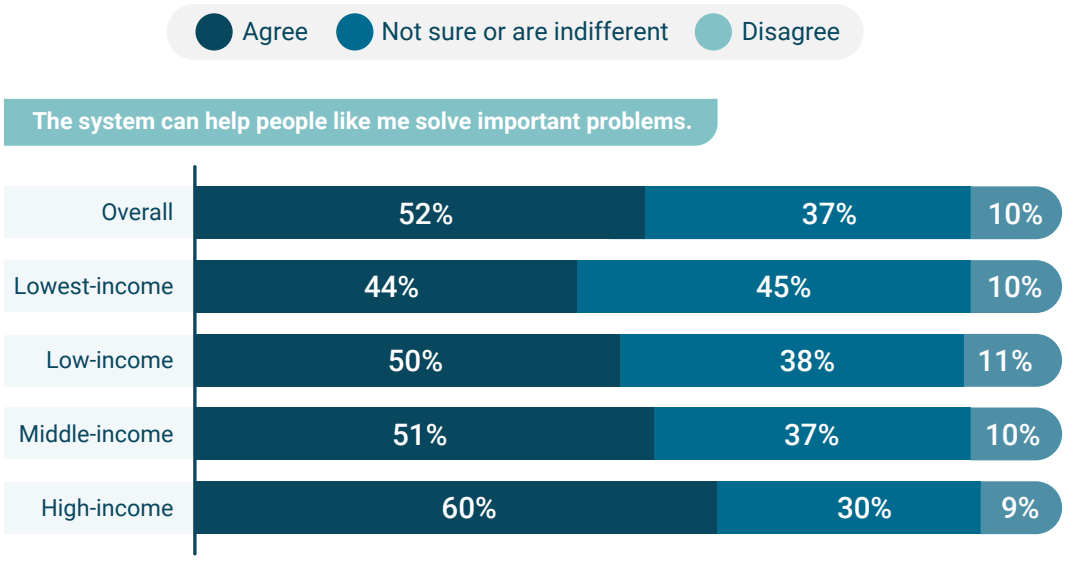
Lowest-income Californians are more likely to have uncertain or negative perceptions of the civil legal system than Californians in higher income categories.

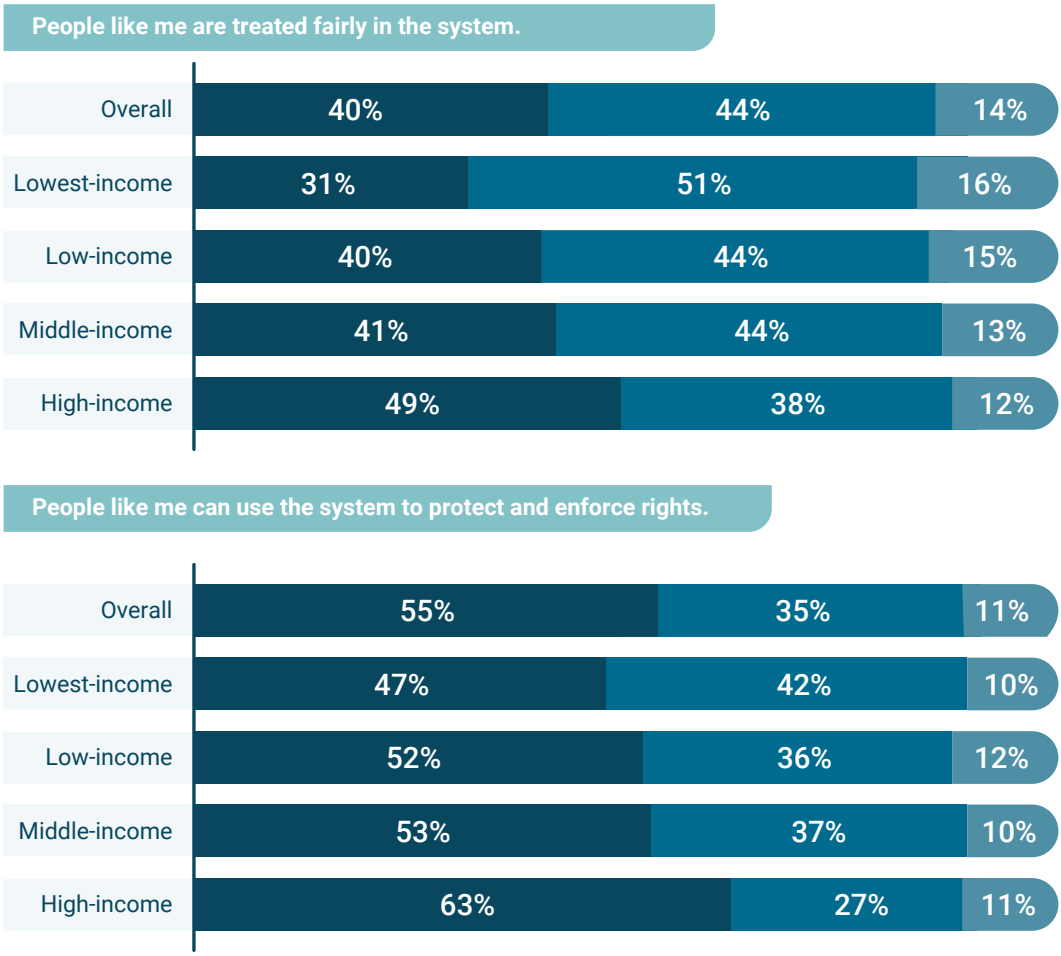
Confidence in the civil legal system varies by income (see figure 16). Only 44 percent of lowest-income Californians believe the civil legal system can help people like them solve important legal problems, compared to about half of low- and middle-income Californians and 60 percent of high-income Californians. More are unsure or indifferent that the system can help them solve important legal problems than believe it cannot, suggesting that Californians' faith in or lack of understanding of the system may prevent them from engaging in it when they have a civil legal problem.

Across all income groups, there is a lack of consensus regarding the fairness of the civil legal system. Only about three in 10 of Californians in the lowest-income group think the system treats people like them fairly. In contrast, about four in 10 of low- and middle-income Californians and nearly half (49 percent) of high-income Californians think the same. Among lowest-income Californians, far more are unsure or indifferent about the system's fairness than believe people like them are treated fairly, while the opposite is true among high-income Californians. Among low- and middle-income Californians, about equal shares believe that the system treats people like them fairly or say they are unsure or indifferent.

Californians are most positive about the system protecting and enforcing their rights. Overall, 55 percent think people like them are able to use the civil legal system to protect and enforce rights, but divisions remain by income. Only 47 percent of lowest-income Californians think so, compared to 63 percent of high-income Californians. About half of low- and middle-income Californians agree.

Figure 16. Californians' Attitudes about the U.S. Civil Legal System





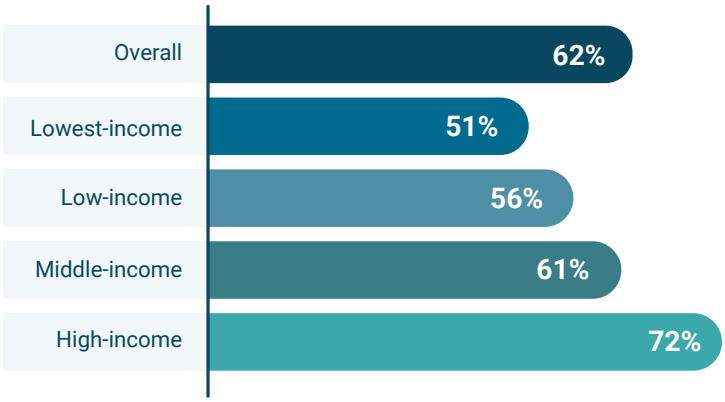
Note: This analysis is based on individuals (Overall n=6,630 | Lowest-income n=1,576 | Low-income n=1,495 | Middle-income 1,501 | High-income n=1,758) and is drawn from figure 5I in the 2024 NORC report.

Cost Barriers

Just six in 10 Californians are confident they could find an affordable lawyer or legal professional if they needed help with a serious legal problem.

The survey asked respondents how confident they were that they could find a lawyer or other legal professional they could afford if they needed help with a serious civil legal problem, such as preventing eviction, foreclosure, or the loss of custody of a child. About half of lowest-income Californians are at least somewhat confident that they could find a lawyer or other legal professional they could afford, while six in 10 low- and middle-income Californians and seven in 10 high-income Californians say the same. These results suggest that the perception of high costs is a further barrier to seeking help (see figure 17).

Figure 17. Percent of Californians Who Are Confident in Their Ability to Find a Lawyer or Legal Professional They Can Afford



Note: This analysis is based on individuals (Overall n=6,630 | Lowest-income n=1,576 | Low-income n=1,495 | Middle-income 1,501 | High-income n=1,758) and is drawn from figure 5J in the 2024 NORC report.

Californians report that for most of their legal problems, they are either unsure how much they would be willing to pay to speak to a lawyer or would only have been willing to go to a lawyer if they didn't have to pay up front.

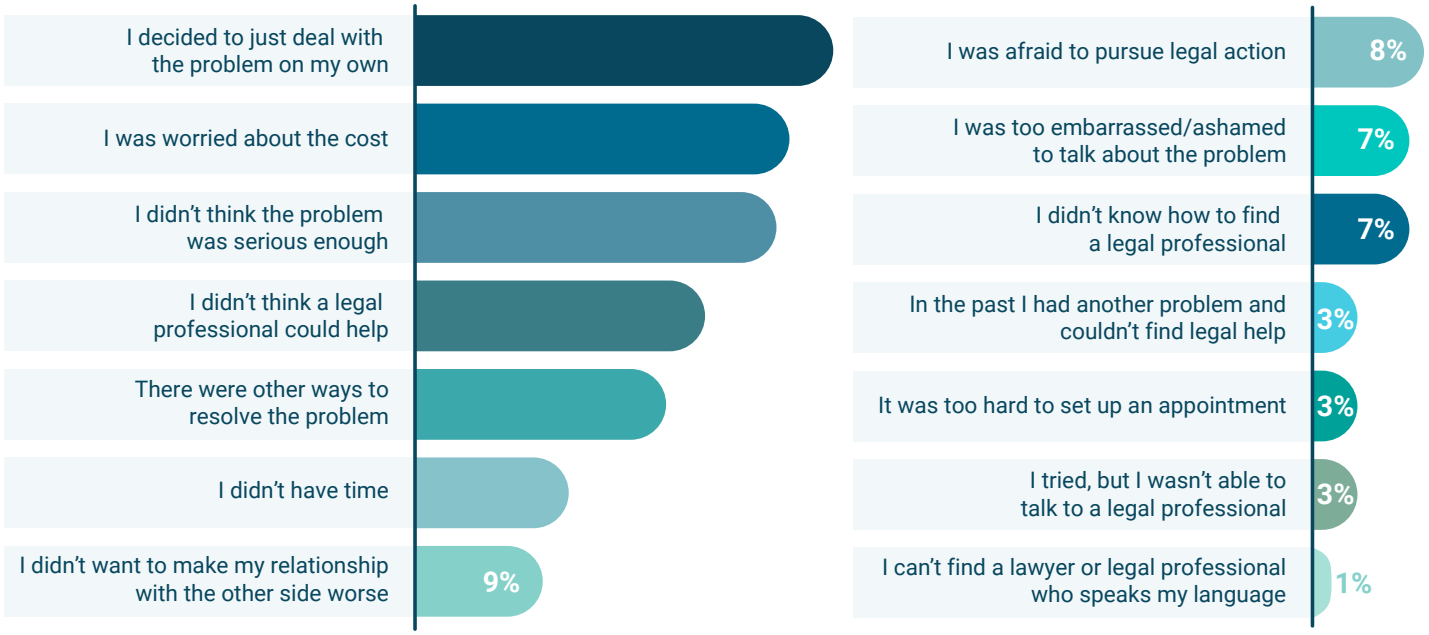
Respondents who reported that they did not talk to a lawyer about their civil legal problem(s) were asked, "How much would you have been willing to pay to speak to a lawyer (if this was the lowest rate you could find) for one hour to learn about your options for solving your problem?"[11] The results show that Californians do not know how much they would be willing to pay to speak to a lawyer to learn about their options for nearly half of their civil legal problems. Additionally, for about four in 10 of their civil legal problems they did not speak to a lawyer about, they would only be willing to go to a lawyer if they didn't have to pay anything up front. For the problems Californians are willing to pay to speak to a lawyer about, they are willing to spend $153 per hour on average. In California, attorney hourly rates average $391 overall, with rates ranging from $181 to $502 depending on practice area.[12]

Additional Barriers

Californians who do not seek legal help decide to deal with one in three problems on their own.

Respondents who reported that they did not talk to a lawyer or other legal professional about their civil legal problems were asked, "Why haven't you talked to a lawyer or other legal professional about this problem?" Of the problems for which Californians do not seek legal help, they choose not to do so for about three in 10 because they decide to resolve the problem on their own (see figure 18). Additionally, they do not seek legal help for about a quarter because they are either worried about cost or do not think the problem is serious enough. Notably, they choose not to seek legal assistance for about a fifth because they do not think a legal professional could help.

Figure 18: Percent of Problems for Which Californians Do Not Seek Legal Help by Reason Cited



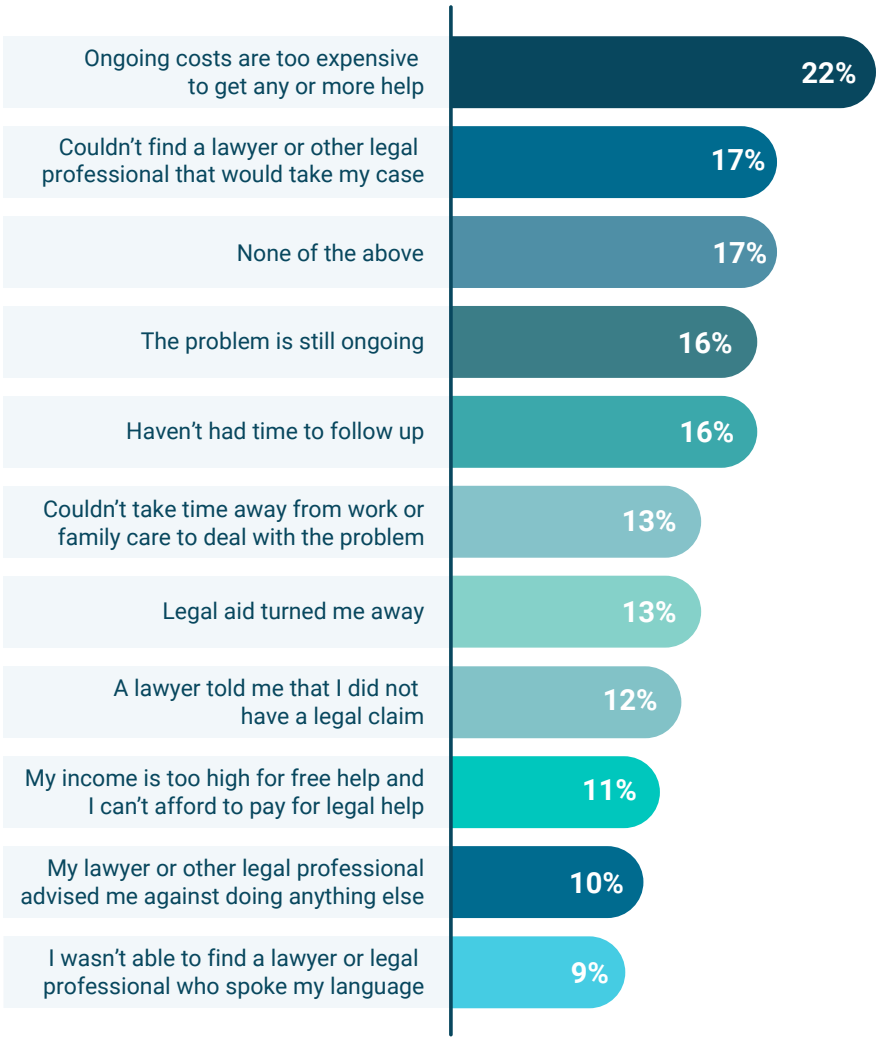
Note: Results reflect problems (N = 9,331) and is based on figure 5K in the 2024 NORC report.

11 This question was shown to respondents who indicated they did not speak to a lawyer. There were two response options ("I don't know" and "I would be willing to go to a lawyer only if I don't have to pay anything up front, the lawyer gets paid only if I win") and a free response option where respondents wrote in the amount they would be willing to pay if they did not select one of the two response options.
12 Source: CLIO; https://www.clio.com/resources/legal-trends/compare-lawyer-rates/.

Californians report that they do not receive all the legal help they want for one in five problems they seek help for due to the expense of ongoing costs.

Californians who do not receive any or as much legal help as they wanted were asked, "Why haven't you gotten all the legal help you wanted?" They responded that they are not able to receive all the help they want for about one in five of the problems they seek help for, due to it being too expensive to continue seeking help (see figure 19). Other reasons include being unable to find a lawyer or other legal professional to take their case, their cases are ongoing, and not having enough time to follow up.

Figure 19: Percent of Problems for Which Californians Do Not Receive All the Legal Help They Want by Reason Cited



Note: Results reflect problems (N = 1,102) and is based on figure 5L in the 2024 NORC report.

How California Compares With The Nation

- About 4 in 10 lowest-income Americans and Californians do not believe that lawyers or legal professionals can help resolve many of their civil legal problems.
- Lowest-income Americans and Californians have similar perceptions regarding the fairness of the civil legal system and its ability to help them solve important problems. However lowest-income Californians are more likely than lowest-income Americans to believe that people like them can use the system to protect and enforce their rights.

CONCLUSION

The civil justice gap in California remains wide and persistent. Californians' civil legal needs appear to be growing: In 2019, just over half of households experienced a civil legal problem in the prior year, but today, seven in 10 reports at least one such problem, with households experiencing an average of six problems each. Consumer and health care issues were the most common problems across all income groups. Critically, one in four households faced civil legal problems that substantially impacted their financial, physical, mental, or relational well-being—burdens felt most acutely among California's lowest-income households.

Yet, despite this growing need, help remains out of reach for most. Most Californians still do not seek legal assistance, even for problems that significantly impact their lives. When Californians speak to lawyers, they are told they have a valid case and should pursue legal action for one in three of their problems—and for one in five, they are told their case is valid but not financially worthwhile for the lawyer to pursue.

Californians continue to receive no or insufficient help for 85 percent of their civil legal problems overall—a figure virtually unchanged from five years ago. The gap persists even for substantial problems, with 77 percent remaining unresolved. Despite the widespread nature of consumer and health care issues, Californians seek legal help for only one in 10 of these problems.

Barriers are both practical and perceptual: Californians believe a lawyer could resolve only one-third of their problems, and concerns about affordability remain high, especially among lower-income households. These findings show that California's civil justice gap is enduring.

THE NEED FOR IMMIGRATION LEGAL SERVICES

Over a quarter of Californians—approximately 11 million—are foreign born, with nearly 5 million (45 percent) without U.S. citizenship.[13] Immigrants experience civil legal needs in areas including health care, housing, and safety, with their legal issues often compounded by lack of access to visa, asylum, and deportation defense. Individuals living at or below 200 percent of the federal poverty level can seek services from legal aid organizations. However, as will be shown below, demand for these services has increased, driven in part by uncertainty surrounding the impact of President Trump's immigration policy agenda. This section examines the need for immigration services and available resources to meet those needs.



13 U.S. Census Bureau, Selected Social Characteristics in the United States: 2023 American Community Survey 1-Year Estimates (DP02), 2023.

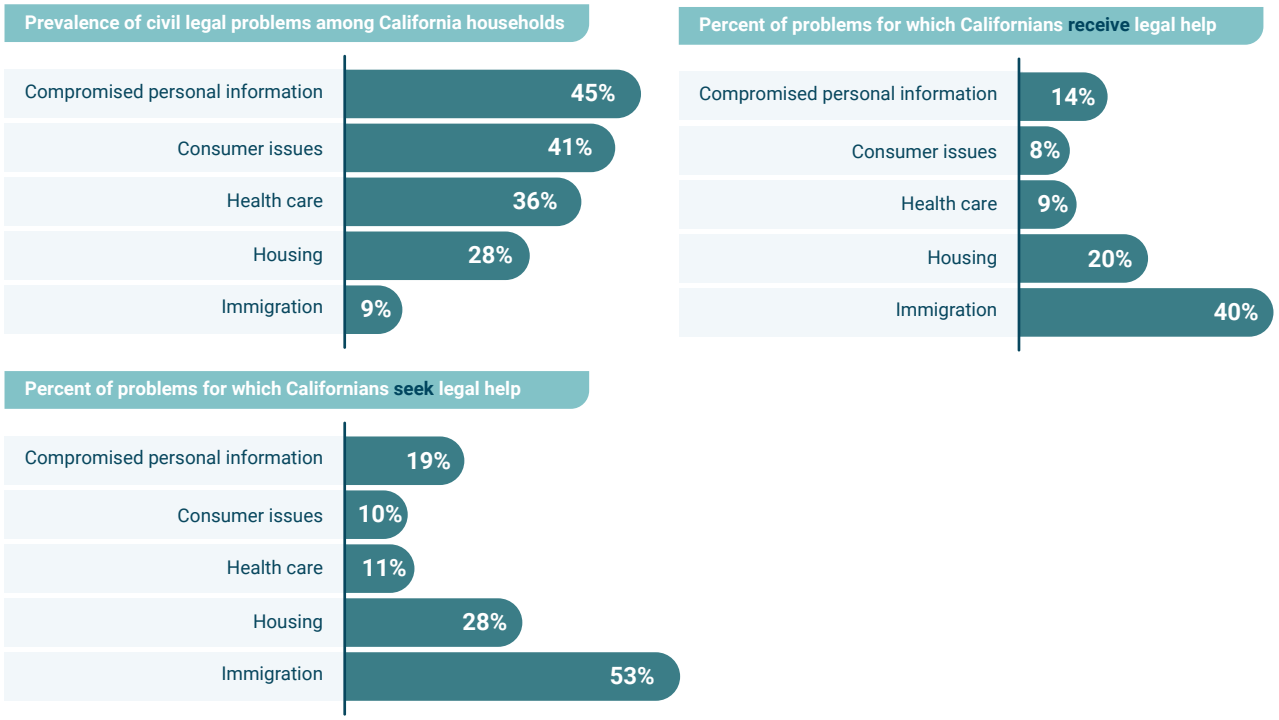
THE DEMAND FOR IMMIGRATION LEGAL SERVICES

In 2024, the NORC at the University of Chicago surveyed Californians regarding their civil legal needs. As summarized in "Measuring Californians' Unmet Civil Legal Needs," most California households across all income groups experienced at least one civil legal issue in the previous 12 months, and they did not seek or receive legal help for most of these problems. The most prevalent legal problems relate to compromised personal information, consumer issues, health care, and housing. Two of the nearly 90 civil legal problems presented in the NORC survey pertained to immigration. Specifically, survey respondents were asked: Have you or anyone in your household "needed to fill out or file paperwork or legal documents relating to U.S. immigration" or "attended court, trial, or other legal actions related to U.S. immigration?"

Nearly one in 10 California households has experienced a civil legal problem related to immigration in the last 12 months.

Nearly one in 10 California households reported having experienced a civil legal problem related to immigration.[14] Californians are more likely to seek and receive legal help for issues related to immigration than any other type of civil legal problem, including problems related to compromised personal information, consumer issues, healthcare, and housing. Californians sought legal help for more than half of the immigration problems they faced (53 percent) and received legal help for 40 percent of them (see figure 20).

Figure 20. Prevalence, Help Seeking, and Help Received for Civil Legal Problems Experienced by California Households



14 It should be noted that this number may be underreported. Immigrants, especially those with precarious legal status, may be hesitant to disclose their immigration-related legal issues due to concerns about confidentiality, potential legal consequences, or distrust of institutions collecting the data.

Over eight in 10 State Bar-funded legal aid organizations report an increase in requests for immigration legal services since the 2024 national election.

President Trump's immigration agenda has emphasized stricter enforcement, expanded deportation efforts, reduced legal immigration pathways, increased restrictions on asylum and refugee admissions, heightened immigration raids, and has included changes to the Temporary Protected Status program. In early 2025, the State Bar of California surveyed over 100 legal aid organizations receiving grants to provide civil legal aid to learn how organizations cope with this shifting federal policy landscape and determine what support is needed.[15] Most organizations (68 percent) reported an increase in requests for services since November 2024, and 84 percent reported an increase in immigration-related service requests.



IMMIGRATION LEGAL SERVICES LANDSCAPE

Immigrants can seek legal help from private attorneys, nonprofit legal aid organizations, and community-based organizations specializing in immigration law. Despite the significant need for immigration legal services, the supply of attorneys specializing in immigration law remains limited—just 2 percent of active attorneys in California self-report practicing immigration law, and 5 percent of certified legal specialists are certified in immigration and nationality law.[16] Immigrants who meet income eligibility criteria often rely on organizations that offer free or low-cost services rather than hiring private attorneys. This section outlines key providers and resources across California, highlighting the general landscape of immigration legal services rather than providing a comprehensive inventory.

Legal Aid Organizations Funded by the State Bar of California

As discussed in the section on funding for legal aid in this report, the State Bar, through the Legal Services Trust Fund Commission, is the largest single funder of legal aid organizations in California. In 2024, 110 legal aid organizations received over $180 million in funding through the State Bar, 89 of which were "direct service" organizations that regularly provide individuals with attorney representation. Of the 89 direct service organizations that received State Bar funding, the majority (60) provided immigration-related services. Examples of services offered include assistance with obtaining citizenship, seeking asylum, immigration detention and deportation, and rapid response to crises.



In 2023, State Bar-funded legal aid organizations provided services related to over 8,000 immigration legal matters.

- **1,948** benefits related to immigrant status obtained, including travel documents and AB 60 driver's licenses
- **1,836** individuals gained citizenship
- **1,717** employment authorizations obtained
- **833** permanent residencies secured
- **761** other legal or quasi-legal statuses obtained
- **623** deportations prevented
- **590** asylums granted
- **28** releases from immigration custody achieved

15 The survey of 115 organizations was conducted in January 2025 and the response rate was 63 percent.
16 California attorneys report practice areas to the State Bar on their My State Bar Profile, for display on their public profile. Specialists are certified by the State Bar of California, as provided for under California Rule of Court 9.35, by meeting specified requirements of testing and experience in a particular field of law.

California Department of Social Services

The California Department of Social Services (CDSS) provides funding to organizations that offer free legal services to immigrants across the state. Examples of recent funding include the following:

$36,8M

to 85 organizations to support immigration legal services, education and outreach, legal training and technical assistance, and supportive services;

$23,9M

to the Removal and Defense program, supporting 27 organizations in providing legal services for individuals requiring deportation defense; and

$4,2M

to the Youth Legal Services to provide legal services to immigrant youth and unaccompanied undocumented minors.[17]

Department of Justice's Recognition and Accreditation Program

The U.S. Department of Justice's Recognition and Accreditation Program, established over 60 years ago, expands legal representation for low-income people in immigration-related matters. This program permits Accredited Representatives, nonattorney employees, and volunteers to practice immigration law before the federal government through Recognized Organizations and nonprofit organizations providing immigration legal aid to low-income people. Over 500 Accredited Representatives served in one of 141 Recognized Organizations across California in 2024.[18] In 2023, 13 of the 50 State Bar-funded organizations that provided immigration services were Recognized Organizations. These 13 organizations provided 54 percent of all immigration legal cases served by extended services across all 50 organizations.[19] This research suggests that engaging Accredited Representatives enhances an organization's capacity to offer extended immigration legal services.

The State Bar has conducted extensive research and outreach among its grantee organizations and institutional partners (such as California state agencies and the federal Department of Justice) regarding the value of becoming a Recognized Organization, using Accredited Representatives, and securing funding for these services in California. Efforts have included convening focus groups and presenting on the Recognition and Accreditation program at conferences and webinars.

17 California Department of Social Services, Immigration Services, n.d.
18 State Bar of California. Accredited Representatives: Bridging California's Immigration Legal Services Gap, 2024. The 141 Recognized Organizations have 280 offices that provide services. Nationwide, there were 850 Recognized Organizations and 2,290 Accredited Representatives as of August 2023.
19 Extended services typically involve providing representation in administrative proceedings. Issues handled through extended services are more likely to be fully resolved than those addressed through limited services.

Immigration Consultants

California Business and Professions Code section 22440 defines immigration consultants as individuals who provide nonlegal assistance on immigration matters. Immigration consultants must register with the California Secretary of State, pass a background check, and pay a $100,000 corporate surety bond.[20] They are not authorized to provide legal advice or representation for immigration matters. However, they are permitted to provide a variety of nonlegal assistance, including translating a client's answers to questions on state or federal forms, translating information on state or federal forms for a client, obtaining copies of supporting documents needed for state and federal forms, submitting completed forms to the United States Citizenship and Immigration Services office, and referring clients to appropriate legal representation. As of March 2025, there were around 1,400 active immigration consultants in California.[21]



State Bar Efforts to Educate the Public About Immigration Legal Service Fraud

Only attorneys with active law licenses and accredited representatives are authorized to provide legal advice in California.[22] Providing legal advice without a license or while a license is suspended is considered the unlawful practice of law (UPL). To protect the public from UPL, the State Bar actively educates the public on finding reliable legal help and protecting themselves from immigration legal sevices fraud. The State Bar website offers various resources, including information on accessing immigration-related services, instructions on filing complaints in multiple languages against those engaging in UPL, and guidance on when to act. The State Bar established a UPL unit to investigate complaints to strengthen enforcement efforts, processing 17,360 UPL cases in 2023 alone. Many of these cases involved individuals targeting immigrant communities by posing as notaries, who are not licensed attorneys and are prohibited from offering legal advice and representing clients in court. Additionally, in 2023 the State Bar created the Office of the Public Trust Liaison (OPTL), which has expanded efforts to educate the public about the complaint process and how to avoid becoming victims of immigration fraud. OPTL engages directly with immigrant communities through recorded informational videos, radio, and social media campaigns as well as appearances on Spanish-language news broadcasts, providing critical guidance on identifying and avoiding fraudulent legal services.

20 California Secretary of State, Immigration Consultants, n.d.
21 California Secretary of State, Immigration Consultant Search, 2025.
22 Attorneys who practice only federal law, such as immigration, may practice in California but be licensed in another state. In these instances, attorneys can verify their licensing status by asking for their bar number and state and searching the directory for that state.

CONCLUSION

There is a consistent prevalence of immigration legal needs across all income groups. Californians are more likely to seek and receive legal help for immigration-related matters than for other civil legal problems. However, only around one-third of the immigration problems faced by California's lowest-income and middle-income households receive legal help for their immigration legal needs. The demand for immigration-related legal services is already rising, given the federal immigration policy landscape, with 84 percent of State Bar-funded legal aid organizations reporting increased service requests since the 2024 presidential election. While Governor Newsom approved Senate Bill 2, which provides an additional $25 million in funding for free legal services to support immigrant communities vulnerable to this changing federal landscape, that amount is likely insufficient to meet the legal needs of Californians.[23] Given the unmet legal immigration needs of middle-income people, there is also a need for fee-for-service attorneys who offer affordable immigration services.

Collecting comprehensive data on the intersection of immigration legal needs with other civil issues—such as housing and employment—is essential in developing targeted interventions. Understanding whether immigration concerns are primary or secondary would enable service providers to allocate resources effectively and address the multifaceted challenges immigrant communities face. Finally, 25 counties throughout California are not served by a legal organization participating in the Recognition and Accreditation Program. Although residents in these counties may access Accredited Representative services from Recognized Organizations in other counties, expanding the program to organizations within these underserved counties is essential to ensure equitable access to immigration legal services. To that end, the State Bar has recommended increasing the number of Accredited Representatives and Recognized Organizations by expanded training and funding, growing consumer awareness, and strengthening public protection related to the immigration-related justice gap in California.

23 California State Legislature, Senate Bill 2: Budget Act of 2024, 2025. This bill provides additional funding for three current state programs: $10 million to the Equal Access Fund (administered through the State Bar), $10 million to immigrant services provided by the CDSS, and $5 million in additional funding to the California Access to Justice Commission for grants to legal service providers.

CIVIL LEGAL NEEDS OF CRIMINAL DEFENDANTS

Across California, thousands of residents face civil legal challenges involving essential needs, such as housing, access to healthcare, and issues around child custody and visitation. Such challenges can be further compounded for individuals involved in the criminal justice system. The socioeconomic realities of public defender clients often mean they are at greater risk of experiencing civil justice gaps, making them a critically underserved population.

In fall 2024, the State Bar surveyed California public defenders to shed light on the intersection of civil legal needs and involvement in the criminal justice system. The survey was distributed to public defender contacts in all 58 counties.[24] Recipients were asked to fill out the survey if they were public defenders and to forward it to other public defenders within their offices. The State Bar received at least one response from 37 out of 58 counties. For 15 counties, more than one public defender participated in the survey; this resulted in 89 completed surveys.[25]

The findings discussed are not definitive but rather point to opportunities for further analysis to better understand the civil legal needs and barriers faced by public defender clients. Moreover, it is important to keep in mind that the results reflect public defenders' perceptions and professional understanding of their clients' civil legal needs and barriers to receiving legal help; a survey of criminal defendants might yield different insights. The findings below are intended as an exploratory first step in examining this understudied aspect of the justice gap.



24 The majority (33) of California counties operate public defender offices staffed by county-employed attorneys, providing legal representation to defendants who cannot afford private counsel in criminal cases. In the remaining 25 counties, public defender services are provided through private law firms or assigned counsel, such as a panel of attorneys. For these counties, the survey was sent to the State Bar's contacts for public defender services under the Community Assistance, Recovery, and Empowerment (CARE) Act, typically within the county's administrative/executive office or county counsel's office. The State Bar requested these contacts to share the survey with their public defender contractors.

25 Contra Costa County had 12 participants and Santa Cruz County had 11.

Nearly 90 percent of public defenders reported that their clients experienced civil legal issues that substantially impacted their lives or the lives of others in their households.

Public defenders were asked to reflect on the clients they served throughout 2024, including those they were assisting at the time of the survey. They were asked: "Did your clients experience any civil legal issues during the time you represented them that, in your opinion, substantially impacted their lives or the lives of others in their household?" Most (88 percent) responded "Yes" to this question. Respondents who answered "Yes" were asked a series of follow-up questions. Key findings include:

- Nearly half (44 percent) of public defenders estimated that most of their clients had unmet civil legal needs that substantially affected their lives or the lives of others in their households.[26]
- The majority (59 percent) estimated that only a few of their clients sought help from a lawyer or legal professional for their civil legal problems.[27]
- The most common civil legal issues identified by public defenders as substantially affecting their clients were housing (71 percent), immigration (58 percent), and family law (48 percent).

Nearly all public defenders reported that their clients cited the high cost of legal services for not seeking legal help.

When asked what reasons their clients give for not seeking help from a lawyer or a legal professional for their civil legal problems, nearly all public defenders (96 percent) identify the high cost of legal services, and 84 percent pointed to clients' lack of knowledge on how to find legal assistance. Additionally, nearly one-third of public defenders indicated that clients refrained from seeking legal help due to lack of time (32 percent) and fear of pursuing legal action (32 percent). See figure 21. Thirteen percent of public defenders selected the response option "Some other reason" and noted additional insights into why clients do not seek legal help from a lawyer or legal professional for their civil legal problems in an open-ended response.[28] Their insights include the following factors:

- Lack of awareness, such as not recognizing that they have a civil legal problem or that legal help is available;
- Personal barriers to accessing legal help, such as language barriers and disabilities;
- Limited availability of resources in their area;
- Feelings of being overwhelmed by their circumstances; and
- A lack of community support to guide or encourage them.

26 "Most" was defined as 76–99 percent of clients. An additional one percent of public defenders reported that all (100 percent) of their clients had unmet civil legal needs.
27 "A few" was defined as 1–25 percent of clients.
28 The themes of open-ended responses were generated with artificial intelligence using Google NotebookLM.

Figure 21. Reasons Criminal Defendants Do Not Seek Legal Help for Civil Legal Issues According to Public Defenders



Note: Survey respondents were asked, "What reasons do your clients give about why they don't seek help from a lawyer or legal professional for their civil legal problems?"

Most public defenders reported directing their clients to legal aid organizations to seek help with their civil legal problems.

Most public defenders (84 percent) reported directing their clients to legal aid organizations for assistance with their civil legal problems. Nearly three-quarters (73 percent) directed their clients to self-help centers and 67 percent directed them to community-based organizations. Around 30 percent of public defenders also referred clients to legal helplines, online legal resources, and public county law libraries for assistance with their civil legal problems.

Public defenders offered unique insights into their clients' civil legal needs, particularly surrounding areas of housing, immigration, and healthcare, noting a shortage of resources and legal aid services in some counties.

Public defenders were asked to share additional insights or comments about their clients' civil legal needs in an open-ended, free-response question.

- Housing instability is a recurring theme across multiple responses. Public defenders report clients facing eviction, inadequate housing conditions, and a general lack of affordable housing options. They reported that lack of sufficient legal aid services in many counties exacerbates this problem, leaving individuals ill-equipped to navigate complex housing laws and protect their rights.
- Access to immigration services is another critical area of need. Respondents describe clients struggling to find and afford legal representation for immigration-related matters.
- Difficulties accessing healthcare were also frequently mentioned.
- Many respondents emphasized insufficient resources and legal aid services to address these needs. One respondent describes their county as a "resource desert," with limited access to legal and other essential services. Another noted that even pro bono clinics often turn away potential clients due to overwhelming demand.

CONCLUSION

The survey results, while exploratory, shed light on the often-overlooked problems faced by California criminal defendants. The vast majority of public defenders reported that their clients had civil legal needs that substantially affected their lives or the lives of others in their household and much of the need was unmet, with housing, immigration, and family law emerging as the most prevalent concerns. The results underscore the importance of public defenders not only addressing criminal cases but also being armed with robust and current information about civil legal resources to respond to their clients' other significant needs.



LEGAL NEEDS OF SMALL BUSINESSES OWNERS

While California's lowest-income individuals can access legal aid organizations and corporations often employ dedicated legal teams, the state's 4.1 million small businesses[29] are frequently underserved and are overlooked when discussing the justice gap. Without affordable legal help, small businesses can face legal risks, lost opportunities, and potential failure. Since small businesses often provide jobs and services vital to their local communities, the impacts of their struggles extend beyond their doors. In fact, small businesses support 2.6 million jobs annually and 45 percent of them are minority-owned.[30]

To better understand the legal needs of small business owners in California, the State Bar partnered with the California Office of the Small Business Advocate (CalOSBA) to conduct a brief survey of business owners affiliated with CalOSBA to learn about their legal needs related to operating a business and barriers that prevent those legal needs from being met, and to identify areas where the State Bar of California might help.[31] The following analysis is based on the 121 business owners who participated in the survey. Given the low survey response rate, the results discussed may not fully represent all small businesses in California, but they highlight opportunities for further exploration of their needs.



29 The CalOSBA supports economic growth by providing resources and support to California's small businesses, including nonprofit organizations and startups, and fulfills its mission in several ways, including its SCALE (Success, Capital Access, and Leadership for Entrepreneurs) network that provides consulting and training to support small businesses.

30 California Office of the Small Business Advocate, The State of Diverse Businesses in California: Economic, Fiscal, and Social Impact Analysis (2023).

31 This survey focuses on legal needs associated with operating a business. The types of legal needs included in the survey were identified by the State Bar through secondary research conducted on this topic. These needs are distinct from the 84 types of civil legal needs explored by the 2024 California Justice Gap Survey, as discussed in "Measuring Californians' Unmet Civil Legal Needs." CalOSBA solicited participation in the survey through its monthly newsletter reaching approximately 16,600 business owners in California and encouraged several partner organizations to promote the survey. The survey was open from October 28, 2024, to November 26, 2024.

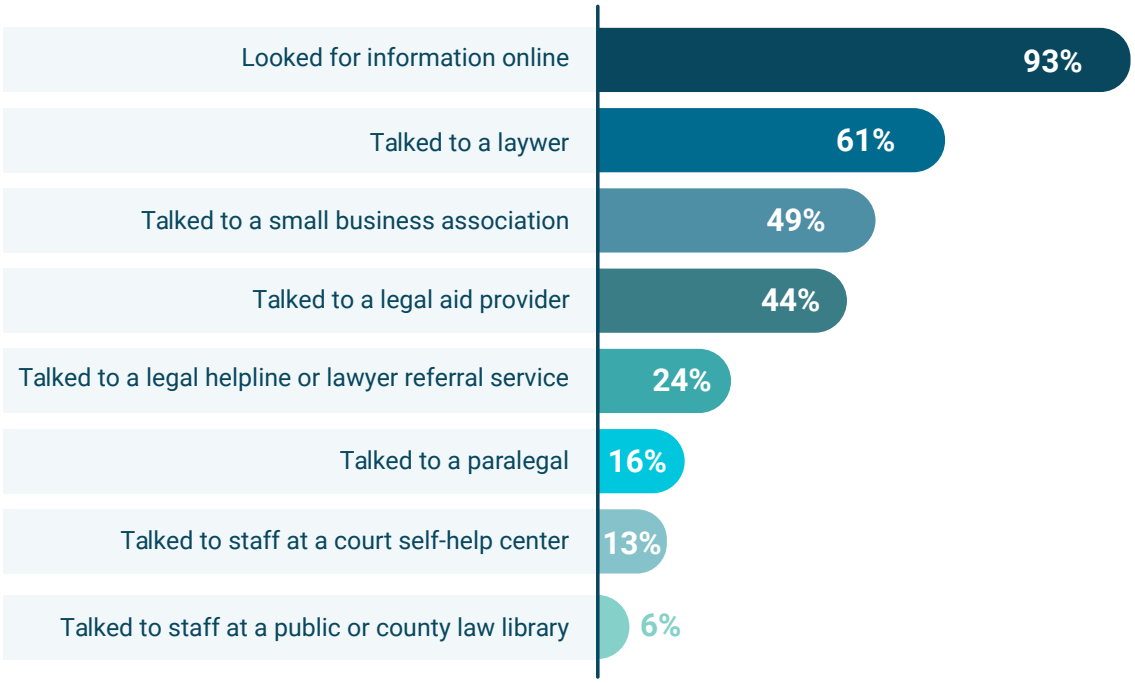
When asked to reflect on the 2023 calendar year, 40 percent of small business owners reported having at least one legal need. Half of those reporting a legal need identified a need related to contracts and agreements.

Small business owners were asked to report how many legal needs their business experienced in 2023 and 40 percent reported having at least one legal need. Of those with identified legal needs, an average of four needs per business owner was reported. The most frequent legal need for small business owners in 2023 (50 percent) was related to drafting, reviewing, and negotiating contracts and agreements. Other commonly reported legal needs related to tax law and financial legal advice (40 percent) and to compliance, governance, and licensing/permits (38 percent).

When seeking help, small business owners were more likely to look for information online than talk to a lawyer.

Small business owners were asked a series of questions about their most recent legal need, regardless of when it occurred. Figure 22 shows the sources of help that small business owners sought to address their most recent legal need. Almost all owners (93 percent) looked for information online while only 61 percent talked to a lawyer. Less than half talked to a small business association while an additional 44 percent talked to a legal aid provider. Just one in four (24 percent) talked to a legal helpline or lawyer referral service.

Figure 22. Sources of Help Small Business Owners Used to Address Most Recent Legal Needs



Note: Respondents were asked, "Thinking about your most recent legal need, did you do any of the following?" They were given the option to select "yes" or "no" for each response option listed in figure 1.

Over three-quarters of small business owners who sought help wanted legal advice about their specific situation and what actions they should take.

Small business owners were asked to identify the nature of the legal help they sought to address their most recent legal need; their responses are shown in figure 23. The most frequently sought type of legal help, by far, was legal advice about their specific situation and what actions they should take.

Figure 23. Nature of Legal Help Small Businesses Sought to Address Most Recent Legal



Note: Respondents were asked, "What kind of legal help were you seeking to address your most recent legal need? Select all that apply."

More than two-thirds of small business owners reported being worried about the cost involved with talking to a lawyer.

Survey respondents were asked why they did not seek legal help. Over two-thirds (67 percent) reported that they were worried about the cost involved with talking to a lawyer.[32] Another 35 percent reported that they did not know how to find help and 27 percent reported not having the time. An additional 30 percent of small business owners selected "Other"; the themes of the "Other" write-in responses included financial constraints, difficulty finding lawyers with relevant expertise or interest, and lawyer unresponsiveness.

32 The survey question regarding barriers to seeking help ("What prevented you from seeking legal services related to your most recent legal need? Select all that apply.") was presented to respondents who reported that they did not seek help from at least one source of help reported in figure 22.

Among business owners whose most recent legal needs were not met, 85 percent reported being impacted financially through lost business or revenue and the prevention of business growth.

Small business owners were asked if their most recent legal need was completely met at the time they completed the survey and approximately 58 percent reported that it had not been. Figure 24 shows the different impacts small business owners faced when their legal needs were unmet. The top three impacts were: (1) financial (e.g., lost business/revenue, prevented business growth); (2) time (e.g., resources taken away from the business); and (3) emotional (mental health and well-being).

Figure 24. Top Three Impacts of Unmet Legal Needs for Small Business Owners



Note: Respondents were asked, "What has been the impact of not getting your legal needs related to your most recent legal need completely met?"

Small business owners reported that increased access to reduced fee or free legal services would best improve their ability to obtain the legal services needed for their businesses.

Small business owners were asked to share in an open-ended format about what would improve their ability to obtain the legal services needed for their business. Many responses highlighted cost as a significant barrier to obtaining legal services for small businesses and suggested that reduced fee or free legal services would significantly improve the ability to obtain legal assistance. Other themes that were highlighted in the responses included:

- More options for contingency arrangements in response to small business owners experiencing frustration with lawyers prioritizing billable hours over client needs.
- Clearer directories with detailed information about lawyers' areas of expertise and rates to improve the ability to find the right lawyer. The need for a referral system with ratings or grades to help identify competent lawyers and a centralized institution to connect small businesses with the appropriate help.
- Free consultations and easy-to-find resources from organizations like the Small Business Association, recorded webinars, clear explanations of legal concepts, and simplifying the laws could make legal navigation easier for small business owners.
- Improved professionalism and accountability within the legal field due to negative experiences with lawyers like unreturned calls and fear of retaliation for negative reviews.[33]

33 The themes of the open-ended responses were generated with artificial intelligence using Google NotebookLM.

CONCLUSION

The challenges small business owners face in addressing their legal needs highlight an often-overlooked aspect of California's justice gap. Survey results show that many struggle to access affordable legal support, leaving them vulnerable to disputes, exploitation, and financial instability. Common barriers include high costs, lack of knowledge about finding legal help, and time constraints due to the demands of business operations. These challenges do not only affect business owners but also harm local communities through job losses and reduced economic activity.

THE SUPPLY AVAILABLE
TO MEET DEMAND

This section of the report explores key elements of California's legal services landscape. It includes an analysis of the state's $57.8 billion legal market; an exploration of how shifts in the active attorney population (currently over 196,000) and persistent attorney scarcity in some areas of the state have led to attorney "deserts." It also provides an overview of the pro bono policy landscape, service patterns, the role of legal aid organizations and their funding sources, and emerging strategies to expand the number of attorneys working to advance access to justice.



THE JUSTICE GAP: ***A MARKET-BASED PERSPECTIVE***



BACKGROUND

The for-profit legal market describes the network of lawyers, law firms, and other providers that offer legal services. The legal market can generally be categorized into individual client and organizational client sectors.[34] The individual, or PeopleLaw sector, describes lawyers who provide legal services to individuals, whereas the organizational sector refers to lawyers who primarily serve businesses, corporations, and government entities. As discussed in The Prevalence of Civil Legal problems section of the NORC report, 73 percent of California households experienced at least one civil legal problem in the past year, with an average of six; 85 percent of these problems received inadequate or no legal help. This statistic suggests that there is significant demand for the services of the PeopleLaw sector. To better understand the California legal market as a whole, the State Bar of California commissioned a 2024 Legal Market Landscape Report. This report updated a 2018 study, the 2018 Legal Market Landscape Report, by adding more detailed analyses on California. One of the key findings of the 2018 report was that three-quarters of all law firm revenue was generated from organizational clients. The 2024 Legal Market Landscape Report corroborates the significant divide between the organizational and PeopleLaw sectors in the California context. The narrative that follows is a summary of the report's key findings and conclusions.

34 See Jerome E. Carlin, Lawyers on Their Own: A Study of Individual Practitioners in Chicago (Rutgers University Press, 1962).

LEGAL MARKET OVERVIEW

California's legal market was valued at an estimated $57.8 billion in 2022,[35] encompassing the largest legal economy in the nation for individual clients by a wide margin of $14.1 billion. Despite having the largest PeopleLaw sector by consumer spending in the country, the majority of California's legal market revenue (75.6 percent) was generated from organizational clients.

Table 3 summarizes the estimated size and composition of the five largest state legal services economies.[36] In 2017, these five states accounted for 50.9 percent of the national legal services economy.

Table 3. Five Largest State-Based Legal Economies

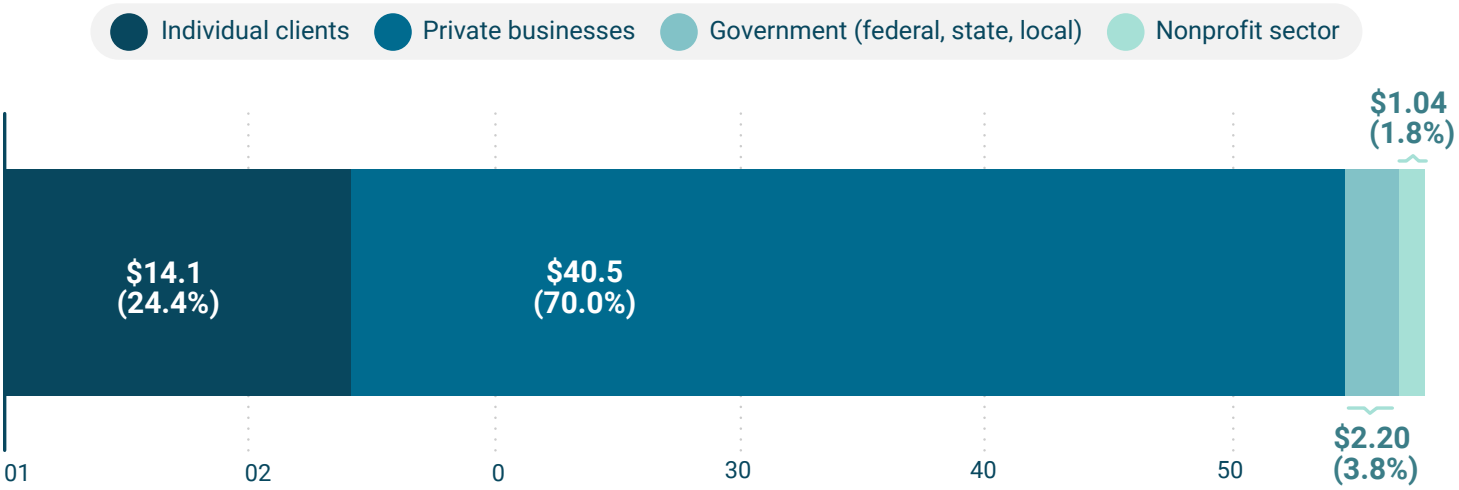
State	Total (billions)	Percent of U.S. legal economy	Organizations (billions / percent)	Consumers (billions / percent)
New York	$61.1	15.8%	$53.2 (87.1%)	$7.9 (12.9%)
California	$57.8	15.0%	$43.7 (75.6%)	$14.1 (24.4%)
Texas	$25.2	7.6%	$21.3 (72.8%)	$8.0 (27.2%)
Florida	$25.2	6.5%	$16.1 (64.1%)	$9.0 (35.9%)
Illinois	$23.0	5.9%	$18.2 (79.4%)	$4.7 (20.6%)
United States	$385.9	100.0%	$285.2 (73.9%)	$100.7 (26.1%)

Source: Data from the 2017 Economic Census, U.S. Census Bureau, which excludes tax-exempt organizations such as legal aid. Adjusted based on U.S. Gross Domestic Product (GDP) through 2022. Population data from U.S. Census Bureau. Table and calculations by Legal Evolution PBC.

35 This estimate was based on the U.S. Census Bureau's 2017 Economic Census figure of $44.6 billion for California's legal economy, North American Industry Classification System (NAICS) 5411, adjusted upward for the increase in the California Gross Domestic Product (GDP) through 2022. Economic Census data for 2022 was not available at the time this report was written.
36 Table 3 was adapted from table 3 in the 2024 Legal Market Landscape Report.

Figure 25 provides a more detailed look at the estimated size and breakdown of California's $57.8 billion legal services market.[37]

Figure 25. California Legal Services Economy



Source: Estimates based on U.S. Census Bureau Economic Census (2017), North American Industry Classification System (NAICS) 5411, adjusted for change in California Gross Domestic Product (GDP). Dollar amounts are shown in billions.

Of California's $57.8 billion legal services market, $40.5 billion of the total receipts for all organizations came from private for-profit businesses, $1.04 billion from nonprofit organizations, and $2.2 billion from state, local, and federal governments.

ORGANIZATIONAL SECTOR

The organizational sector comprises lawyers working in private practice law firms, lawyers working in-house, and lawyers working for the government. Table 4 provides a breakdown of the number of employed California lawyers within each of these practice settings.[38]

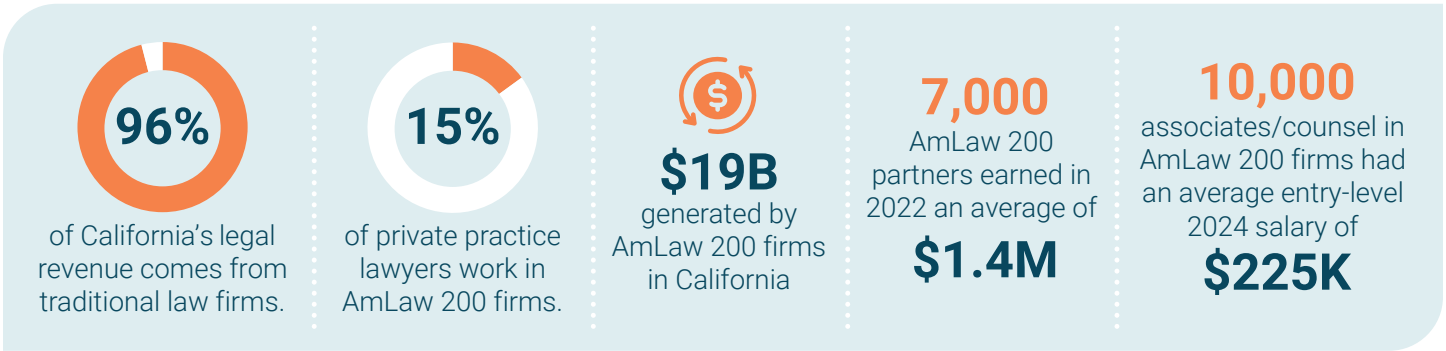
37 Figure 25 was adapted from figure 3 in the 2024 Legal Market Landscape Report.
38 Table 4 was adapted from table 4 in the 2024 Legal Market Landscape Report.

Table 4. Number and Average Salary of Lawyers by Practice Setting, 2023, United States and California

Practice setting	Number of lawyers: United States	Number of lawyers: California	Number of lawyers: Percent of lawyers in California	Average lawyer salary: United States	Average lawyer salary: California	Average lawyer salary: Percent of California salary over United States average
Private practice	445,110	58,910	13.2%	$182,020	$215,890	18.6%
Government	145,440	18,430	12.7%	$131,350	$170,930	30.1%
In-house	138,830	16,960	12.0%	$206,864	$253,544	22.6%
All employed lawyers	729,380	94,300	12.9%	$176,643	$213,864	21.1%

Source: Data from U.S. Bureau of Labor Statistics, employment for Lawyers (Standard Occupational Classification code 231011), May 2023. Calculations by Legal Evolution PBC. "All employed lawyers" are limited to those working in private practice, government, and in-house. The column "percent of lawyers in California" reflects the percentage of lawyers nationwide who are in California.

Most of the revenue from California's organizational sector (95.6 percent) is generated by traditional law firms. Approximately 15 percent of California lawyers working in private practice work for AmLaw 200 firms.[39] The 147 AmLaw 200 firms based in California generated about $19 billion in fiscal year 2022, nearly one-third of the state's overall $57.8 billion legal services market. There are approximately 7,000 AmLaw 200 partners based in California, and they earned an average compensation of $1.4 million in 2022. An additional 10,000 California lawyers work as associates or counsel in AmLaw 200 firms, where the average entry-level annual salary was $225,000 in 2024. In contrast, the majority of California lawyers work at smaller law firms that serve a combination of individual clients and small- to medium-sized businesses.



Of California's almost 780,000 businesses, about two thirds (527,000) generate less than $1 million in revenue annually. Using the average number of employees for companies in the lower-revenue categories, most California businesses fit the U.S. Small Business Administration's definition of a microbusiness (one to nine employees).

39 An AmLaw 200 law firm refers to a law firm that is included on the American Lawyer's annual list of the 200 most successful firms in the United States, based on factors such as revenue, profit per partner, and headcount.

Although a specific subset of law firms serve these small businesses, they remain an important population to highlight, as they are at risk of being underserved by lawyers. To better understand the legal needs of small business owners in California, the State Bar of California partnered with the California Office of the Small Business Advocate (CalOSBA) to learn about small business legal needs and barriers that prevent those needs from being met, and to identify areas where the State Bar might help (see "Legal Needs of California's Small Business Owners" in this report). In 2023, 40 percent of small business owners reported having at least one legal need, with about half of those reporting a legal need relating to contracts and agreements. Approximately 58 percent of small business owners indicated that their legal needs were not completely met at the time the survey was taken. Worry about the cost involved with talking to a lawyer was reported as small business owners' most common barrier to getting their legal needs met. They also reported not knowing how to find legal help and not having the time to get legal help as other significant access challenges.



As shown in table 5, California's local government sector has added lawyers considerably faster than the national average (16.0 percent versus 6.6 percent);[40] this increase may be related to several factors. First, California's sizable population has resulted in many large cities and high-density counties, making the establishment of municipal legal departments more cost-effective than reliance primarily on law firms. These highly populated cities, counties, and regions may also contribute to increased complexity and breadth of programs administered, similarly triggering a need for additional lawyers.

Table 5. Growth of Government Lawyer Employment and Salaries in California and the United States

Employment						
Level of government	**2016**	**2023**	**Percent change**	**2016**	**2023**	**Percent change**
Local	9,720	11,280	16.0%	53,640	57,160	6.6%
State	3,950	4,470	13.2%	41,340	47,650	15.3%
Federal	2,490	2,680	7.6%	36,510	40,630	11.3%
All gov't	16,160	18,430	14.0%	131,490	145,440	10.6%
Average salary						
Level of government	**2016**	**2023**	**Percent change**	**2016**	**2023**	**Percent change**
Local	$147,010	$179,290	22.0%	$100,940	$132,290	31.1%
State	$119,170	$154,140	29.3%	$93,320	$106,420	14.0%
Federal	$138,370	$163,770	18.4%	$135,840	$159,280	17.3%
All gov't	$138,874	$170,930	23.1%	$108,235	$131,354	21.4%

Source: U.S. Bureau of Labor Statistics, Occupational Employment and Wage Statistics, Standard Occupational Classification code 231011, for 2016 and 2023. Calculations by Legal Evolution PBC.

40 Table 5 was adapted from table 12 in the 2024 Legal Market Landscape Report.

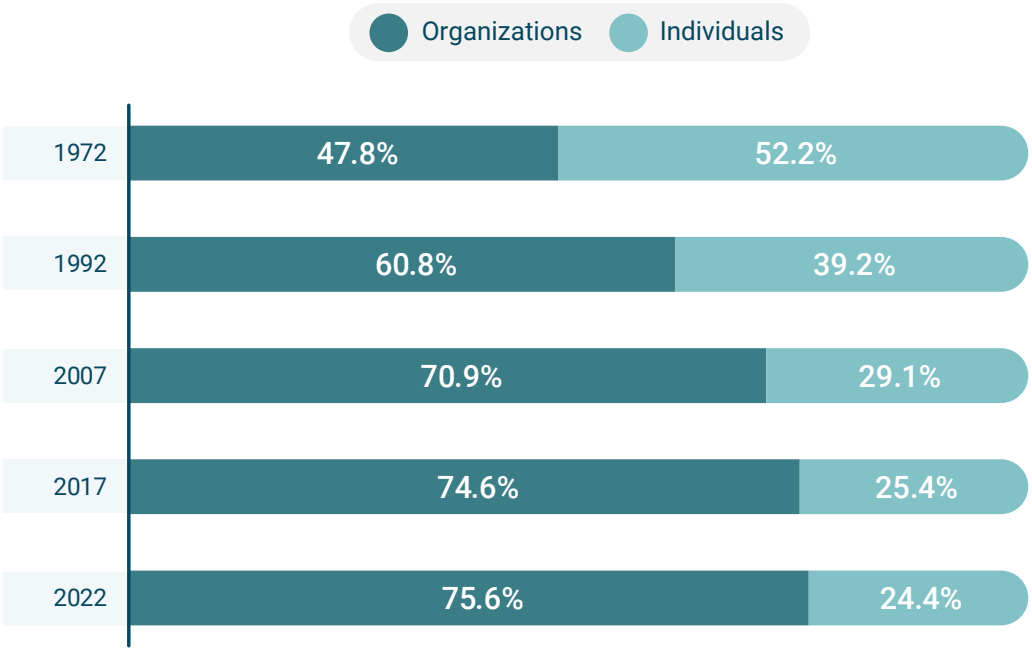
PEOPLE LAW SECTOR

The gradual decrease in the share of legal services for individual clients is linked to several trends that relate to both supply and demand for those services.

Supply

Over time, the share of the legal market between individual and organizational clients has gradually shifted, with a continuous decrease in the proportional share of the PeopleLaw sector. As shown in figure 26, the PeopleLaw sector constituted over 50 percent of the total national legal market in 1972, but just over 25 percent by 2017.[41] While similar historical California data is not available, the share of the legal market serving individual clients in California was 24.4 percent in 2022.

Figure 26. Percentage of Total U.S. Legal Receipts by Type of Client, 1972 to 2022

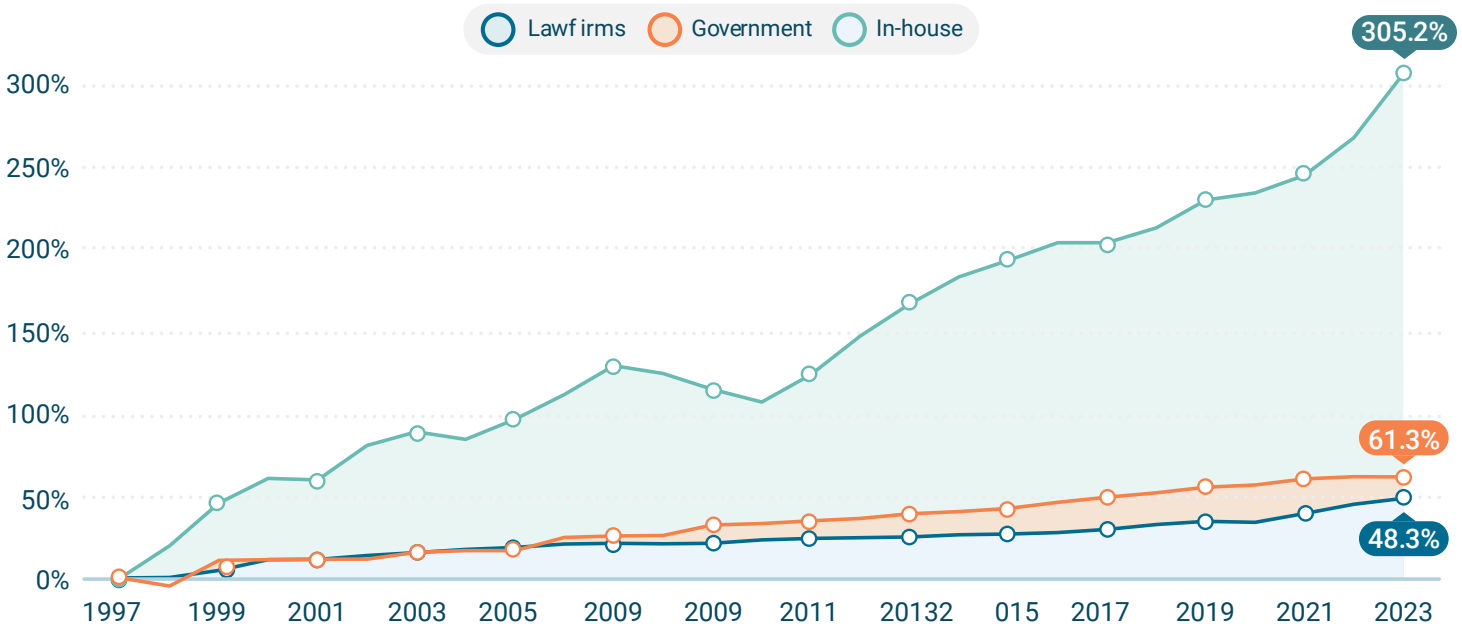


Sources: Heinz et al., Urban Lawyers: The New Social Structure of the Bar (2005) (citing U.S. Census Bureau data for 1972 and 1992); U.S. Census Bureau, Economic Census (2007, 2017). Data from the 2017 Economic Census, U.S. Census Bureau, which excludes tax-exempt organizations such as legal aid. 2022 estimate reflects California specifically and is based on U.S. Census Bureau Economic Census (2017), NAICS 5411, adjusted for change in California GDP through 2022.

The dramatic increase in the percent of lawyers employed as in-house counsel is one factor contributing to the decline in the PeopleLaw sector. Figure 27 depicts the significant uptick in the number of lawyers working in-house relative to other practice settings across the nation. This population grew by more than 300 percent between 1997 and 2023.[42] The number of attorneys working in any type of law firm grew by only 50 percent during the same period. Table 6 highlights this rise in California specifically from 2016 to 2023 and shows that the number of in-house lawyers grew by 45 percent during this period, compared to just 20 percent for law firms and 14 percent for government lawyers.[43]

41 Figure 26 was adapted from figure 9 in the 2024 Legal Market Landscape Report.
42 Figure 27 was adapted from figure 5 in the 2024 Legal Market Landscape Report.
43 Table 6 was adapted from table 9 in the 2024 Legal Market Landscape Report.

Figure 27. Percent Change in Number of Employed Lawyers by Practice Setting, 1997 to 2023



Source: Data from U.S. Bureau of Labor Statistics, 1997 to 2023. Calculations by Legal Evolution PBC.

Table 6. Headcount and Average Salaries of California In-House, Law Firm, and Government-Employed Lawyers, 2016 and 2023

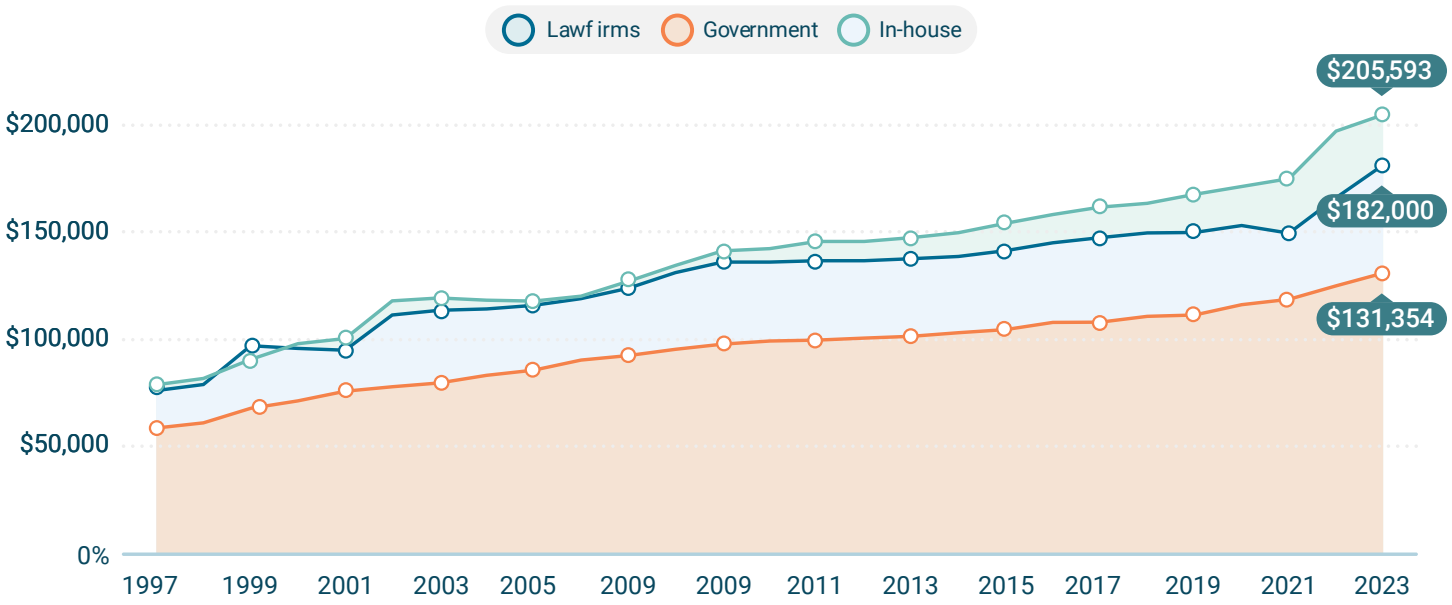
	Headcount			Average salary		
Sector	**2016**	**2023**	**Percent change**	**2016**	**2023**	**Percent change**
In-house	11,670	16,960	45.3%	$181,410	$254,544	40.0%
Law firms	48,990	58,910	20.2%	$164,820	$215,890	31.0%
Government (all levels)	16,160	18,430	14.0%	$138,874	$170,930	24.8%

Source: Data from U.S. Bureau of Labor Statistics. Calculations by Legal Evolution PBC.

The considerable growth in the number of attorneys employed in the in-house counsel practice setting may be partially attributed to compensation. From 1997 through the mid-2000s, average law firm and in-house salaries were relatively comparable. After 2008, average in-house salaries steadily diverged from the law firm average. In 2008, the gap between these two subsectors was $3,300; by 2023, it had increased to $23,600. Figure 28 provides insight into the national average salary trendlines of in-house lawyers relative to lawyers working in law firms and in the government.[44] Looking at more recent average salaries in California specifically, the average salary of a lawyer working in-house ($254,544; see table 6) was meaningfully higher than that of a lawyer employed in a law firm ($215,890). This gap translates into an average salary differential between in-house and law firm lawyers that more than doubled from $16,590 in 2016 to $38,654 in 2023.

44 Figure 28 was adapted from figure 8 in 2024 Legal Market Landscape Report.

Figure 28. Average Lawyer Salaries by Practice Setting, 1997 to 2023



Source: Data from U.S. Bureau of Labor Statistics. Calculations and graphic by Legal Evolution PBC.

A problem that lawyers working in law firms serving individual clients often face relates to the economic burdens of running these practices. Drilling down on solo and small-firm lawyers, the compensation gap becomes even more noticeable. Clio, the leading practice management software for solo and small-firm lawyers, generates an annual Legal Trends Report using data aggregated across its platform. This data breaks down billing rates and related metrics by practice area and geography. In 2023, the average hourly billing rate of a California lawyer across all practice areas was $308. While this rate is not problematic on its face, Clio data persistently shows that California lawyers struggle to find legal work, with only a 33 percent utilization rate.[45] Further, of the 33 percent of work that was billable, only 82 percent was actually billed; of that, 88 percent was collected. As a result, a California lawyer working 50 hours per week would expect to generate approximately $146,687 in gross income, before accounting for any business or operational expenses. These realities may prevent lawyers from being able to sustain their practices. This imbalance—long hours for moderate pay in solo and small law firms compared to the sizeable salaries and predictable work hours of in-house and government lawyers—may also be contributing to the declining supply of lawyers serving individual clients.

To provide a national perspective, table 7 estimates the breakdown of law firm revenue based on the type and size of client across the United States.[46] The numbers highlight a stark contrast in the average dollar amount spent per client, with just $278 spent by individual clients compared to $4,704 and higher by organizational clients and government entities.

45 Utilization rate refers to the percentage of a lawyer's eight-hour work day that is billed to clients.
46 Table 7 was adapted from table 15 in the 2024 Legal Market Landscape Report.

Table 7. Estimated Breakdown of 2022 Law Firm Revenue Based on Type and Size of Clients

Type of client	Number	Total receipt for legal services	Dollar spent per client	Percent of total receipts
Individuals	333,100,000	$92,700,000,000	$278	25.4%
Business: < $1M	4,400,837	$20,700,000,000	$4,704	5.7%
Business: $1M to $25M	1,496,611	$75,400,000,000	$50,380	20.6%
Business: <$25M to $100M*	73,150	$40,800,000,000	$557,758	11.2%
Business: $100M to $2.5B*	24,791	$58,400,000,000	$2,355,694	16.0%
Business: $2.5B to $6.7B*†	1,011	$22,100,000,000	$21,859,545	6.1%
Fortune 500*†	500	$43,400,000,000	$86,800,000	11.9%
Government entities	90,555	$11,700,000,000	$129,203	3.2%
* Also has In-house counsel † Likely employs legal ops personnel		$365,200,000,000		100.0%

Source: Client counts from U.S. Census Bureau programs, including 2017 Statistics of U.S. Businesses (SUSB), 2017 Economic Census, 2022 Census of Governments, and 2022 Fortune Magazine. Law firm receipts allocated based on 2017 Economic Census class of customer data for NAICS 541110 and published estimates of legal budgets based on company size, adjusted upward based on U.S. GDP through 2022.

Demand

Between 1987 and 2023, there has been a significant decline in the spending on paid legal services among U.S. households when compared to other essential household expenses. The U.S. Bureau of Labor Statistics tracks the prices of various goods and services to calculate the Consumer Price Index for all Urban Consumers (CPI-U) and weights the relative importance of a good or service in the overall CPI basket, which is determined by surveys of household spending. In 1987, households allocated an average of nearly 43.5 cents per $100 to legal services. However, by 2023, this figure dropped to only 26.7 cents, a nearly 40 percent reduction. In contrast, average spending on both medical care and college tuition increased by more than 50 percent during the same period.

Low-income Californians are also experiencing difficulty in accessing the legal services that are specifically meant to address their needs. Legal aid refers to free or low-cost legal services provided to ensure access to justice for individuals who might otherwise not be able to afford legal help. Eligibility for these services is based on the federal poverty level (FPL). To assist Californians at the lower end of the income distribution, state law was changed in 2022 to increase the threshold for legal aid eligibility, from 125 percent to 200 percent of the FPL. Table 8 compares California's new 200 percent FPL threshold with California median incomes based on household size.[47]

47 Table 8 was adapted from table 17 in the 2024 Legal Market Landscape Report.

Table 8. Legal Aid Eligibility and California Median Income, by Size of Household

Household size	Legal aid eligibility at or below 200% of federal poverty level	California median income
1	$30,120	$60,360
2	$40,880	$92,781
3	$51,640	$105,130
4	$62,400	$123,451
5	$73,160	$109,691
6	$83,920	$110,036

Source: 2024 Poverty Guidelines (48 Contiguous States), U.S. Department of Health and Human Services and U.S. Census Bureau, 2022 American Community Survey, B19019.

For households of one to four people, the median California income (i.e., 50th percentile) is roughly twice the threshold for legal aid. Similarly, the median income of larger households exceeds legal aid threshold by $30,000 to $40,000 annually. Between 2019 and 2022, the percentage of California adults who qualified for legal aid based on the FPL grew from 16 percent to 27 percent.[48] Even with more generous qualifying levels, legal aid continues to cover a relatively small subset of California's population. Unfortunately, even among the newly eligible low-income Californians who seek legal help, State Bar-funded legal aid organizations report they can only fully serve 30 percent of eligible civil legal problems presented to them by low-income Californians.[49]

CONCLUSION

Over time, the national legal market has shifted, from predominantly serving the PeopleLaw sector in the early 1970s to primarily serving the organizational market in 2017. While historical California data is unavailable, the state's legal market has similarly transitioned toward primarily serving organizational clients as opposed to the PeopleLaw sector of the market, widening the justice gap for everyday Californians. According to the State Bar of California's 2024 Justice Gap Report, 73 percent of Californians experienced at least one civil legal problem in the past year; 33 percent reported "five or more household problems." Across all income groups, this trend resulted in an average of six legal problems per household, with 85 percent of legal problems receiving inadequate help or no legal help at all. On the demand side, the public has started to place less importance on legal services due to rising costs both for these services and for other goods and services deemed more essential. The shift in the legal market towards primarily serving larger organizational clients nationally seems to have also left California's small businesses overlooked.

48 See The California Justice Gap: Measuring the Unmet Civil Legal Needs of Californians.
49 See 2019 California Justice Gap Study Executive Report.

ATTORNEY DESERTS

Attorney deserts are geographical areas where residents must travel significant distances to access legal services for everyday matters because too few attorneys live and practice locally. The analysis below examines changes in attorney availability across California over the past decade, focusing on counties and rural areas that have become—or are at risk of becoming—attorney deserts. By comparing the ratio of active attorneys to residents over time, this study highlights shifts in legal service accessibility and identifies the areas experiencing the greatest declines. Understanding these trends is critical for assessing gaps in legal representation and informing policy efforts to address attorney shortages in underserved communities.



BACKGROUND

Identifying attorney deserts is crucial for several reasons. Residents of these areas often struggle to find legal assistance, which leads to unmet legal needs and potential miscarriages of justice. Prior studies have highlighted disparities in attorney distribution across California. A 2019 study of California's attorney deserts found that rural areas of the state have a higher average number of residents per attorney than urban areas.[50] In 2020, the American Bar Association (ABA) also found that several California counties were attorney deserts, defined as less than one active attorney per 1,000 residents.[51]

This analysis contributes to the existing body of research in several key ways. First, it examines changes in the number of active attorneys living in California compared to those licensed in California but residing out of state.[52] Second, it analyzes where active attorneys live and how these geographic patterns have shifted over the past 10 years. Third, it identifies attorney deserts across all 58 California counties, including distinctions between urban and rural areas. Finally, it explores whether the State Bar's Pro Bono Practice Program (PBPP) could help address attorney deserts by engaging the growing number of inactive attorneys.

Learn more about the methodology behind these analyses in Appendix 2.

CALIFORNIA ATTORNEYS

The following analyses explore how the number of attorneys residing in California has changed over the last 10 years, disaggregated by active and inactive status. Among attorneys admitted to the State Bar of California, only those with active status can practice law within the state. Attorneys can voluntarily change their status to inactive at any point in their careers and as often as they wish by submitting an application to transfer to inactive status.[53]

The number of active attorneys residing in California has increased by just 3 percent in the last 10 years.

Table 9 displays the California population and the number of active and inactive attorneys by residency status for 2015 and 2025. Key findings are as follows:

- While the number of active attorneys residing in California has increased by 3 percent over the last 10 years, it did not keep pace with California's population growth of 4 percent.
- The number of active attorneys residing outside California grew by 32 percent.
- The number of inactive attorneys who live in the state grew by 59 percent.

50 California Commission on Access to Justice. California's Attorney Deserts: Access to Justice Implications of the Rural Lawyer Shortage, 2019.
51 American Bar Association, ABA Profile of the Legal Profession, 2020.
52 An attorney can be licensed to practice in California without being required to live or work within the state. Licensees are required to provide the State Bar with an address; it can be either work or home. For purposes of this analysis, attorneys with a California address are assumed to either live or work at the address provided and are referred to as California residents. This address was used to categorize attorneys' county, region, and urban/rural/frontier designation. See methodology for more details.
53 See the State Bar of California report Profile of California's Inactive Attorneys for in-depth analyses of the inactive attorney population.

Table 9. California Population and Number of Active and Inactive Attorneys by Residency: 2015 and 2025

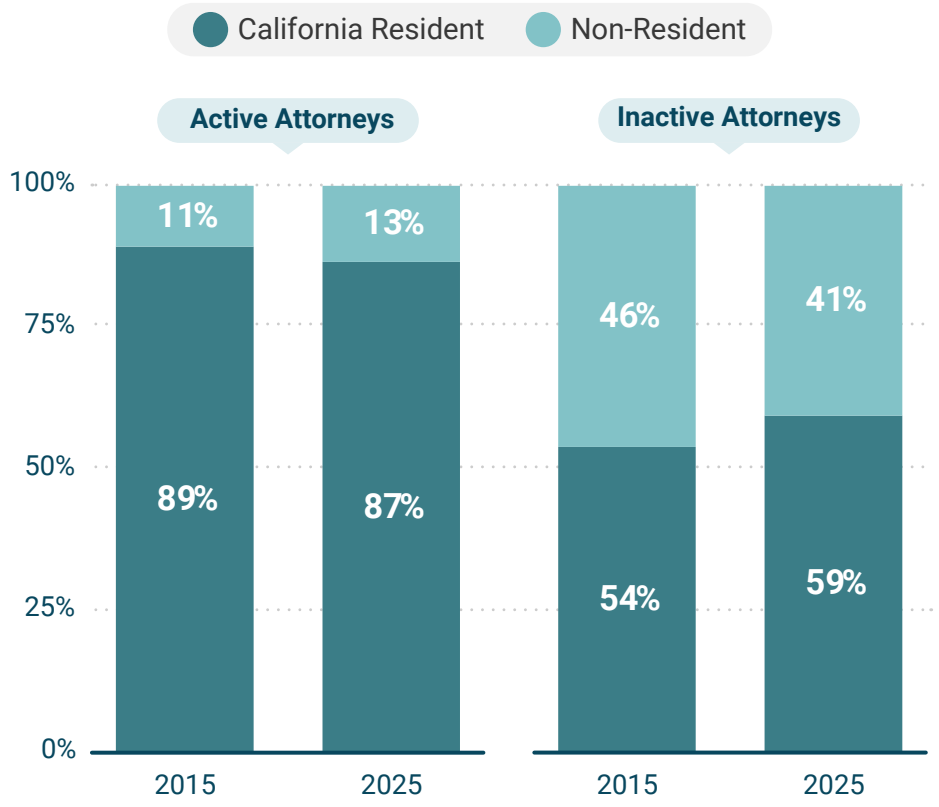
	2015	2025	Percent Change
California population	37.7M	39.2M	4%
Active attorneys			
Total	185,939	196,613	6%
California residents	165,952	170,172	3%
Nonresidents	19,987	26,441	32%
Inactive attorneys			
Total	52,990	76,573	45%
California residents	28,562	45,512	59%
Nonresidents	24,428	31,061	27%

Note: Attorney data reflect a count of the attorney population on January 1 of each year. Population data is based on the US Census Bureau's American Community Survey five-year estimates. The population labeled as 2025 reflects the most recent five-year estimate available. See methodology for more details and data sources.

The share of active attorneys living outside California has increased from 11 percent to 13 percent in the last 10 years.

Figure 29 explores how the residency of California's licensed attorney population has changed over the last 10 years. There has been a notable shift in the geographic distribution of California's licensed attorneys. While the total number of active attorneys has grown by 3 percent (as shown in table 9), a larger share now resides outside California—increasing from 11 percent to 13 percent. In contrast, the share of inactive attorneys living outside California has decreased from 46 percent to 41 percent. There are several reasons attorneys may maintain an active California license while living elsewhere: some work remotely for California-based clients or firms; others practice in multiple jurisdictions and want to keep their options open; and some work in corporate or regulatory roles tied to California but live out of state. Additionally, attorneys may relocate temporarily or in retirement while keeping their licenses active.

Figure 29. California Residency Status of Active and Inactive Attorneys: 2015 and 2025

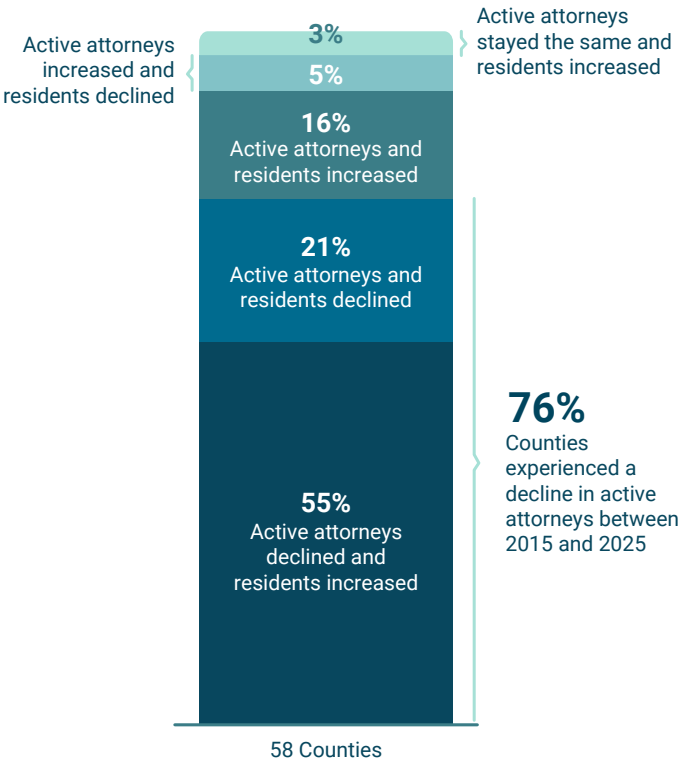


Three-quarters of California counties have experienced a decline in the number of active attorneys in the last 10 years.

As shown above, California's number of active attorneys living in the state grew by 3 percent over the past decade, slightly trailing the state's 4 percent population growth. This statewide trend masks much more profound disparities at the local level. An analysis of California's 58 counties reveals significant variation in the changes in the active attorney workforce compared to population changes (see figure 30).

- Over the past decade, over three-quarters (76 percent) of all counties experienced a decline in the number of active attorneys.
- Over half of all counties (55 percent) experienced a decline in active attorneys while simultaneously experiencing an increase in population.
- Only 16 percent of counties saw growth in both their active attorney and resident populations.

Figure 30. Summary of Active Attorney and Population Change from 2015 to 2025 Across California Counties



Several counties experienced double-digit reductions in active attorneys between 2015 and 2025, while just four counties experienced double-digit increases. Table 10 shows the 10 counties with the largest increases and the 10 with the largest declines in active attorneys. In most counties with the greatest declines, the resident population either decreased more slowly than the attorney population or continued to grow. For example, in Lassen County, both the attorney population and the overall population declined, but the attorney population decreased at a much faster rate—falling by 36 percent compared to a 5 percent decline in residents. Similarly, Trinity County saw a 30 percent decline in its attorney population, even as its resident population grew by 19 percent. In general, these 10 counties are among the least populated counties in the state, with 8 out of 10 having fewer than 100 active resident attorneys.

The resident population also increased in most of the 10 counties that experienced the largest increases in the number of active attorneys. Moreover, only half of these 10 experienced double-digit increases in active attorneys, and two were very small counties. Also of note is that most of these 10 counties already had thousands of attorneys.

Table 10. Change in Population and Number of Active Attorneys Across California Counties: 2015 and 2025

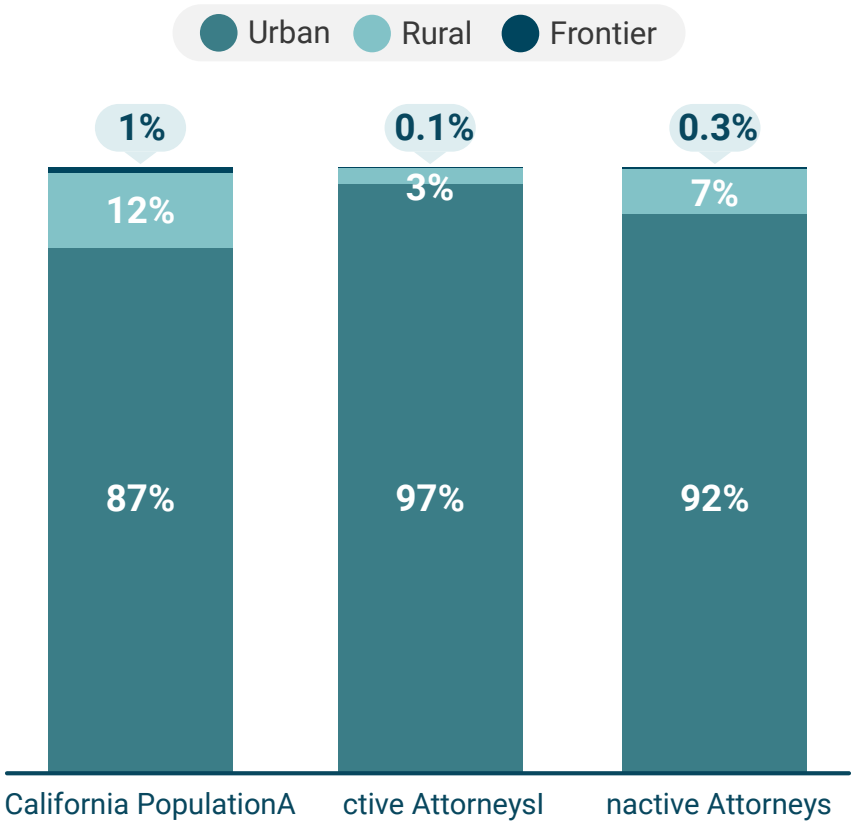
		Population			Number of Active Attorneys		
County	**Region**	**2015**	**2025**	**Change**	**2015**	**2025**	**Change**
Counties with the largest percentage decline in the number of active attorneys							
Lassen	Superior California	32,645	31,177	-5%	25	16	-36%
Calaveras	Northern San Joaquin Valley	44,767	45,995	3%	71	49	-31%
Amador	Northern San Joaquin Valley	36,995	41,029	11%	84	58	-31%
Trinity	North Coast	13,373	15,886	19%	23	16	-30%
Tehama	Superior California	63,152	65,520	4%	62	44	-29%
Glenn	Superior California	28,029	28,623	2%	21	15	-29%
Siskiyou	Superior California	43,895	43,834	-0.1%	89	65	-27%
Mendocino	North Coast	87,544	90,709	4%	213	159	-25%
Modoc	Superior California	9,184	8,646	-6%	8	6	-25%
Butte	Superior California	222,564	209,470	-6%	397	305	-23%
Counties with the largest percentage increase in the number of active attorneys							
Sierra	Superior California	3,021	2,731	-10%	2	4	100%
Alpine	Northern San Joaquin Valley	1,131	1,695	50%	3	4	33%
Placer	Superior California	366,280	412,435	13%	1,070	1,307	22%
Yolo	Superior California	207,320	217,782	5%	541	621	15%
San Benito	Central Coast	57,557	66,056	15%	49	55	12%
San Mateo	San Francisco Bay Area	748,731	745,100	-0.5%	4,582	4,907	7%
Los Angeles	Los Angeles	10,038,388	9,848,406	-2%	54,101	57,879	7%
Sacramento	Superior California	1,465,832	1,584,047	8%	8,193	8,738	7%
Orange	Orange	3,116,069	3,164,063	2%	16,866	17,929	6%
Riverside	Inland Empire	2,298,032	2,449,909	6%	3,154	3,282	4%

Just 3 percent of California's active attorneys live in rural areas, compared to 12 percent of California's residents.

Following the California Commission on Access to Justice's 2019 report on California's attorney deserts, analyses of the state's urban, rural, and frontier areas were facilitated using geographical units known as Medical Service Study Areas (MSSAs). MSSAs are clusters of census tracts within counties and are used by the Office of Statewide Health and Development Planning (OSHDP) to identify areas with an unmet need for primary care family physicians. Applying the same logic, access to legal services should require no greater travel distance than access to medical care. See methodology for details about the MSSAs and methods used to categorize attorney addresses as urban, rural, or frontier.

In 2025, 12 percent of California's residents live in a rural area (see figure 31), a proportion that has remained unchanged over the last 10 years.[54] Similarly, attorneys are still more concentrated in urban versus rural areas than the general population. While 12 percent of California's population lives in rural areas, just 3 percent of active and 7 percent of inactive attorneys live in rural areas. Because only one percent of the California population lives in frontier areas, the remainder of the analyses focus on urban and rural areas.[55]

Figure 31. Where California's Residents and Attorneys Live: 2025

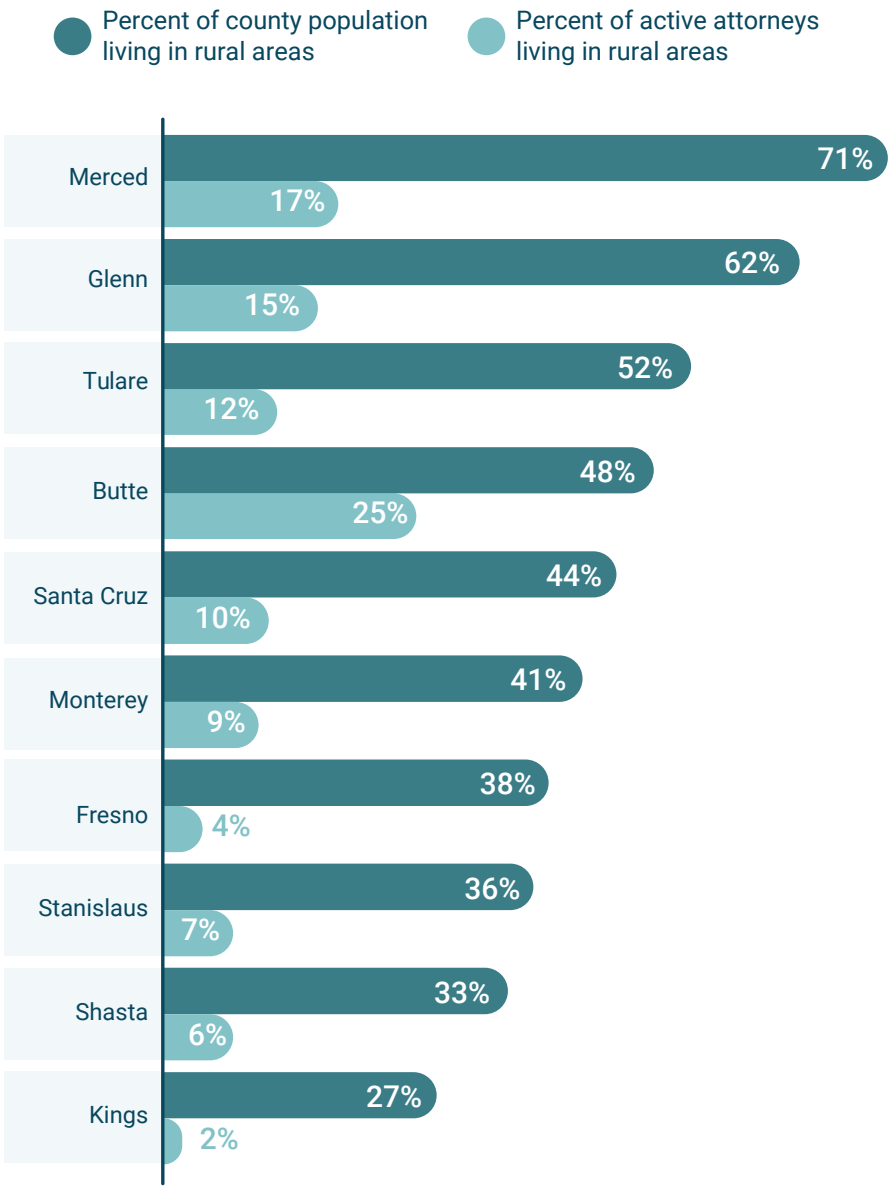


54 See "Key Findings" table in the 2019 report on California attorney deserts for more information on the percentage of California residents that lived in urban, rural, or frontier areas a decade ago.
55 Both the 2019 State Bar report on California attorney deserts and the 2020 ABA Profile of the Legal Profession emphasize comparisons between urban and rural areas.

Some counties have extreme mismatches between active attorneys' and residents' locations, with attorneys disproportionately concentrated in urban areas.

As noted above, 12 percent of California's residents statewide live in a rural area. However, there is wide variation across the 51 counties in California that contain rural areas.[56] For most counties with urban and rural areas, attorneys are more concentrated in urban versus rural areas than the overall population. Figure 32 lists 10 counties where the mismatch is greatest between the share of the population living in a rural area compared with attorneys. In Merced County, 71 percent of residents live in rural areas, yet only 17 percent of the county's active attorneys are rurally based.

Figure 32. Counties with the Largest Gap in Percentage of Residents and Active Attorneys Living in Rural Areas: 2025



56 There are seven counties with no rural areas. Contra Costa, San Francisco, and Orange County are entirely urban, while Alpine, Modoc, Sierra, and Trinity are entirely frontier.

ATTORNEY DESERTS

As discussed above, most counties in California have seen a decline in active attorneys over the last 10 years, and just 3 percent of current active attorneys are in rural areas. A broader concern is the availability of active attorneys relative to population size in counties and urban/rural areas within counties. Even in areas where the number of attorneys has remained stable or grown, the demand for legal assistance may still exceed the supply if the population grows at faster rate than the number of attorneys.

The following analyses examine geographic disparities in attorney availability across California using the American Bar Association's definition of an attorney desert (see below).[57] These measures are calculated at multiple levels, including statewide, county levels, and within each county's urban and rural areas.

Definitions

Attorney desert: less than one active attorney per 1,000 residents
At risk of becoming an attorney desert: at least one but less than two active attorneys per 1,000 residents

Statewide, California has 4.3 active attorneys per 1,000 residents.

Statewide, there are currently 4.3 active attorneys for every 1,000 California residents. Although California has the second-highest number of attorneys in the nation, an American Bar Association report ranked the state sixth in the number of active attorneys per 1,000 residents.[58] Ten years ago, the statewide ratio was slightly higher, at 4.4. This decline is due to California's population growth outpacing its active resident attorney population, as shown in table 9.

Most California counties are attorney deserts or are at risk of becoming one.

The statewide ratio of 4.3 obscures significant within-state variation across counties. An analysis of the current ratio of active attorneys per 1,000 residents by county shows that 16 counties are attorney deserts, 21 are at risk of becoming attorney deserts, and 21 are not attorney deserts (see table 11).[59] In general, counties that are attorney deserts are poorer, less populous, and have, on average, fewer active attorneys compared with counties that are at risk of becoming an attorney desert or are not attorney deserts. Ten years ago, fewer counties were attorney deserts or at risk of becoming one.

57 See ABA Profile of the Legal Profession
58 New York had the highest ratio, at 9.6 attorneys per 1,000 residents, and Massachusetts was second at 5.7. See ABA Profile of the Legal Profession.
59 A comparison analysis with 2015 is not possible because historical information on attorney addresses is not kept by the State Bar.

Table 11. California Counties by Attorney Desert Status: 2015 and 2025

	Number of Counties		2025 County Characteristics		
	2015	2025	Average Population	Average number of active attorneys	Average percent of population at or below 200 percent of FPL
Attorney Deserts	11	16	244,149	200	37%
At Risk of Becoming an Attorney Desert	18	21	366,725	510	31%
Not an Attorney Desert	29	21	1,315,961	7,441	23%

Note: Poverty is defined by the population percentage at or below 200 percent of the federal poverty level. The median poverty rates are the same as the average poverty rates. The median population is as follows: Attorney deserts, 125,901; At risk of becoming an attorney desert, 68,139; and Not an attorney desert, 485,642. See methodology for more details.

Table 12 lists the 16 counties that currently qualify as attorney deserts. Most of these counties were already attorney deserts a decade ago. Over the past 10 years, nearly all have experienced a decline in active attorneys alongside an increase in population growth—widening the gap between legal resources and community needs. Attorney deserts disproportionately affect the Southern San Joaquin Valley and Superior California regions. Of the 5 counties in the Southern San Joaquin Valley, 3 are attorney deserts. If the 17 counties in Superior California, 7 are attorney deserts.

Table 12. California Counties That Are Currently Attorney Deserts

		Ratio of active attorneys To 1,000 residents		Percent change From 2015 to 225	
County2	Region	015	2025	Percent change in Population	Percent change in number of active attorneys
Lassen	Superior California	0.8	0.5	-4%	-36%
Merced	Northern San Joaquin Valley	0.6	0.5	8%	-8%
Glenn	Superior California	0.7	0.5	2%	-29%
Kings	Southern San Joaquin Valley	0.6	0.6	1%	0%
Madera	Northern San Joaquin Valley	0.7	0.7	4%	-4%
Imperial	San Diego—Imperial	0.8	0.7	1%	-19%
Tehama	Superior California	1.0	0.7	4%	-29%
Modoc	Superior California	0.9	0.7	-6%	-25%

		Ratio of active attorneys To 1,000 residents		Percent change From 2015 to 225	
County	**Region**	**2015**	**2025**	**Percent change in Population**	**Percent change in number of active attorneys**
Tularec	Southern San Joaquin Valley	0.9	0.7	5%	-18%
San Benito	Central Coast	0.9	0.8	15%	12%
Yuba	Superior California	1.2	0.9	13%	-17%
Calousa	Superior California	0.9	0.9	2%	0%
Sutter	Superior California	1.1	0.9	4%	-13%
Kern	Southern San Joaquin Valley	1.0	0.9	5%	-10%
San Joaquin	Northern San Joaquin Valley	1.2	0.9	11%	-12%
Stanislaus	Northern San Joaquin Valley	1.1	0.9	5%	-12%

Note: Counties are presented from lowest to highest based on the 2025 ratio of active attorneys to 1,000 residents.

Within-county analyses reveal disparities in access to attorneys between urban and rural residents.

As discussed above, most California counties are a mix of urban, rural, and frontier areas. Half of all counties have urban and rural areas.[60] Of these, 16 counties' rural areas are currently either attorney deserts or at risk of becoming attorney deserts, while their urban areas are not (see table 13).[61] In all counties, the share of active attorneys living in rural areas is lower than that of the population. Even in counties where a small share of residents lives in rural areas, such as San Diego, Alameda, and Los Angeles, the share of active attorneys residing in those areas is even smaller.

60 Some of these counties also have frontier areas.

61 As discussed in the methodology, counties vary in the number of MSSAs they contain, with each MSSA classified as urban, rural, or frontier. Attorney desert status for urban and rural areas within each county is determined using aggregated data from MSSAs. For example, Monterey County has four rural and two urban MSSAs. Rather than calculating attorney desert status for each individual MSSA, data was aggregated by urban and rural areas within each county, and attorney desert status was calculated based on this aggregated data, to provide a more streamlined and interpretable assessment of attorney deserts in urban and rural areas within counties. However, this approach may mask important variation among MSSAs of the same type within counties. Future State Bar research will explore attorney availability at the individual MSSA level to provide even more detailed information about localized disparities.

Table 13. California Counties with Rural/Urban Disparities in the Ratio of Active Attorneys to 1,000 Residents: 2025

		Ratio of Number of Active Attorneys to 1,000 Residents		Percent that Live in Rural Areas	
Region	**County**	**Rural Areas**	**Urban Areas**	**Population**	**Active Attorneys**
Counties with rural attorney deserts					
Central Coast	Monterey	0.4	2.8	41%	9%
	Santa Cruz	0.4	2.7	44%	10%
San Diego—Imperial	San Diego	0.7	5.1	3%	0.50%
Southern San Joaquin Valley	Fresno	0.2	2.8	38%	4%
Superior California	Butte	0.7	2	48%	25%
	Shasta	0.2	2.4	33%	6%
	Yolo	0.6	2.7	9%	2%
Counties with rural areas at risk of becoming attorney deserts					
Central Coast	Santa Barbara	1.2	3.6	25%	10%
	Ventura	1	3.4	12%	4%
Los Angeles	Los Angeles	1.2	5.6	2%	0.40%
North Coast	Napa	1.9	3.2	35%	25%
	Sonoma	1.6	3.2	17%	10%
San Francisco Bay Area	Alameda	1.4	4.4	2%	1%
	Santa Clara	1	5.4	7%	1%
Superior California	Placer	1.4	3.4	10%	5%
	Sacramento	1.8	5.5	5%	2%

Ten counties do not have enough attorneys in both rural and urban areas.

Of the 29 counties with urban and rural areas, 10 have rural and urban areas that are either attorney deserts or at risk of becoming one (see table 14). For the majority of these counties, poverty rates in both rural and urban areas are higher than the statewide poverty rate at 200% of the federal poverty level of 28 percent. Kings County is the only county in the state where both rural and urban areas are attorney deserts.

Table 14. Counties Whose Rural and Urban Residents Reside in Attorney Deserts or Areas at Risk of Becoming Attorney Deserts: 2025

		Ratio of Number of Active Attorneys to 1,000 Residents		Percent of population at or below 200 percent of FPL	
Region	**County**	**Rural Areas**	**Urban Areas**	**Rural Areas**	**Urban Areas**
Inland Empire	Riverside	0.4	1.3	40%	28%
	San Bernardino	0.5	1.1	39%	32%
Northern San Joaquin Valley	Merced	0.1	1.4	42%	41%
	San Joaquin	0.4	1	23%	32%
	Stanislaus	0.2	1.3	31%	35%
San Francisco Bay Area	Solano	0.8	1.1	19%	23%
Southern San Joaquin Valley	Kern	0.2	1.1	44%	41%
	Kings	0	0.8	56%	35%
	Tulare	0.2	1.3	47%	39%
Superior California	El Dorado	1.7	1.5	22%	12%

INACTIVE ATTORNEYS

One potential way to increase the number of attorneys available to provide legal services is for inactive attorneys to participate in the State Bar's PBPP. The PBPP waives license fees for attorneys who would otherwise be on inactive status so they may maintain active status for the sole purpose of providing pro bono services in partnership with approved legal services providers. At this time, just over 100 inactive attorneys participate in the PBPP annually; as noted above, over 45,000 inactive attorneys reside in California.

Table 15 contains an analysis that estimates the impact of increasing inactive attorneys' participation in the PBPP for 29 counties with urban and/or rural attorney deserts. The simulation analysis estimates the ratio of active attorneys to 1,000 residents under scenarios where increasing shares of inactive attorneys participated in the PBPP.[62] The results show that encouraging inactive attorneys to participate in the PBPP will improve the ratio of attorneys to 1,000 residents but will not eliminate attorney deserts in most areas within the counties analyzed.

Kings County's urban and rural areas are designated attorney deserts. Although 100 percent of inactive attorneys in the county reside in urban areas, increasing their participation in the PBPP would have minimal impact because only 15 inactive attorneys live in Kings County.

As noted above, only 7 percent of inactive attorneys statewide reside in rural areas, compared with 12 percent of all residents. This mismatch is present throughout most of the counties analyzed. However, even in entirely rural counties, increasing inactive attorney participation in the PBPP would not move counties out of the risk category. These counties tend to be smaller than those with both urban and rural areas and only a small number of inactive attorneys reside there.



62 It must be noted that the PBPP is limited to providing pro bono services to the state's low-income people, largely through participating legal service providers.

Table 15. Current and Estimates of Ratios of Inactive Attorneys to 1,000 Residents at Varying Inactive Attorney Pro Bono Practice Program Participation Rates for Rural and Urban Attorney Deserts

		Percent living in rural or urban area			Scenario: Percent of inactive attorneys participating in the Pro Bono Practice Program			
Region	County	Population	Inactive attorneys	Current ratio of inactive attorneys to 1,000 residents in urban or rural area	25%	50%	75%	100%
Counties with urban and rural attorney deserts								
Southern San Joaquin Valley	Kings: Urban	73%	100%	0.8	0.8	0.9	0.9	1.0
	Kings: Rural	27%	0%	0.1	0.1	0.1	0.1	0.1
Counties with rural attorney deserts								
Central Coast	Monterey	41%	21%	0.4	0.5	0.7	0.8	0.9
	San Benito	100%	100%	0.9	0.9	1.0	1.1	1.2
	Santa Cruz	44%	16%	0.4	0.5	0.6	0.7	0.8
Inland Empire	Riverside	2%	1%	0.4	0.5	0.6	0.7	0.7
	San Bernardino	12%	19%	0.5	0.6	0.7	0.8	0.9
Northern San Joaquin Valley	Calaveras	100%	100%	0.9	1.1	1.4	1.6	1.8
	Madera	100%	100%	0.7	0.7	0.8	0.9	1.0
	Merced	71%	26%	0.1	0.1	0.2	0.2	0.2
	Mono	55%	15%	0.3	0.3	0.4	0.5	0.6
	San Joaquin	18%	19%	0.4	0.5	0.6	0.6	0.7
	Stanislaus	36%	24%	0.2	0.2	0.3	0.3	0.3
San Diego—Imperial	Imperial	91%	100%	0.7	0.8	0.8	0.9	0.9
	San Diego	3%	2%	0.7	0.8	1.0	1.2	1.3
San Francisco Bay Area	Solano	17%	30%	0.8	1.1	1.3	1.5	1.8
Southern San Joaquin Valley	Fresno	38%	13%	0.2	0.2	0.3	0.3	0.3
	Kern	27%	18%	0.2	0.3	0.3	0.4	0.4
	Tulare	52%	27%	0.2	0.2	0.2	0.2	0.2
Superior California	Butte	48%	40%	0.7	0.8	1.0	1.1	1.2
	Colusa	90%	100%	0.9	1.0	1.0	1.1	1.1
	Glenn	62%	22%	0.1	0.1	0.2	0.2	0.2
	Lassen	76%	75%	0.6	0.7	0.7	0.7	0.8
	Shasta	33%	17%	0.2	0.3	0.4	0.5	0.6
	Sutter	100%	100%	0.9	1.0	1.1	1.2	1.3
	Tehama	85%	68%	0.5	0.6	0.6	0.7	0.7
	Yolo	9%	3%	0.6	0.8	0.9	1.1	1.2
	Yuba	100%	100%	0.8	0.8	0.9	0.9	1.0

Explore results discussed in this analysis for all California counties in Appendix 3.

CONCLUSION

California is experiencing significant shifts in its attorney workforce, raising concerns about access to legal services across the state. While the number of active attorneys residing in California has seen only modest growth over the past decade, the number of inactive attorneys has surged. At the same time, more active attorneys are choosing to live outside the state, and most counties have seen a decline in their active attorney populations.

These trends have contributed to widespread attorney shortages, with most counties classified as attorney deserts or at risk of becoming one. The imbalance is particularly stark in rural areas, where only a small fraction of the state's active attorneys reside. Even within counties, disparities persist between urban and rural communities, exacerbating challenges in accessing legal services. In some counties, there are insufficient attorneys in urban and rural areas.

Efforts to encourage inactive attorneys to engage in pro bono work through the PBPP are unlikely to fully resolve the issue, mainly because small shares of inactive attorneys reside in rural areas. Addressing attorney deserts will require more comprehensive strategies to attract and retain attorneys in underserved regions, ensuring equitable access to legal representation across the state. These strategies include conducting research to identify the barriers to practicing in rural areas as a foundation for targeted recruitment and retention initiatives. Additionally, partnerships among lawyer referral services, legal aid organizations, pro bono programs, and private attorneys should be expanded and strengthened to deliver legal services remotely (e.g., via video consultations or email), extending support to communities with limited on-the-ground legal resources.

PRO BONO SERVICE

Pro bono legal services help bridge the justice gap in California by using private attorneys who volunteer to provide free legal assistance to individuals and communities unable to afford legal representation. This section provides an overview of the State Bar's current efforts to promote pro bono service among California attorneys and presents an analysis of over 3,000 California attorneys' responses to a 2023 American Bar Association (ABA) survey that sought to quantify pro bono work nationwide.



Key findings from surveyed attorneys include:

- Three-quarters (75 percent) of California attorneys have provided pro bono services at some point in their careers.
- Less than half (45 percent) provided pro bono service in 2022; this is lower than what the ABA found nationally for 2022 (57 percent).[63] Similar to 2016, more than half of California attorneys did not provide pro bono services in 2022.
- In 2022, just 23 percent of attorneys met the State Bar's Pro Bono Resolution's goal of providing 50 hours or more of pro bono service, with an average of 116 hours contributed per attorney. This amount of service represents an improvement from 2016, when only 20 percent of attorneys met the 50-hour benchmark, with an average of 79 pro bono hours per attorney who provided at least 50 hours of pro bono service.
- Extrapolating from the approximately 3,000 survey responses to all California active attorneys, the share of attorneys offering pro bono and the average number of hours of service provided translates into nearly 88,000 active attorneys providing pro bono service in 2022. Collectively, they are estimated to have contributed nearly 10 million hours of service, equivalent to more than 4,700 full-time attorneys.
- Among attorneys who provided pro bono services in 2022, nearly half offered limited scope representation without litigation for individual clients. In 2022, these attorneys contributed an average of 47 hours each toward limited scope representation to individuals.
- The second largest category of pro bono service provided in 2022 was full case representation for individual clients. Among attorneys who have provided pro bono services, 41 percent reported providing this service. In 2022, these attorneys contributed an average of 125 hours each to full representation cases to individuals.
- Attorneys who have not yet provided pro bono services cited a lack of resources for pro bono work, concern about malpractice issues, and a general sentiment that pro bono work is unrealistic for newly admitted attorneys. These attorneys also reported that lack of time was a top discouraging factor.
- Attorneys who have not yet provided pro bono services report that the provision of malpractice insurance, mentorship by other attorneys, and more support from their firms would be very influential in motivating them to do pro bono work.
- According to attorneys surveyed, the most common ways employers encourage pro bono work is by allowing pro bono during regular business hours and using internal resources for pro bono activities. However, nearly half of attorneys who have not yet provided pro bono services report that their employers do not allow pro bono during regular business hours.



WHAT IS PRO BONO?

In 1989, the State Bar of California Board of Governors (now called the Board of Trustees) passed a Pro Bono Resolution encouraging attorneys, law students, and the organizations that employ and train them to provide or enable direct delivery of at least 50 hours per year of pro bono legal services.[64] The resolution defined pro bono as "the direct delivery of legal services, without expectation of compensation other than reimbursement of expenses, to indigent individuals, or not-for-profit organizations with a primary purpose of providing services to the poor or on behalf of the poor or disadvantaged, not-for-profit organizations with a purpose of improving the

63 The ABA has published these results at the national level: Supporting Justice V: A Report on the Pro Bono Work of America's Lawyers.
64 All 50 states define pro bono legal services and most include aspirational goals for attorneys to meet. Some states have adopted the ABA's goal of 50 hours annually, and others have set lower targets ranging from 20 to 30 hours. See ABA, CPR Policy Implementation Committee, Variations of the ABA Model Rules of Professional Conduct: Rule 6.1 Voluntary Pro Bono Publico Service.

law and the legal system or increasing access to justice." Legal work for clients referred from a legal aid program meets the definition of pro bono, as do legal services provided to indigent recipients so long as the lawyer intends the services to be free, but waiving fees for clients unable to pay if payment was initially expected does not meet the pro bono definition. Pro bono opportunities vary depending on the needs of the client community.

The ABA Model Rules of Professional Conduct, California Rules of Professional Conduct, and California statutes encourage lawyers to provide pro bono services. For example, ABA Model Rule 6.1 establishes a lawyer's professional responsibility to provide pro bono services, including at least 50 hours of legal services per year to those unable to pay. The California Rules of Professional Conduct articulate a similar responsibility as the ABA, encouraging all lawyers to "aspire to render at least fifty hours of pro bono publico legal services per year" (Rules Prof. Conduct, rule 1.0 Comment [5]).

Pro Bono Services Include:

- Representation (full or limited scope)
- Negotiation and settlement
- Brief service by phone or in person
- Legal information or "Know Your Rights" workshops
- Document preparation and review
- Legal research and writing
- Consumer/public education
- Litigation support
- Legislative research and legal analysis

Learn more about ABA Model Rule 6.1, California's Rules of Professional Conduct, and relevant California statutes in Appendix 4.

STATE BAR EFFORTS TO PROMOTE PRO BONO

For decades, the State Bar of California has sought to expand and promote pro bono legal services to improve access to justice for low-income Californians. The State Bar has worked with stakeholders to develop initiatives to raise public awareness of pro bono opportunities and to support pro bono services for specific client populations, such as veterans and disaster survivors. The State Bar also administers a pro bono practice program and distributes grant funds to legal aid organizations specifically to support pro bono legal services.

Pro Bono Practice Program

The State Bar's Pro Bono Practice Program (PBPP) waives license fees for attorneys who would otherwise be on inactive status so they may maintain active status for the sole purpose of providing pro bono services in partnership with approved legal services providers. In 2024, 104 California attorneys participated in the PBPP, providing pro bono services through 36 participating organizations. Over the last six years, an average of 111 attorneys participated in the PBPP annually. These numbers are scant, considering there are 76,000 inactive attorneys in California.

2024

104 attorneys **in** **36** organizations

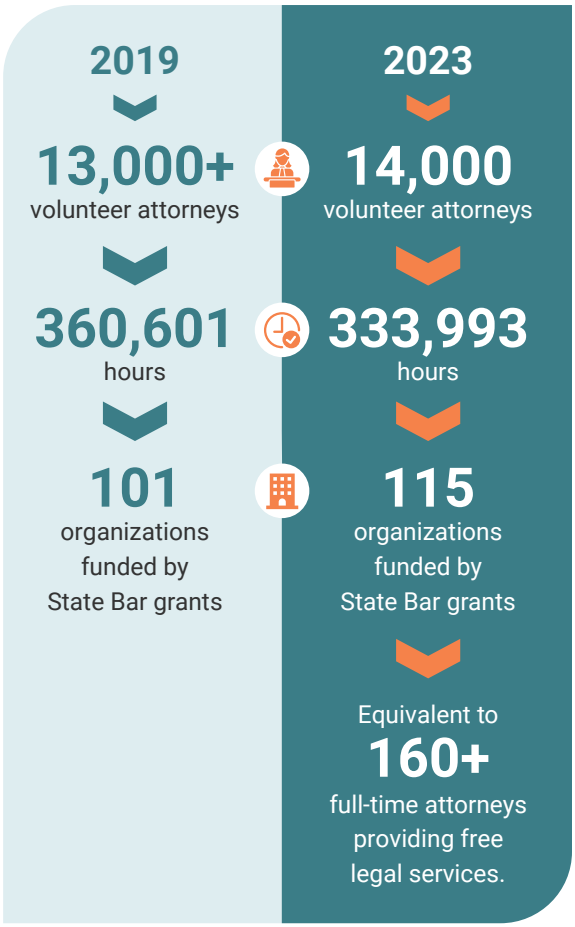
111 attorneys — Annual average over the last six years

The State Bar's 2022–2027 Strategic Plan includes, as a means to achieving the goal of enhancing access to and inclusion in the legal system, increasing pro bono hours provided to underserved groups. In an effort to meet this, the State Bar updated its rules in 2024 to simplify program eligibility and expand eligible organizations through which pro bono could be provided under the PBPP. Specific changes include eliminating the requirement that a licensee had been admitted to the practice of law for at least three years preceding the application and eliminating the requirement of having practiced law or served as a judge in California for at least three of the last five years. The new rules also require pro bono providers to report annual pro bono hours provided by PBPP attorneys, enabling the State Bar to track the program's impact on access to justice in the state.

Learn more about the State Bar's Pro Bono Practice Program and other pro bono opportunities in California in Appendix 5.

Grant Funding for Pro Bono Legal Services

The State Bar's Legal Services Trust Fund Commission administers millions of dollars in grant funds to over 100 nonprofit organizations providing free civil legal services to indigent Californians (see section of report on Legal Aid in California). In 2019, more than 13,000 volunteer attorneys contributed 360,601 hours to 101 organizations funded by State Bar grants. By 2023, volunteer attorneys increased to nearly 14,000, serving 115 funded organizations and donating 333,993 hours—equivalent to more than 160 full-time attorneys providing free legal services.



An additional 10 percent of grant funds, called the pro bono allocation, is available to grantees who primarily rely on pro bono attorneys to provide free legal representation to indigent persons or qualified legal services projects (Bus. & Prof. Code, § 6214(b)(3)(A) and § 6216(b)(1)(B)). Organizations receiving this allocation use the funds to support pro bono programs that connect and support volunteer attorneys with opportunities to provide essential legal services to indigent persons regarding housing, family/domestic violence, consumer/finance, guardianship, and conservatorship legal needs. To expand the availability of pro bono legal services to more low-income Californians, the State Bar amended its rules in July 2024 to add flexibility to the pro bono allocation eligibility process and increase the number of organizations that qualify. Typically, between 17 and 19 organizations receive the additional pro bono allocation yearly. In 2023, 17 organizations reported that 10,342 pro bono attorney volunteers provided over 243,000 hours of pro bono legal services to indigent persons across 13 California counties.

PRO BONO SERVICES OFFERED BY CALIFORNIA ATTORNEYS

The ABA regularly explores factors that encourage or discourage attorneys' provision of pro bono services. Thus far, surveys conducted by the ABA were the only source of data on the average number of pro bono hours California attorneys provided to low-income Californians, beyond those who volunteered in legal aid organizations that receive grant funds from the State Bar as reported. In September 2024, the California Legislature amended Business and Professions Code sections 6073.1 and 6073.2, requiring active licensees to report hours provided for pro bono and reduced fee legal services annually.[65] The State Bar will compile this information into anonymized reports to inform outreach efforts and enable programs to expand legal services for low- and moderate-income Californians. For 2023 and 2024, the State Bar permitted attorneys to report the number of pro bono hours provided.

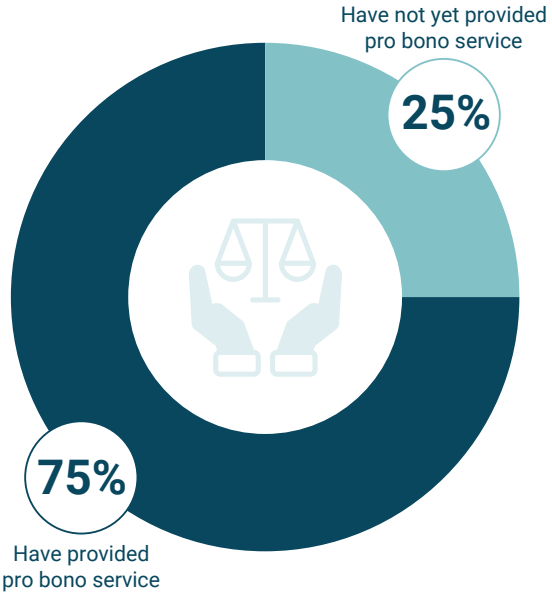
The following sections present the State Bar's analysis of the ABA's 2023 Pro Bono Survey, focusing on responses from over 3,000 California attorneys. The results reflect pro bono services offered in 2022 and provide valuable insights into the professional experiences, challenges, and perspectives of California attorneys who have provided pro bono services and those who have not. Variation by years of practice and workplace sector is reported to analyze the proportion of attorneys that have never provided pro bono service. However, analyses exploring variation in demographic or other professional characteristics are beyond the scope of this report and will be addressed in future State Bar research.

Learn more about the 2023 ABA Pro Bono Survey and the methodology used to analyze responses for California respondents in Appendix 6.

Three-quarters of California attorneys have provided pro bono services at some point in their careers, while one in four have never provided any form of pro bono services.

Three-quarters (75 percent) of California attorneys responding to the survey have, at some point in their careers, provided pro bono services (see figure 33). Pro bono service varies by years licensed and by workplace sector; 58 percent of attorneys licensed for less than five years provided pro bono services compared with 80 percent of attorneys licensed for more than 25 years. Less than half (48 percent) of attorneys in the government sector have provided pro bono services compared with over 80 percent of attorneys in private practice.

Figure 33. California Attorneys' Provision of Pro Bono Services



65 Annual reporting for California licensees will be based on services rendered the prior calendar year and will begin in 2026 for the 2025 calendar year. According to the ABA, as of May 2024, 10 states require all attorneys—not just those in pro bono programs—to report pro bono hours, and 13 states have voluntary reporting systems. American Bar Association, Standing Committee on Pro Bono & Public Service, Policy: Pro Bono Reporting.

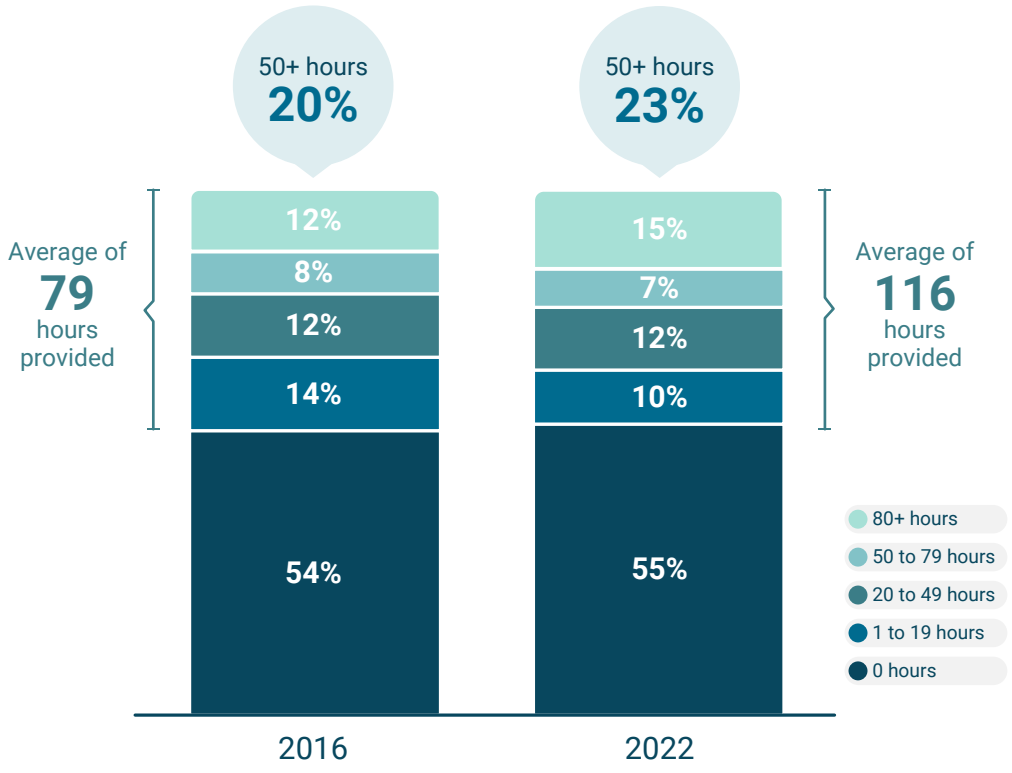
More California attorneys met the State Bar's Pro Bono Resolution's goal of providing 50 hours or more of pro bono services in 2022 compared to 2016.

Figure 34 sets out the hours of pro bono services California attorneys reported providing in 2022 compared with what California attorneys reported in response to a previous ABA pro bono survey for 2016 pro bono service.[66] Key findings include:

- Slightly more than half of California attorneys provided no pro bono services in 2022, the same as in 2016. However, the ABA found that nationally, only 43 percent of attorneys provided no pro bono services in 2022.
- Nearly one in four California attorneys (23 percent) provided 50 or more hours of pro bono service in 2022, up from 20 percent in 2016.
- On average, attorneys who provided pro bono services provided 116 hours in 2022. This service represents a 47 percent increase compared with the average of 79 service hours offered in 2016.[67]
- Another notable change is the share of attorneys who provided 80 hours or more of pro bono service: 15 percent of attorneys reported doing so in 2022 compared with 12 percent in 2016.
- Attorneys who provided at least 80 hours of pro bono service in 2022 reported an average of 282 hours of service. This translates to over 35 workdays, or about seven weeks, of pro bono service.

As noted in figure 2, 45 percent of California attorneys provided pro bono service, contributing an average of 116 hours. When extrapolating to the total population active of over 195,000 active attorneys, this translates into over 87,000 active attorneys collectively providing almost 10 million hours of pro bono service, which is equivalent to 4,761 full-time pro bono attorneys.[68]

Figure 34. Hours of Pro Bono Service California Attorneys Provided in 2016 and 2022



66 This report, titled Supporting Justice in California: A Report on the Pro Bono Work of California's Lawyers, was produced by the ABA and published in July 2017.
67 Attorneys who provided pro bono services in 2022 reported a median of 50 hours of service. Attorneys who provided pro bono services in 2016 reported a median of 25 hours of service.
68 This estimate considers variation in pro bono hours provide by workplace sector. See methodology for details.

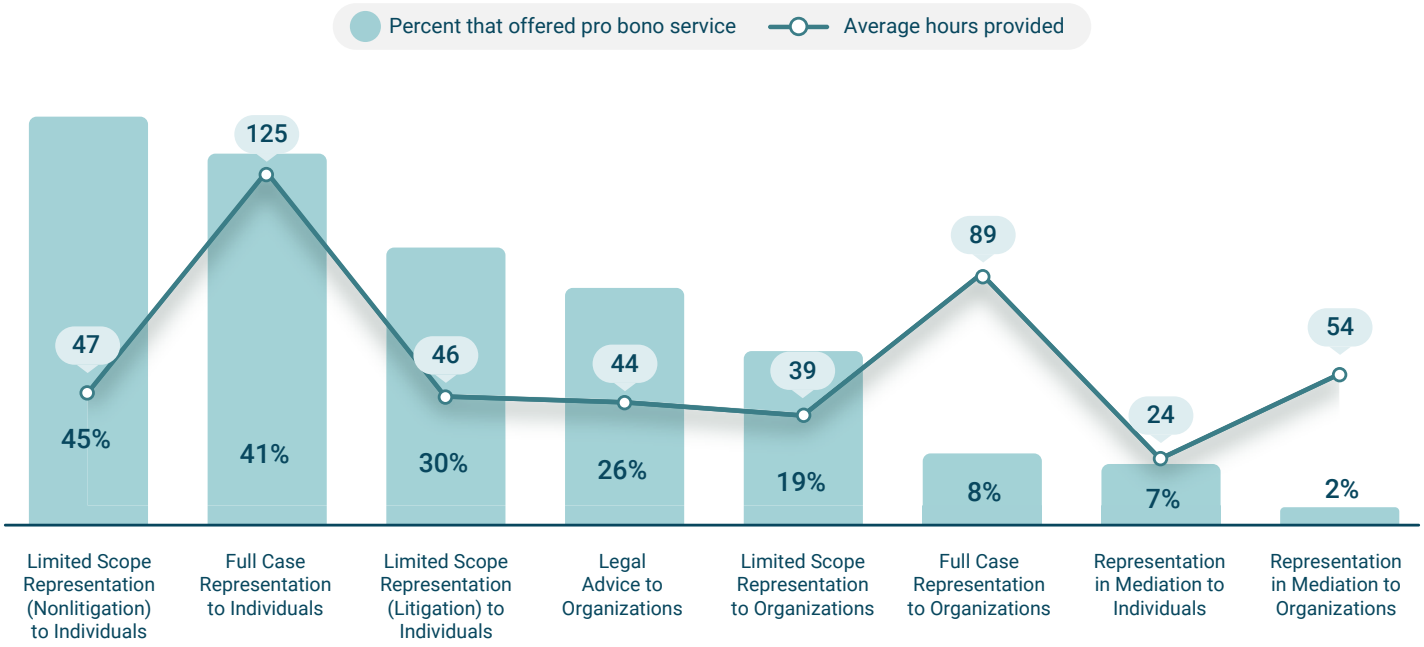
Attorneys can provide pro bono services to individual clients, to organizations that support individuals of limited means, or on behalf of groups of individuals with limited means through class action lawsuits. In 2022, most California attorneys who provided pro bono service did so for individuals (84 percent), 42 percent assisted organizations, and 11 percent contributed to class action lawsuits.[69]Attorneys were also asked about the demographics of the pro bono clients served. Over half (51 percent) reported an "ethnic minority" among their clients, 46 percent reported serving a non- or limited-English speaker, 41 percent reported serving a single parent, 40 percent reported serving an elderly client, and 27 percent reported serving a disabled client.[70]

Review all categories of clients served in 2022 in Appendix 7.

The largest category of pro bono services attorneys provided in 2022 was limited scope representation without litigation for individual clients.

Figure 35 displays detailed information on the types of pro bono services offered by attorneys who provided pro bono services in 2022, further disaggregated by service recipients. Nearly half of all attorneys provided limited scope, non-litigation representation for individual clients, providing, on average, 47 hours of pro bono service.[71] The next largest category of pro bono service was full case representation for individual clients: 41 percent of attorneys reported providing this service, contributing an average of 125 hours. However, just 8 percent of attorneys provided full case representation to organizations; attorneys that did so contributed an average of 89 hours. Nearly one-third of attorneys provided limited scope litigation representation to individuals, while roughly one-fourth offered legal advice to organizations.

Figure 35. Types of Pro Bono Service and Average Hours California Attorneys Provided in 2022



Note: Respondents were asked to report the number of hours spent and matters handled for different services provided to individuals and organizations in 2022. See methodology for more details.

69 All analyses that reference attorneys who provide pro bono in 2022 reflect California attorneys who provided more than zero hours of pro bono service.
70 "Ethnic minority" was the term used in the 2023 ABA Pro Bono Survey instrument.
71 Limited scope representation, also known as "unbundled services," allows attorneys to handle specific parts of a legal case rather than representing clients throughout the entire process. Examples of non-litigation types of limited scope representation include preparing forms, drafting declarations, and engaging in negotiation and mediations. Examples of litigation types of limited scope representation include representing a client during a hearing. Among those who provided the specific type of pro bono service, the median hours provided is as follows: full case representation to individuals, 50 hours; full case representation to organizations, 45 hours; representation in mediation to individuals, 12 hours; representation in mediation to organizations, 24 hours; all other types of pro bono service listed, 20 hours.

The most common legal task performed during pro bono service was providing advice, with family law being the most frequently addressed legal area.

Attorneys who provided pro bono services in 2022 were asked questions about their most recent experience, including the type of service, the legal tasks performed, and the practice area.[72]

Legal Tasks

- The most frequently reported legal tasks performed by attorneys performing pro bono service were providing advice, reviewing/drafting documents, and interviewing clients.

Practice Area

- Family law was the most common practice area, followed by contract law, immigration law, estate planning/probate/wills, and criminal law.[73]
- More than half (57 percent) of attorneys reported that their most recent pro bono service was only in one area of law, with 21 and 22 percent reporting that it was in two and three or more areas, respectively.

Top Legal Tasks Performed During Pro Bono Service

1. Providing advice
2. Reviewing and/or drafting documents
3. Interviewing clients

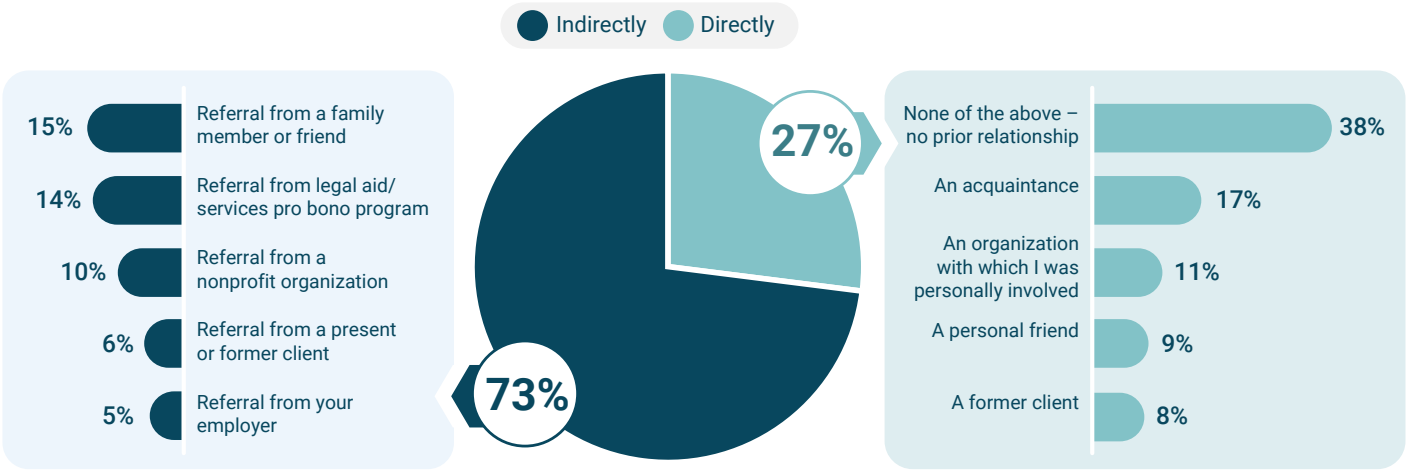
Top Practice Areas Performed During Pro Bono Service

1. Family law
2. Contract law
3. Immigration law
4. Estate planning/ probate/wills
5. Criminal law

Most clients and attorneys connected indirectly instead of finding each other directly.

Nearly three-quarters of attorneys reported that their clients found them through some indirect method. The most common indirect methods were referrals from family members or friends, legal aid pro bono programs, and nonprofit organizations. More than one in four attorneys reported that their most recent client contacted them directly. Among these, 38 percent said they had no prior relationship with the client. See figure 36 for the top five ways attorneys connected with their pro bono clients.

Figure 36. How California Attorneys Were Connected to Pro Bono Clients



72 Asking respondents to reflect upon their most recent experience allows for a detailed understanding of legal tasks and practice area. Although this approach does not capture all pro bono services offered in 2022, most attorneys reported that their most recent pro bono service was taken on behalf of individuals and the most frequent form of service was non-litigation limited scope representation, similar to what they reported for all of 2022. The 2023 ABA Pro Bono Survey was administered between May through August 2023. As a result, the experiences reported may reflect pro bono experiences that occurred in 2023.

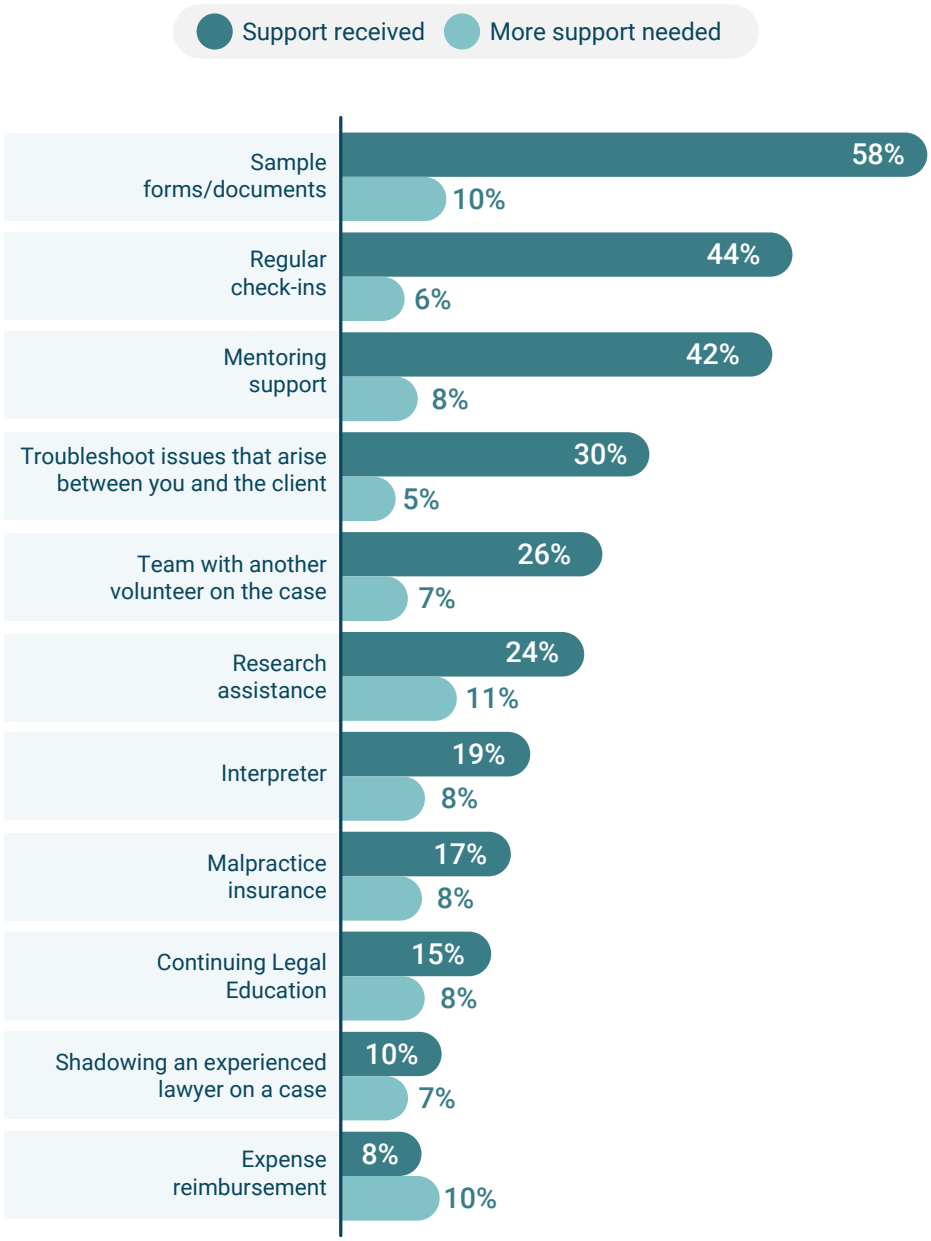
73 It must be noted that although the 2024 California Justice Gap Study focuses on civil matters, attorneys provide pro bono services in criminal cases.

See all the ways California attorneys connect with their pro bono clients in Appendix 8.

Although organizations that refer pro bono work to attorneys provided support, some attorneys reported needing more.

California attorneys reported the following types of support they received from referral organizations: support with sample forms/documents, regular check-ins, mentoring, troubleshooting issues between the attorney and client, and teaming up with another volunteer on the case. A small share of attorneys reported needing more support: 11 percent wanted more support with research assistance, and 10 percent wanted more support with sample forms/documents and expense reimbursement. See figure 37.

Figure 37. Support from Referral Organizations as Reported by California Attorneys



Note: Respondents who reported providing pro bono service in 2022 were asked, "Please indicate below what support you received from the referral organization for this legal matter and whether you needed more of this type of support."

One-third of attorneys report that their most recent pro bono case was not within their regular area of expertise.

California attorneys tended to accept cases within their area of expertise. Specifically, 67 percent indicated that their most recent pro bono experience was within their area of expertise. However, one-third accepted a case outside their area of expertise.

The area of law for which attorneys most often accepted a case outside their area of expertise was immigration: one in five attorneys who took a case outside their area of expertise reported that the matter pertained to immigration. Other areas of law for which attorneys most often accepted a case outside their expertise were family law and contract law.

Most attorneys reported that their most recent experience was consistent with their expectations, while one in five reported that it took longer than expected.

Most attorneys (76 percent) reported that their most recent pro bono experience was consistent with their expectations. Approximately 22 percent indicated that the case took more time than expected and 6 percent said that the case was more complex than expected. The areas of laws for which attorneys reported their most recent pro bono experience required more time or were more complex than they expected were family law, contract law, real estate law, and immigration law.



BARRIERS TO PROVIDING PRO BONO SERVICES

Attorneys were presented with a set of factors that might motivate them to offer pro bono, or provide more pro bono services if they already provided them, and they were asked to rate the degree to which each would personally motivate them to provide pro bono. The top two factors rated as "very motivating" were helping people in need (54 percent) and reducing social inequalities (36 percent).[74]

Attorneys were also invited to share personal reflections on specific pro bono experiences that have either encouraged or discouraged them from pro bono work.[75]

Common positive sentiments included:

- Experiencing a sense of personal fulfillment and satisfaction, often stemming from using their legal skills to assist those in need;
- Motivation to give back to their community and make a tangible difference in people's lives; and
- Achieving positive case outcomes was rewarding, reinforcing their commitment to using their legal expertise to effect change.

74 Respondents were asked, "The following are a list of factors that might motivate an attorney to do pro bono (or more pro bono). How influential would each factor be to you personally, in motivating you to do pro bono, using a scale from 1 to 5 where 1 means "not at all motivating" and 5 means "very motivating."

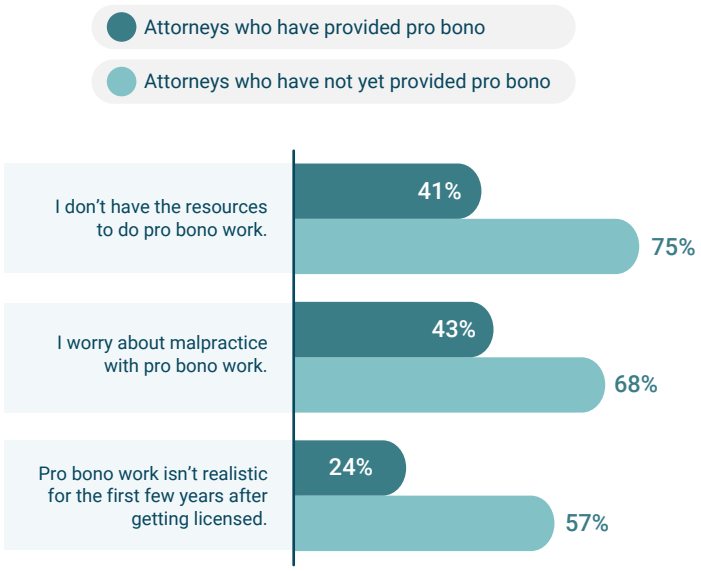
75 Respondents were asked, "Have you had any specific pro bono experiences that have either encouraged or discouraged you to do/from doing more pro bono work? If so, please describe."

Despite these sentiments, one in four California attorneys have not yet provided pro bono during their careers, as reported in figure 33. This section explores the barriers attorneys face in offering pro bono with detailed analyses of attorneys who have not yet provided pro bono service. For figures that compare attorneys who have provided pro bono with those who have not, results with the largest gaps between groups are displayed.

Three-quarters of attorneys who have not yet provided pro bono services reported they do not have the resources to do so, while over two-thirds reported worrying about malpractice.

Attorneys were presented with a list of general statements about pro bono work. Attorneys who have not yet provided pro bono services agreed more with statements about lacking resources to provide pro bono services, concerns about malpractice issues, and that pro bono work is unrealistic for newly admitted attorneys (see figure 38).

Figure 38. California Attorney Agreement with Statements About Pro Bono by Previous Pro Bono Experience



Note: Respondents were presented with various statements and asked, "Please indicate how well you agree or disagree with the following statements" using a 6-point scale from strongly agree to strongly disagree. "Agreement" is measured by combining the following response categories: "strongly agree," "agree," "somewhat agree."

View results for all response categories in Appendix 9.

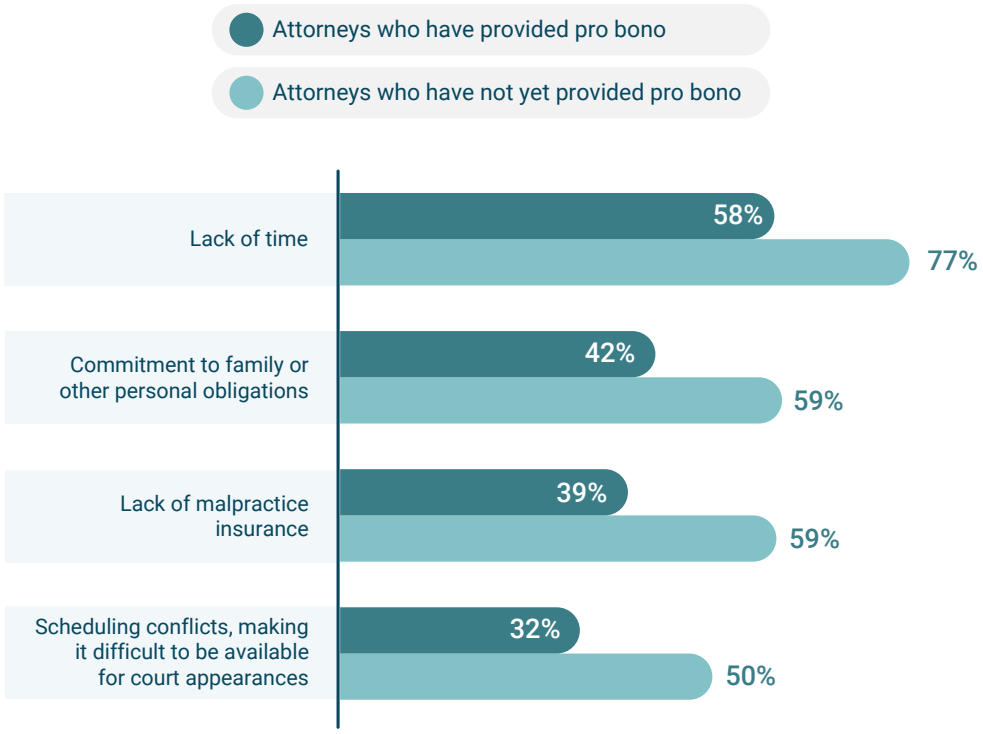
Attorneys who have not yet provided pro bono services reported lack of time as the top discouraging factor when it comes to providing pro bono service.

Survey respondents were presented with a list of factors that might motivate attorneys to perform pro bono (at all) or do more pro bono and were asked to rate each factor's influence in personally discouraging them. For all attorneys, the top three barriers identified as "very discouraging" to doing pro bono or more pro bono were lack of time, commitment to family or other personal obligations, and lack of malpractice insurance. In addition to scheduling conflicts, these three factors also had the largest gaps between those who have and have not yet provided pro bono services. Over three-quarters (77 percent) of attorneys who have not yet offered pro bono identified lack of time as a very discouraging factor. In comparison, nearly 60 percent cited commitments to family and other personal obligations and lack of malpractice insurance. See figure 39.

Figure 39. California Attorneys' Ratings of Factors as "Very Discouraging" in Doing Pro Bono by Previous Pro Bono Experience

Note: Respondents were asked, "The following are a list of factors that might motivate an attorney to do pro bono (or more pro bono). How influential would each factor be to you personally, in discouraging you from doing pro bono, using a scale from 1 to 4 where 1 means "not at all discouraging/not relevant" and 5 means "very discouraging."

View results for all response categories in Appendix 10.



Attorneys cited discouraging experiences with pro bono work, including challenging clients and a misalignment between expectations for time commitment and case complexity.

In response to an open-ended survey question, attorneys described experiences providing pro bono services that have discouraged them from doing more pro bono work, including:

- Challenging clients who often have unrealistic expectations, are demanding, fail to disclose information, or do not follow through on legal advice; and
- The time commitment required for pro bono work often exceeded initial expectations, with cases proving more complex than anticipated.



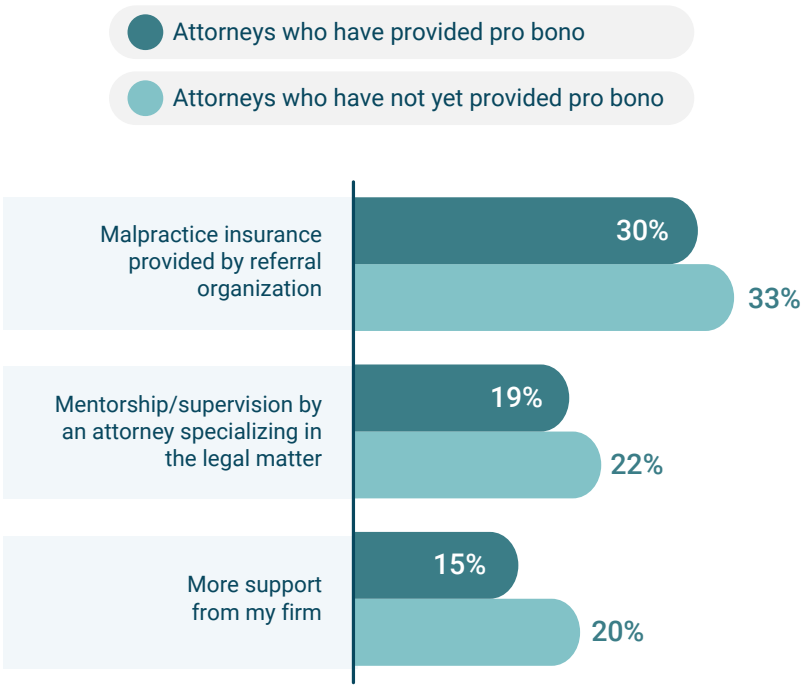
POTENTIAL AVENUES FOR INCREASING PRO BONO SERVICES

This section explores the potential avenues for increasing pro bono services among California attorneys. Attorneys were asked several questions to understand what would encourage them to provide more or start providing pro bono services.

Attorneys who have not yet provided pro bono services reported that providing malpractice insurance, mentorship by other attorneys, and more support from their firms would be very influential in providing pro bono.

Figure 40 lists the top three factors that attorneys who have not yet provided pro bono rated as "very influential" in offering pro bono. For all three, their rating was higher than attorneys who have provided pro bono. One-third of attorneys who have not yet offered pro bono said that malpractice insurance provided by the referral organization would be very influential in encouraging them to provide pro bono. Over one in five attorneys who have not yet offered pro bono reported that mentorship/supervision by an attorney would be very influential. In contrast, 20 percent reported that more support from their firm would be very influential.

Figure 40. California Attorneys' Rating of Factors as "Very Influential" in Encouraging to Provide Pro Bono by Previous Pro Bono Experience



Note: Respondents were asked, "Using a scale from 1 to 5 where 1 means it would be "not at all influential" and 5 means that it would be "very influential," how much influence would each of the following actions have in encouraging you to provide pro bono?"

View results for all response categories in Appendix 11.

Just one-third of attorneys reported that their employers encouraged pro bono activities.

All attorneys except solo practitioners were asked about their employers' attitudes toward pro bono.[76] More than half reported that their employer neither encourages nor discourages pro bono activities. Nearly one-third reported that their employer encourages pro bono activities, while about one in 10 reported their employer discourages it.

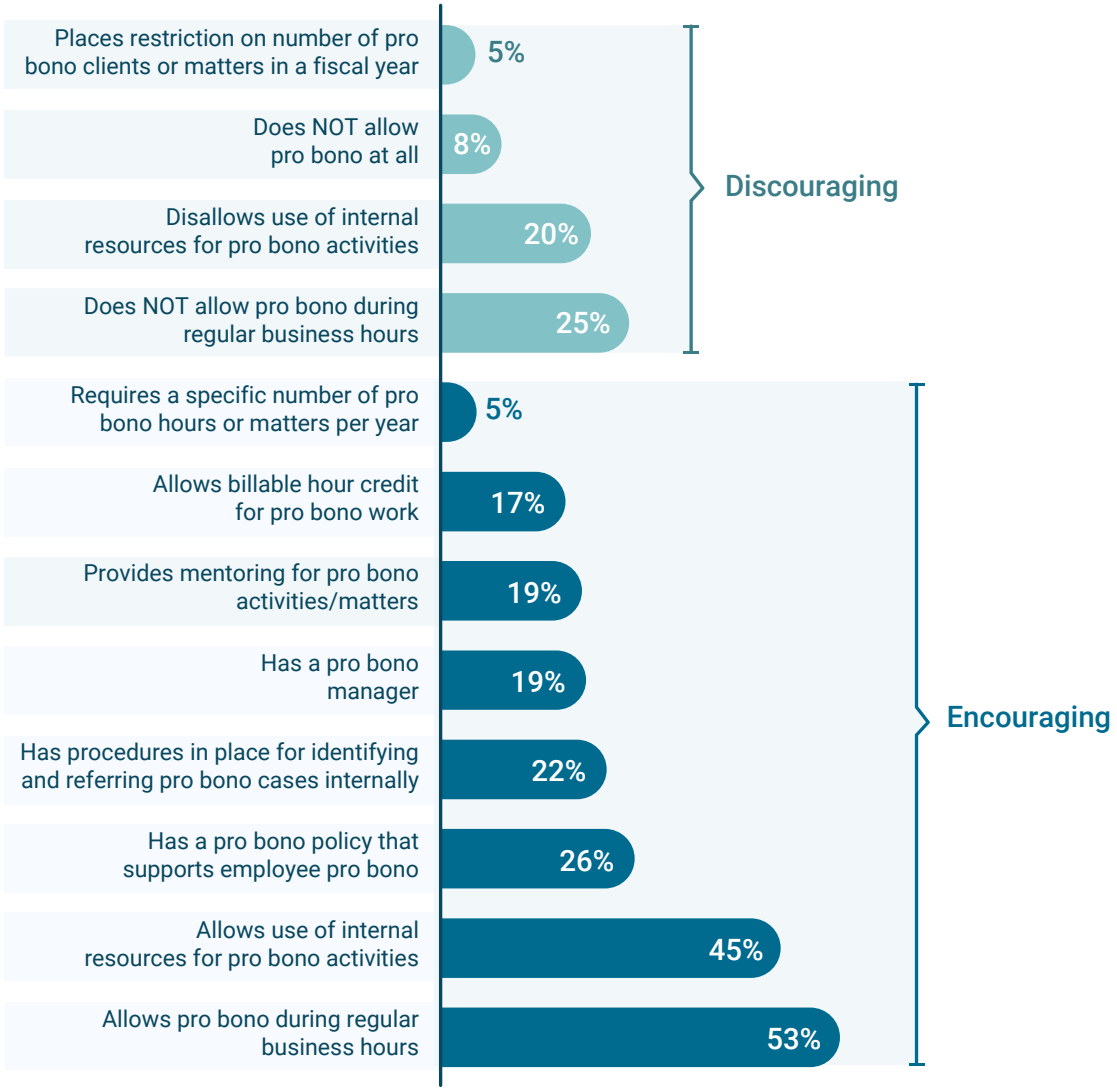
The most common ways employers encouraged pro bono work was by allowing pro bono during regular business hours and using internal resources for pro bono activities.

All attorneys except solo practitioners were asked about their employers' actions regarding pro bono. According to attorneys, the most common ways their employers supported pro bono service was by allowing pro bono during regular business hours and using internal resources for pro bono activities (see figure 41). Additionally, 26 percent of respondents reported that their employers encouraged pro bono activity by having a pro bono policy that supports employee pro bono, and 22 percent reported that there are internal procedures for identifying

76 Respondents were asked, "Which of the following best describes your firm's or employer's attitude toward pro bono?" This question and the question for figures 9 and 10 were not displayed to attorneys who reported working in private practice with only one practicing attorney, including themselves. This narrative uses the term "solo practitioners" to describe this group of attorneys.

and referring pro bono cases. One in four attorneys, however, reported that their employers do not allow pro bono during regular business hours, and one in five reported that their employer disallows the use of internal resources for pro bono activities.

Figure 41. Ways Employers Discouraged or Encouraged Pro Bono According to California Attorneys



Note: Respondents were asked, "And, specifically, does your firm or employer do any of the following as it relates to pro bono?" This question was not presented to solo practitioners.

Nearly half of attorneys who have not yet provided pro bono reported that their employers do not allow pro bono during regular business hours.

The three employer actions with the largest differences between attorneys who have provided pro bono services and those who have not involve employer support for using business time and resources for pro bono work. Most attorneys who have provided pro bono reported that their employers allowed them to use internal resources and regular business hours for pro bono activities. In contrast, few attorneys who have not yet provided pro bono services reported having this type of employer support. See figure 42.

Figure 42. Ways Employers Discouraged or Encouraged Pro Bono According to California Attorneys by Previous Pro Bono Experience

Note: Respondents were asked "And, specifically, does your firm or employer do any of the following as it relates to pro bono?"[77] This question was not presented to solo practitioners.

View results for all response categories in Appendix 12.

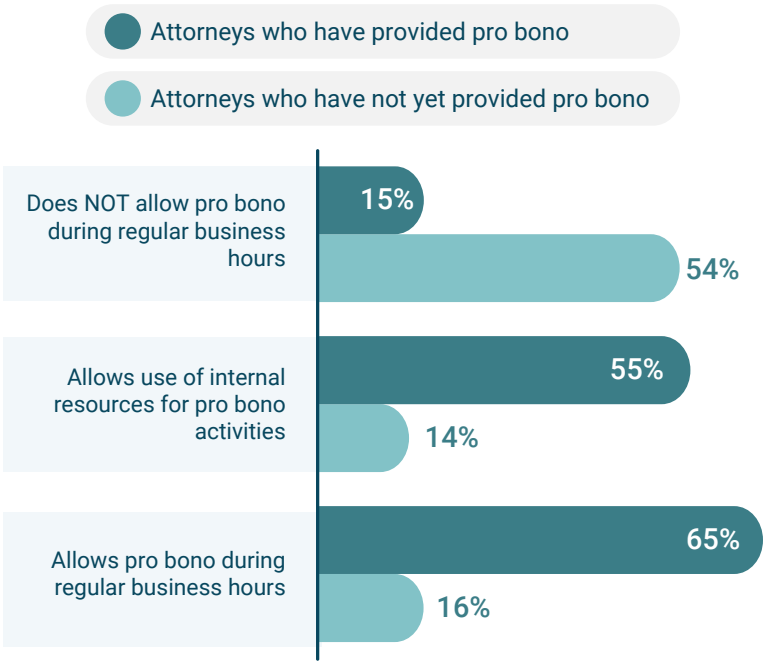
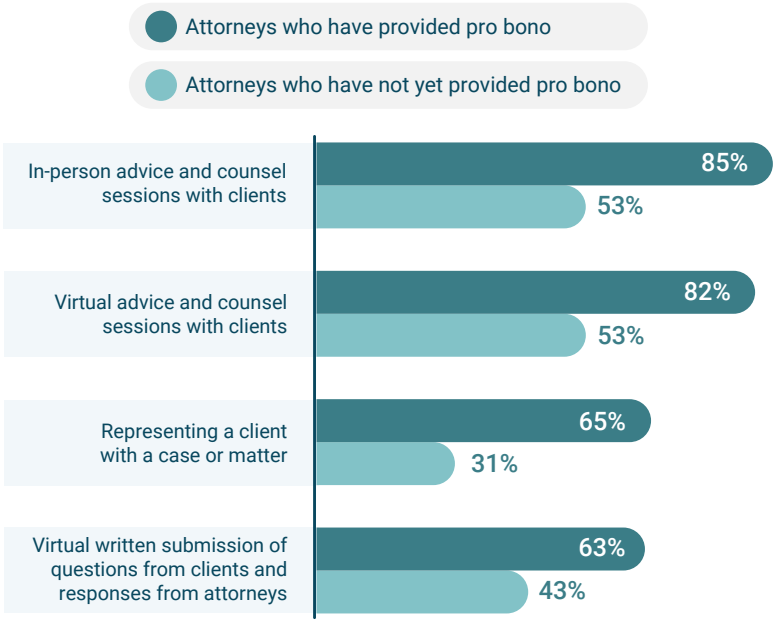


Figure 43. California Attorneys' Likelihood of Engagement with Pro Bono Opportunities by Previous Pro Bono Experience



Note: Respondents were asked, "Please indicate the likelihood you would engage in the following pro bono opportunities" and responded using a six-point scale from extremely likely to extremely unlikely. "Likelihood" is measured by combining the following response categories: "extremely likely," "likely," and "somewhat likely."

Over half of attorneys who have not yet provided pro bono reported being likely to engage with in-person or virtual advice and counsel sessions with clients.

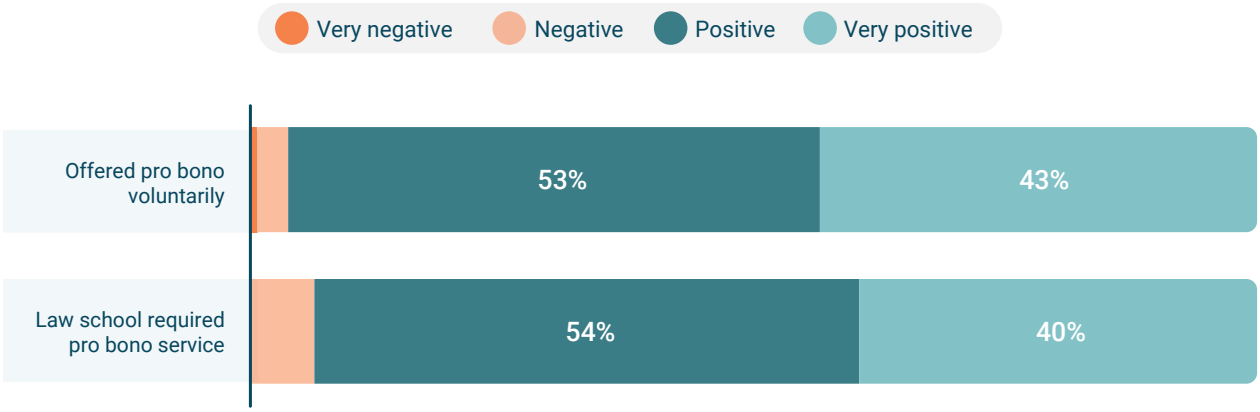
Attorneys were asked about the likelihood of participating in various pro bono opportunities. Unsurprisingly, attorneys who have not yet provided pro bono services reported being less likely to engage with various types of pro bono than those who have provided pro bono services. However, over half of those who have not yet undertaken pro bono services reported being likely to engage in pro bono opportunities that involved in-person or virtual advice and counsel sessions with clients, while less than one-third reported being likely to represent a client. See figure 43. Additionally, when asked about what skills trainings they would prefer when representing a pro bono client, 37 percent of attorneys reported they would only accept a case well within their expertise.

77 Respondents were allowed to select multiple statements without restrictions. Therefore, the selections of "Does NOT allow pro bono during regular business hours" and "Allows pro bono during regular business hours" does not equal 100 percent because respondents were not forced to select one option between the two.

Most attorneys who provided pro bono services during law school rated their experience as positive.

Attorneys were asked about their experience with pro bono work during law school. Only 9 percent reported that pro bono work was a graduation requirement. Among this small group, nearly half were required to complete 25 or fewer hours. Among attorneys who did not have a pro bono requirement, nearly half (49 percent) reported voluntarily providing pro bono services as law students. Regardless of whether pro bono participation was mandatory or voluntary, most attorneys rated their experience as either positive or very positive. See figure 44.

Figure 44. California Attorneys' Experience of Providing Pro Bono Services during Law School



Note: Respondents who indicated they were required to complete pro bono work during law school were asked, "Thinking about the experience you had at your law school, how would you rate your experience with your required pro bono work at your law school?" Respondents who indicated they were not required to complete pro bono work during law school but did so voluntarily were asked, "Thinking about the experience you had at your law school, how would you rate your experience with your voluntary pro bono work in law school?"

More than half of attorneys who provided pro bono services during law school reported that their experience made them more likely or far more likely to provide pro bono services.

Among attorneys who provided pro bono services as law students (49 percent of respondents), 53 percent reported that doing so made them "more" or "far more" likely to provide pro bono services after graduating from law school, 44 percent indicated that it had no impact on their likelihood of providing pro bono services after law school, and only 3 percent reported that it made them less likely to provide pro bono services after law school.

CONCLUSION

While efforts to promote pro bono work among California attorneys have led to progress, with more attorneys reaching pro bono service goals, challenges remain as nearly one-quarter have never provided pro bono services, and over half of attorneys provided no pro bono service in 2022. Analyses of the ABA's most recent pro bono survey highlight factors that encourage or hinder providing pro bono services, offering valuable insights with policy implications. Addressing these barriers strategically could expand pro bono participation and enhance access to justice, advancing the State Bar's goal of meeting the legal needs of underserved Californians.



FUNDING FOR ***LEGAL AID ORGANIZATIONS***

Legal aid organizations are a primary provider of civil legal services throughout the state. Various funding sources—government, foundations, and individual donors, among others—enable legal aid organizations to provide these services to the lowest-income Californians without charge. The first section will explore different funding streams that support the work of legal aid organizations funded by the State Bar. Though such organizations represent a subset of all organizations in California offering free legal services, they also provide applications, reports, and data to the State Bar, which helps illuminate the existing funding landscape.[78] The next sections will then turn to challenges experienced and outcomes achieved by legal aid organizations.

78 These organizations include both direct service organizations (qualified legal services projects) and organizations that provide legal training, technical assistance, and advocacy support to qualified legal services projects (support centers).

LEGAL AID FUNDING

Funding Sources

As shown in table 16, which presents legal aid organizations' revenue in 2019 and 2023, diverse funding sources allow legal aid organizations to serve the lowest-income Californians.[79] These funding categories include the following:

State Bar of California legal aid grants: As the state's largest single funder for legal aid, the State Bar distributes grants to organizations that provide free civil legal services to indigent persons.[80]

Individual and organizational contributions received through fundraising efforts. These support an organization generally, whereas many other forms of financial support often have restrictions requiring funds to be directed to specific efforts or spent within a certain period.

Foundations that engage in philanthropy, either for particular projects or general operations.

Government funders at federal, state, and local levels, including the Department of Justice, the California Department of Social Services, and the County of Los Angeles. Government funders represented the largest combined funding source for legal aid organizations in both 2019 and 2023.[81]

Other cash support, which encompasses any other legal aid organization revenue not captured by preceding categories.

79 As part of their annual grant application for Interest on Lawyers' Trust Accounts (IOLTA) and Equal Access Fund (EAF) awards, grant recipients report on their funding received in the prior year. At the time of writing, the State Bar had not yet received reported amounts for 2024, which will not be submitted until May 2025.

80 For State Bar grants, "indigent persons" are defined as individuals or families living at or below 200 percent of the federal poverty level, seniors, anyone eligible for Supplemental Security Income, and certain individuals with identified developmental disabilities. At the time of the 2019 Justice Gap Study, the poverty threshold for indigence was considered 125 percent of the federal poverty level. (Bus. & Prof. Code, § 6213(d).) Effective January 1, 2022, the threshold increased to 200 percent due to the adoption of SB 498 (Stats. 2021, Ch. 688), making millions more Californians eligible for free civil legal services. In 2024, a family of four with an annual income of $62,400 or less would qualify for free services.

81 This amount excludes State Bar legal aid funding.

Table 16: Detailed Revenue for State Bar-Funded Legal Aid Organizations: 2019 and 2023 (in Millions)

Category	2019	2023
	Amount	Amount
State Bar of California legal aid grants	**$77.2**	**$148.0**
Non-State Bar revenue	**$419.1**	**$657.9**
Individual contributions *Attorneys, private donors, individual gifts, event sponsorship, special events*	$42.4	$60.5
Organizations *Bar associations, law firms, law schools, subgrants from nonprofits*	$15.1	$34.5
Foundations *Foundation grants*	$106.7	$112.1
Legal Services Corporation *Agency funding*	$44.9	$51.8
Area Agency on Aging *Agency funding*	$6.7	$12.1
Government resources *Federal, state, other state funding*	$141.2	$290.5
Residual and cypresa wards *State court and federal court*	$8.2	$20.4
Fees and reimbursement *Attorneys' fees, client-paid amounts, cost reimbursements, other professional fees*	$32.1	$30.3
Other cash support *Rent revenue, other income*	$21.8	$45.9
Total revenue	**$496.3**	**$806.0**

Note: The number of organizations funded by the State Bar in 2019 and 2023 was 98 and 101, respectively. Funding amounts are not adjusted for inflation.

Overall, funding for State Bar grantees increased more than 62 percent between 2019 and 2023. In 2019, State Bar legal aid grants accounted for 16 percent of the total funding that legal aid organizations received. By 2023, State Bar legal aid grants had increased to 18 percent of total funding. Many of these increases were driven by: temporary funds disbursed to meet acute legal needs during and after the COVID-19 pandemic, high trust account deposit balances, and sustained high interest rates to counter inflation in recent years. As a result, these funding increases may be temporary.

State Bar of California Legal Aid Grants

The State Bar, through the Legal Services Trust Fund Commission (LSTFC), administers a variety of legal aid grants to help meet the need for services among low-income and other vulnerable Californians. The LSTFC's mission is "to clos[e] the justice gap in California by increasing equitable access to legal services for low-income and underserved communities."[82]

The State Bar currently funds over 100 organizations, distributing over $180 million in funds in 2024 through statutory formula grants and discretionary grants.[83] To receive a formula grant, an organization must demonstrate that it meets the basic criteria for funding; it will then receive an award based on a formula set forth in California Business and Professions Code section 6216. (Interest on Lawyers' Trust Accounts (IOLTA) and Equal Access Fund (EAF) grants are the two largest formula grants administered by the State Bar.) In contrast, discretionary grants typically target specific areas of law or acute needs through a competitive process requiring detailed proposals on fund usage. Award sizes depend on project scope and proposal strength.

See detailed information about grants disbursed in 2024 in Appendix 13.

Interest on Lawyers' Trust Accounts

In 1981, the California Legislature authorized the IOLTA program under Business and Professions Code sections 6210–6228 (IOLTA Statute). The IOLTA Statute requires lawyers to place client funds that are nominal or will be on deposit for short periods of time into interest- or dividend-bearing accounts in which the interest or dividend is paid to the State Bar. The primary funding source for IOLTA grants is the interest remitted to the State Bar from these client trust accounts.

Learn more about IOLTA grants in Appendix 14.

Equal Access Fund

In 1999, the California Legislature established the EAF, which is reauthorized annually through the state budget.[84] EAF is distributed in two parts: (1) 90 percent of the funds are distributed according to the statutory IOLTA formula, and (2) 10 percent are distributed as discretionary Partnership Grants. Grantee organizations must use EAF funds to provide an identified set of services that can be evaluated, such as to a particular client constituency or in a specific area of law, for example.

Learn how State Bar-funded organizations used EAF funds in 2024 in Appendix 15.

Interest on Lawyers' Trust Accounts

The amount of legal aid grant funding disbursed by the State Bar over the last 10 years is provided in figure 45 (amounts not adjusted for inflation).[85] In general, the two major formula grants (IOLTA and EAF) comprise the majority of funds disbursed, except in 2023. Key trends include the following:

82 Legal Services Trust Fund Commission, Legal Services Trust Fund Commission Five-Year Strategic Plan 2024-2028 (2024), p. 3.
83 There are several other organizations throughout the state providing free civil legal services that, for a variety of reasons, may not have applied or qualify for State Bar grants. State Bar-funded organizations are required to have a primary purpose of providing free civil legal services to indigent persons (or free civil legal support services in the case of support centers). (See Bus. & Prof. Code, § 6213(a) & (b).) As noted at the outset, these organizations represent a substantial proportion of, but not the only, legal services available to low-income Californians.
84 EAF is included in the state budget each year as part of the Judicial Council of California's budget.
85 Seventy-five percent of Homelessness Prevention 3 (HP3) funds in 2024—which partially come from EAF dollars—were designated for distribution as formula grants, with the remaining 25 percent distributed through a competitive discretionary grant award process. For purposes of figure 1, HP3 formula grants were grouped with the discretionary grants, because they represented a time-limited and issue-specific funding source and to distinguish them from IOLTA and EAF grants that are distributed according to the IOLTA funding formula.

- There has been rapid growth in funds disbursed over the last 10 years, except for 2021, when grants disbursed dropped to $60.4 million. In 2014, just $30.4 million was disbursed, while over $180 million was disbursed in 2024.
- While the IOLTA distribution has trended upward in the past few years, this funding is vulnerable to economic volatility due to changing interest rates. For example, figure 45 shows a significant drop from 2020 to 2021. This drop reflects large interest rate cuts in 2020 during the COVID-19 pandemic, which led to substantially lower interest income available to distribute as grants in 2021. In contrast, sustained high interest rates in the past few years—implemented to counter rising inflation—have led to a five-fold increase in funds from 2023 to a planned distribution of $252 million in 2025, representing a high-water mark for IOLTA funds. Consequently, IOLTA may be considered a consistent but variable grantee funding source.
- EAF funding has more than doubled over the last 10 years, from approximately $14.5 million in 2014 to $31.5 million in 2024.[86]
- Discretionary grant funding has experienced the most dramatic increase since 2014. That year, just $1.5 million was disbursed, compared to $53.7 million distributed in 2024.

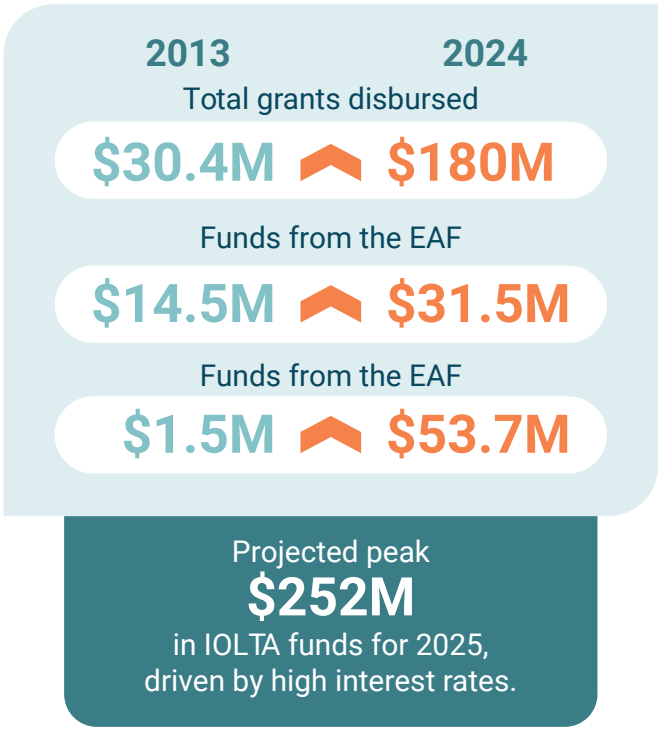
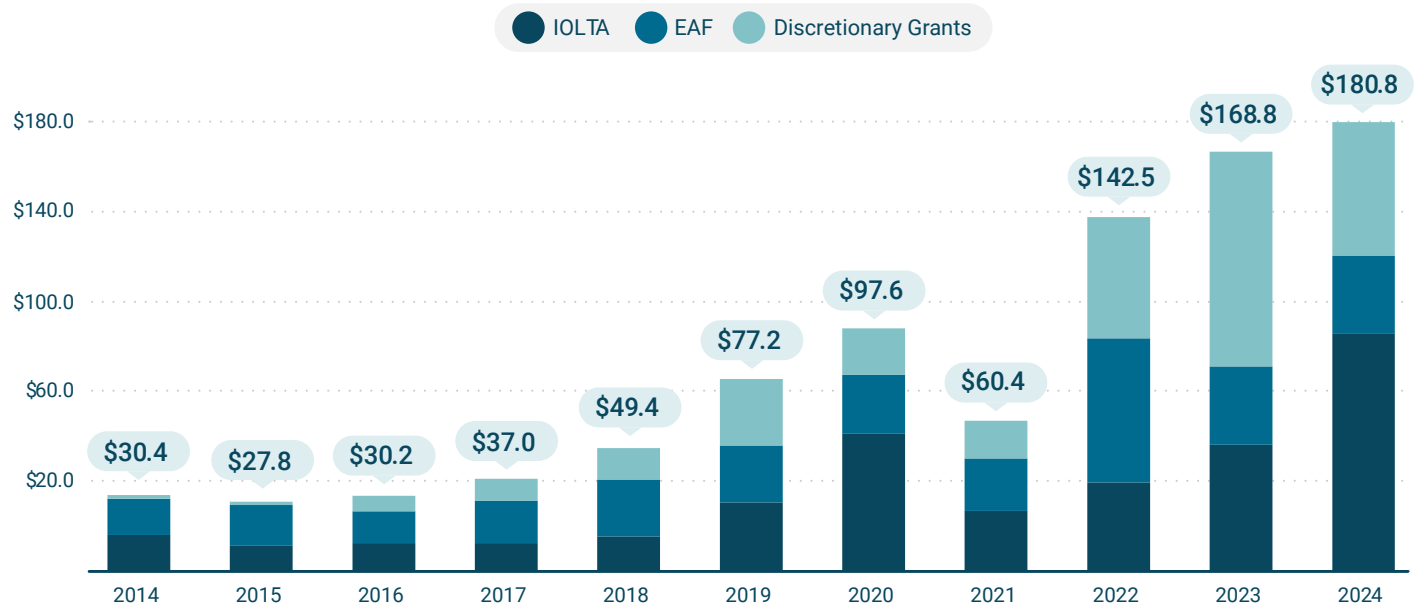


Figure 45: Total Amount of Legal Aid Grant Funding Disbursed by the State Bar, 2014-2024 (in Millions)



Note: The totals for 2023 include $21.4 million in CARE Court funding, some of which went to public defender offices throughout the state. See the Appendix page on discretionary grants for a description of this source of funding.

Learn more about the discretionary grants administered by the State Bar in Appendix 16.

86 The one exception to this was a one-time funding increase in 2022, which more than doubled 2021 funding.

CHALLENGES FACED BY LEGAL AID ORGANIZATIONS

Between 2019, when the first California Justice Gap Study was conducted, and 2024, the amount of State Bar funding to legal services organizations increased by over $100 million, a 134 percent increase.[87]As the NORC survey of Californians' civil legal needs found (summarized in "Measuring Californians' Unmet Civil Legal Needs"), 73 percent of lowest-income households (defined as those at or below 200 percent of the federal poverty level) experienced at least one civil legal problem in the last 12 months, and one in five had 10 or more. The survey also showed that despite this need, these households received little to no legal help for the majority of their problems. Survey results suggest that even with meaningful increases in funding and services, the demand for legal services from the state's lowest-income residents continues to outpace current supply.

In particular, legal aid organizations often cite recruitment and retention of attorneys as a predominant challenge in maintaining or expanding services, issues that were well documented in the 2019 California Justice Gap Study.[88]

The primary reasons for turnover have remained consistent in the years since the 2019 report was published: financial pressure due to low salaries and educational debt.[89]Organizations that primarily rely on pro bono services have also struggled to maintain pro bono engagement at the level required to close the justice gap despite a slight increase in the number of attorneys engaged in pro bono legal services (see table 17).

Increased funding has little impact on service availability unless accompanied by sufficient staffing. Anecdotally, organizations report that—even with the expanded hiring that additional funding enables—it takes time to see results from increased staffing. Employers must devote time and resources to train new hires; build their capacity to work independently and take on more, or more complex, cases; and absorb the impact of turnover, which redirects some funds to recruitment efforts.

Table 17 explores staffing changes at State Bar-funded organizations between 2019 and 2023, the most recent year of data available.[90]As the table shows, staffing has increased significantly, with legal aid organizations onboarding more attorney and nonattorney staff.

Key findings include the following:

- Between 2019 and 2023, State Bar grantees, in total, added 388 attorneys to their staff, with an average of three more attorneys per organization. These additions represent a 24 percent increase in attorney staffing.[91]
- In 2023, there was one legal aid attorney per 5,338 indigent Californians (defined as living at or below 200 percent of the federal poverty level). This ratio is a significant improvement (approximately 28.5 percent) from 2019, when there was one legal aid attorney per 7,466 indigent Californians.[92] While the increase in attorney

87 State Bar of California, 2019 California Justice Gap Study Executive Report, p. 30.
88 State Bar of California, 2019 California Justice Gap Study Executive Report, p. 18.
89 California Access to Justice Commission, Legal Aid Recruitment, Retention, and Diversity: A Report to the State Bar of California (February 2022), pp. 14-17. See also Matt Reynolds, "Civil legal aid lawyers are often the last line of defense. Why are there so few of them?," American Bar Association, April 1, 2024, describing the national shortage of legal aid attorneys and the similar circumstances surrounding their recruitment and retention.
90 As part of their annual grant application for IOLTA and EAF awards, grant recipients report on their staffing in the prior year. At the time of writing, the State Bar had not yet received staffing numbers for 2024; numbers will not be submitted until May 2025.
91 This report reflects staffing at a point in time—December 31 of the referenced year—and may obscure turnover or vacancies that existed at other times in the preceding months.
92 Calculation is based on the American Community Survey report Poverty Status in the Past 12 Months, 5-Year Estimates (https://data.census.gov/table/ACSST1Y2023.S1701?q=california federal poverty level) for individuals at or below 200 percent of the federal poverty level, divided by the total number of attorneys, as reflected in State Bar grantees' staffing reports from 2019 and 2023. The income standard was raised to 200 percent of the federal poverty level from 125 percent in 2022. To make appropriate comparisons between the two years, 200 percent of the

staffing in the past five years has improved the ratio of attorneys to indigent persons, it is still insufficient to meet demand.

- Although the number of attorneys offering pro bono services has increased, pro bono volunteerism (in terms of hours) has also not recovered to pre-pandemic levels, further curtailing available services.
- Nonattorney staff have increased significantly (49 percent increase). Some organizations have moved to service models that allow greater utilization of nonattorneys under the supervision of attorney staff, which may extend services to more individuals and influence the level of service an organization can provide.

Note: Information on attorney (staff and pro bono) and nonattorney staff was derived from State Bar grantees' 2019 and 2023 staffing reports.

Table 17: Staffing at State Bar-Funded Organizations: 2019 and 2023

Category	2019	2023
Attorney staff		
Total	1,598	1,986
Average per organization	17	20
Number of indigent Californians per legal aid attorney	7,466	5,338
Pro bono attorneys		
Total	12,943	13,729
Pro bono hours	359,641	331,245
Nonattorney staff		
Total	1,860	2,770
Average per organization	19	27

OUTCOMES ACHIEVED BY LEGAL AID ORGANIZATIONS

Top areas of law where outcomes were achieved

130,687 Housing

62,430 Family/domestic violence

42,802 Immigration

42,077 Disability rights

37,186 Health and long-term care

31,599 Income maintenance

Between 2019 and 2023, State Bar-funded legal aid organizations achieved 656,365 legal outcomes for their clients.[93]These outcomes include obtaining court orders, negotiating settlements, winning monetary awards, and more. Housing (130,687), family/domestic violence (62,430), immigration (42,802), disability rights (42,077), health and long-term care (37,186), and income maintenance (31,599) were the top areas of law where outcomes (i.e., substantive results that benefited the client) were achieved.[94] Legal aid organizations served an

federal poverty level was used to calculate the attorney ratios for both 2019 and 2023. Between the 2019 and 2023 estimates, the population at or below 200 percent of the federal poverty level decreased by approximately 1.3 million.

93 These numbers are reported only by qualified legal services projects, as they provide the majority of direct legal services in a given year. Further, outcomes are reported only for cases closed by the end of the year; this report does not capture additional outcomes achieved for ongoing cases or for instances where an attorney–client relationship was not established, such as when brief services were provided in a clinic setting. In 2019, 101,113 outcomes were achieved, and in 2023 there were 126,817 reported outcomes, a 25 percent increase when comparing the two years. This data was aggregated based on grantee organizations' Main and Economic Benefits reports submitted to the State Bar as part of the annual legal aid evaluation process. Though the outcomes reported directly impacted the client, in many instances they also benefited the clients' household (e.g., protecting the client's entire family from eviction) and thus reflect a broader impact than the outcomes alone demonstrate.

94 This list excludes categories with a higher number of outcomes labeled as Access to Justice and Miscellaneous, because they encompass outcomes that are not tied to a specific area of law (Access to Justice) or combine several different areas of law (Miscellaneous).

additional 764,861 people through self-help clinics and fielded 571,629 hotline calls during that same period. Hotline calls, in particular, showed a tremendous increase over time, with 65,089 in 2019 compared to 166,810 in 2023 (156 percent increase).[95]

Further, legal aid organizations recovered almost $544 million on behalf of clients (examples include back pay awards for uncompensated work time, monetary awards for harm caused by the other party, sanctions against the other party in the court proceeding, etc.) and obtained an almost $315 million reduction in amounts owed by clients (examples include avoiding wage garnishment, reduction or elimination of unpaid rent or medical debt, etc.).[96]

Despite challenges in meeting the full demand for civil legal services from eligible clients, these efforts reflect the significant impact legal aid organizations have on reducing the justice gap for the lowest-income Californians.

CONCLUSION

Funding from various sources, including the State Bar, supports legal aid organizations that offer access to justice for Californians living at or below 200 percent of the federal poverty level. These organizations provide a significant number of services and received a substantial increase in funding since the 2019 Justice Gap Study Report. However, it is clear from the NORC survey results that demand continues to exceed supply of these critical legal services. While the ratio of legal aid attorneys to indigent Californians has meaningfully improved in the past five years, the 2022 statutory amendment to expand client eligibility from 125 percent of the federal poverty level to 200 percent of the poverty level enabled 4.5 million more low-income Californians to access these services.

Future research will explore in greater depth the amount of legal aid funding available per eligible client, especially in light of expanding eligibility requirements for IOLTA-funded work. More detailed data is needed to better understand the factors contributing to ongoing unmet needs. In particular, collecting information about service models and conducting a mandatory intake census at regular intervals among State Bar-funded organizations will help illuminate how changes in funding and staffing, among other things, impact service delivery.[97]

These efforts will be supported by the Legal Services Trust Fund Commission, which has committed to improved data collection and tracking of outcomes as part of its 2024-2028 Strategic Plan.

95 This information was derived from grantees' Case Summary Reports, which—like Main and Economic Benefits—are part of the annual legal aid evaluation process.
96 The amounts do not reflect monetary awards paid on an installment basis for an indefinite period (e.g., child support, monthly food assistance, and ongoing disability benefits). These amounts were calculated based on the Main and Economic Benefits reports mentioned above.
97 An intake census is a data collection method in which organizations track requests for assistance they receive over a one-month period. For each request that meets legal aid eligibility requirements, organizations document whether they provided any legal help and, if so, whether the assistance was sufficient to resolve the issue. If no help was provided, they record the reason why. The State Bar administered an intake census to legal aid grantees in 2024, but a low response rate precluded meaningful analyses.

STRATEGIES TO EXPAND SUPPLY OF ATTORNEYS



This section highlights three key strategies aimed at increasing the supply of attorneys who promote access to justice:

Legal Aid Leaders Fellowship. This fellowship program strengthens the pipeline of lawyers entering legal aid organizations, fostering a commitment to serving underserved communities.

Legal Incubators. These programs help cultivate a workforce of private practice lawyers dedicated to providing affordable legal services, equipping new attorneys with the skills and support needed to build sustainable practices.

Lawyer Referral Services. These State Bar-certified services connect the public with private attorneys and by law are required to support efforts to increase access to the justice system by including services to serve persons of limited means (see Bus. & Prof. Code §6155).

By analyzing previously unpublished data and describing these strategies, this section provides insights into approaches designed to expand access to justice for Californians with limited resources. However as the analysis ultimately reveals, these programs are limited in scale and reach, and much more data must be collected to assess their impact.

LEGAL AID LEADERS FELLOWSHIP

Many lawyers begin their law school journey by expressing a strong interest in pursuing a career in public interest law; however, many experience "public interest drift," a phenomenon in which these aspiring lawyers veer from their initial intentions. The State Bar's 2019 research on this topic identified participation in a public interest internship with a legal aid organization as a critical predictor of students' future commitment to public-interest careers.[98] However, legal aid internships are typically unpaid, which can prevent students who cannot afford unpaid summer work from participating.

In 2022, the California legislature directed $5 of the $45 voluntary contribution to legal aid paid as part of annual attorney licensing fees to be used to fund summer fellowships for law students interested in pursuing careers in legal aid.[99] To carry out the statutory language, the State Bar, through the Legal Services Trust Fund Commission (LSTFC), established the Legal Aid Leaders Fellowship (LALF), a paid summer law student internship program.

In 2024, grantee applicants seeking funding for over 700 law students applied to the LALF program. The LSTFC awarded $752,000 in grants to legal aid organizations, which funded 77 law students. Additionally, California ChangeLawyers, a community foundation that funds fellowships for early-career attorneys, partnered with the State Bar and funded 11 additional fellows and offered workshops, training, and networking opportunities for all fellows. In total, 88 law students were hosted by 34 legal aid organizations statewide, completing nearly 30,251 hours of service and training.

Key findings about the 2024 LALF fellows include:

- They were more diverse than the current attorney population and better reflected California's adult population. More than half (69 percent) of the fellows identified as people of color, 64 percent were women, and more than one-quarter (27 percent) identified as LGBTQIA+.
- Upon program completion:
  - **77 percent** of fellows reported a high or very high level of interest in pursuing a career in legal aid after law school.
  - **86 percent** of fellows reported that they would not have been able to work for a legal aid organization without the paid internship.
  - **97 percent** would recommend the fellowship to other law students interested in a career in legal aid.

As a newer program with limited funding, the LALF serves fewer than 100 law students annually. However, as interest in the program increases, funding and paid opportunities for law students must also expand to meaningfully impact recruitment and retention in legal aid and meet the broader demand for legal aid lawyers. As described in "Funding for Legal Aid Organizations," legal aid organizations that received funding through the State Bar in 2023 employed nearly 2,000 attorneys. The LALF is an important step—but a very small step to move in the direction of satisfying the need. Further, insufficient

Top three areas of law served by 2024 LALF fellows

- Housing
- Family/domestic violence
- Immigration

Top skills developed by 2024 LALF fellows

- Legal writing
- Critical thinking
- Cultural humility
- Legal research

98 See State Bar of California's Public Interest Drift: Findings from the 2019 California Law Student Survey.
99 Bus. & Prof. Code, § 6140.03.

data has been collected from program participants to fully assess the program's impact. To address this, the State Bar will develop a research agenda to illuminate the program's impact, including comparing pre- and post-program survey questions regarding level of interest in pursuing a career in legal aid after law school and conducting follow-up surveys with program participants after graduation to learn if they pursued public interest law.



LEGAL INCUBATOR PROGRAMS

Newly licensed and early-career lawyers aiming to launch practices offering affordable legal services face significant barriers such as limited guidance and resources. "Legal incubators" help address these barriers by providing training and support to establish sustainable practices that help minimize the justice gap. The first incubator program was developed in 2007 at the City University of New York School of Law and since then, over 70 programs have emerged worldwide, with most located in the United States.[100]

In 2013, the State Bar of California created the Modest Means Incubator Task Force "to guide the growing incubator movement toward a conscious goal of training a generation of lawyers committed to serving the needs of ordinary people who otherwise have nowhere to go for legal help."[101] This task force released an incubator guide and also launched a grant program awarding $180,000 across four projects to support new or expanding incubators. Four other California programs were launched around the same time.[102]

Today, just five of those eight incubator programs remain active: Contra Costa Family Justice Center, Los Angeles Incubator Consortium (LAIC), Bay Area Legal Incubator (BALI), Access to Law Initiative, and Orange County Legal Consortium (OCLC).[103] These programs take between 12 and 18 months to complete and require participants to complete a certain number of pro bono service hours in exchange for dedicated office space, mentorship, training, practice management software subscriptions, lawyer referral service memberships, insurance, and legal research subscriptions. Nearly 400 lawyers have successfully completed one of these incubator programs.[104]

Incubator programs aim to help lawyers establish practices serving underserved populations. Most programs collect some participant demographic data, such as race/ethnicity, gender, and practice area, but with no information on participants' career paths after completing the program, their impact remains unclear. Tracking participants' career trajectories is vital for assessing program effectiveness, identifying areas for improvement, and ensuring that training aligns with the needs of lawyers serving low- and moderate-income clients.

While legal incubator programs in California show potential for addressing access to justice issues, they currently lack the scale to significantly increase the number of attorneys providing affordable legal services. Since their inception, these programs have served approximately 400 attorneys—a relatively small number that limits their impact on the justice gap. In addition, the lack of comprehensive data on program outcomes and effectiveness makes it difficult to measure their tangible contributions to meeting unmet legal needs. Expanding the capacity of incubator programs and implementing robust data collection to track participant outcomes after program completion can be instrumental in maximizing their effectiveness in reducing the justice gap in California.

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100 See ABA, Results of the Legal Incubator Lawyers' Survey: April 2021.
101 State Bar of California's 2020 Legal Incubators Evaluation Report.
102 The four organizations that received grants were Northern California Lawyer Access (NCLA) – Law Practice Academy, Legal Aid Society of Orange County – Lawyer Entrepreneur Assistance Program (LEAP), Los Angeles Incubator Consortium (LAIC), and Bay Area Legal Incubator (BALI). Programs that launched around the same time were: Center for Solo Practitioners, Modest Means Incubator Program, the New Solo Practitioner Incubator, and Whittier Legal Access Program. Source: ABA, Results of the Legal Incubator Lawyers' Survey: April 2021.
103 Starting in 2025, LAIC and OCLC will be combining to create a single incubator for Los Angeles and Orange counties.
104 The five organizations discussed in this section reported data on the number of attorneys who completed their programs to the State Bar.

LAWYER REFERRAL SERVICES

With the ever-increasing cost of legal help and the significant justice gap, lawyer referral services (LRSs) are an essential way that members of the public can connect with lawyers. The ABA reports over 200 LRSs operating nationwide; California's first LRS was established in 1937. Over the last 10 years, the number of certified LRSs in California has gradually decreased from 52 in 2013 to 37 in 2023, but the number of participating lawyers has increased from approximately 1,300 in 2013 to over 3,700 in 2023. These LRSs cover all counties in the state, with 11 serving more than one county, five serving the entire state, and lawyers offer legal assistance in a wide range of languages and areas of law. LRSs are the most common type of assistance requested through the State Bar's contact center and in 2023, LRSs referred nearly 179,000 callers to participating attorneys.



To operate in California, LRSs must be certified by the State Bar and comply with rules and statutes designed to protect the public. Following initial certification, LRSs are required to recertify each year by submitting an annual report detailing their operations. This report is used to evaluate whether the LRS meets regulatory standards and ethical requirements. Attorneys seeking to join an LRS must be in good standing with the State Bar, demonstrate legal experience and expertise, provide proof of professional liability insurance, and adhere to ethical standards. Once approved, they are eligible to receive client referrals through the LRS.

LRSs conduct an initial intake process to determine whether a client's issue can be resolved without a lawyer. If so, they connect clients to resources like mediation programs or rent control boards. When a lawyer is needed, LRSs assess eligibility based on practice area, lawyer availability, geographic location, and potential conflicts of interest. Eligible clients are then referred to participating lawyers for a reduced or no fee; many LRSs offer a free 30-minute consultation with attorneys to determine necessary legal services and assess if the attorney is a good fit. LRSs also enhance access to legal assistance by connecting clients with bilingual lawyers and offering legal services at reduced rates.

California Business and Professions Code section 6155(f)(5) requires LRSs to develop and maintain programs and services aimed at helping individuals who don't qualify for legal aid and cannot afford the standard hourly rates of private attorneys. Rule 3.820 of the Rules of the State Bar provides examples of the types of services LRSs may provide, including modest means panels, limited scope panels, flat fee panels, free 30-minute consultations, or sliding fee scales. Table 18 shows the percentage of current LRSs that currently offer specific types of activities meant to promote access to justice for Californians with limited means; the data highlights that some services are offered less widely than others.

Table 18. Types of Limited Means Services Offered by California Lawyer Referral Services in 2024

Free 30-Minute Consultations Offered by **84%** of LRSs	Attorneys provide free 30-minute consultations with potential clients to determine whether their legal issue is actionable.
Modest Means Panels Offered by **70%** of LRSs	Attorneys offer services at reduced cost to clients of low and fixed incomes who do not qualify for legal aid and cannot afford standard hourly rates.
Sliding Fee Scale Offered by **57%** of LRSs	Attorneys offer legal services on a sliding fee scale or payment schedule based on a client's ability to pay.
Limited Scope Representation Offered by **40%** of LRSs	Attorneys agree to handle only certain parts of the client's legal issue to reduce overall costs.
Flat Fee Panel Offered by **19%** of LRSs	Attorneys charge clients a fixed amount as full payment for specified legal services, regardless of the amount of work ultimately involved.

Note: Data gathered from LRS recertification applications.

The State Bar does not require LRSs to report the number of referrals to each type of service or outcomes of such referrals. The lack of data prevents LRSs and the State Bar from understanding service demand and effectiveness. Moving forward, gathering insights from LRSs on utilization and outcomes could help improve and expand services to better address Californians' legal needs.

Despite LRSs in California playing a vital role in connecting individuals with legal help, their current scale is insufficient to meaningfully address the widespread need for affordable legal services. All LRSs do not offer the full range of legal services meant to promote access for people with limited means. Compounding this issue is the lack of comprehensive data on their operations and outcomes, which hinders efforts to evaluate their effectiveness in increasing access to justice. Improving the availability of all affordable legal services types and more accurately capturing data on the effectiveness of LRSs will be key in ensuring that these resources can better address the justice gap in California.

CONCLUSION

Closing the civil legal justice gap is essential to upholding the promise of fairness and equality. However, the 2024 California Justice Gap Study confirms that the state's justice gap remains persistent, widespread, and deeply entrenched across all income groups. Despite significant investments, initiatives, and progress since the 2019 study, the research demonstrates that civil legal needs affect Californians at every income level and across diverse communities, including immigrants, individuals involved in the criminal justice system, and small business owners; the fundamental barriers identified five years ago—knowledge gaps and service gaps—continue to leave the majority of Californians without the legal help they need when facing significant civil legal problems.

At the same time, the supply of legal assistance remains constrained by many factors. First, the analysis of California's legal market shows that most of California's for-profit legal market now serves organizational clients, leaving fewer available for the PeopleLaw sector that addresses everyday legal issues for individuals. Second, geographic imbalances persist: Many California counties and rural areas are attorney deserts, with too few of California's 196,000 active attorneys available to meet population needs. Third, pro bono participation remains limited—while many attorneys contribute, most do not meet recommended service levels, and many barriers to providing service exist. Fourth, legal aid organizations, bolstered by significant increases in funding, continue to expand services and achieve strong outcomes, yet unmet needs remain high. Finally, additional strategies to grow the supply of attorneys serving low- and modest-income Californians, including law student fellowships, legal incubators, and lawyer referral services, show promise but currently operate at a limited scale, underscoring the need for broader, sustained investment to ensure equitable access to legal help across California.

Meeting the civil legal needs of Californians requires more than just maintaining existing efforts—it demands a broader, more sustained, and strategic investment in the legal services infrastructure. Expanding public understanding of civil legal rights, strengthening legal aid and pro bono systems, fostering innovative models for affordable service delivery, and addressing geographic inequities will be critical to narrowing the justice gap. The State Bar remains committed to working with stakeholders across the legal system to implement the recommendations developed by the Legal Services Trust Fund Commission, ensuring that every Californian, regardless of income, geography, or circumstance, has meaningful access to the civil justice system.

For any questions or comments, please contact us at JusticeGapStudy@calbar.ca.gov.

RECOMMENDATIONS

Grounded in findings from the 2024 California Justice Gap Study, the following recommendations were developed in collaboration with the Legal Services Trust Fund Commission (LSTFC) and attend to both the supply and demand features of the justice gap. The list includes several recommendations to increase the availability and efficiency of civil legal services through various means (attorney engagement, cross-sector collaboration, increased funding, and technology) while encouraging public outreach and education. Perhaps most importantly, it identifies several areas for further data collection and analysis to better inform and target efforts to decrease the justice gap.



IMMIGRATION LEGAL NEEDS

Immigration Legal Needs: Data Collection

Collect data from State Bar-funded legal aid organizations on common problems that overlap with immigration legal needs (e.g., housing, employment). Measure when immigration was the initial or chief, versus a secondary, issue to better identify and target appropriate interventions.

Immigration Legal Needs: Accredited Representatives

Continue advocating for increased availability of immigration legal services in underserved counties through expansion of the Department of Justice's Recognition and Accreditation Program.

LEGAL AID

Intake Census

Update and administer the State Bar grantee intake census every two to three years. Analyze the results to illuminate trends, understand challenges to providing services, and advocate for appropriate supports for expanding and targeting services to areas of greatest need.

Artificial Intelligence and Legal Aid

Develop guidance and promote responsible use of artificial intelligence (AI) and automated processes across all aspects of legal practice, particularly among legal aid providers, to increase efficiencies and expand services to more Californians in need of legal help.

Legal Aid Leaders Fellowship Support

Establish permanent and increased funding for the Legal Aid Leaders Fellowship (LALF) program to support the career pipeline from law school to legal aid and to study cohort career outcomes. Consider additional pipeline supports, such as bridge fellowships for those who have completed the LALF to aid in their bar exam preparation and multiyear fellowships for attorneys in their first years of practice.



PRO BONO SERVICES

Pro Bono: Attorney Data

Analyze attorney pro bono data, including practice area and location of attorneys, to inform future pro bono initiatives designed to increase volunteerism in the profession.

Pro Bono: Partnerships and Engagement

Partner with legal aid organizations, California law schools, and other key stakeholders to conduct a pro bono education and engagement campaign:

- Target specific audiences (law firms, law schools, local and affinity bar associations, incubator programs, etc.).
- Raise awareness of the justice gap, pro bono ethical responsibility, and the California Pro Bono Portal.
- Encourage attorneys to provide pro bono services through organized legal aid and pro bono programs which afford attorneys key support including pre-screening clients, training, mentorship, and malpractice insurance.
- Encourage California law schools to develop or expand training/curriculum on access to justice, emphasizing the importance of pro bono services for all law students.
- Enhance pro bono programs and opportunities (required or otherwise).



LAWYER REFERRAL SERVICES

Legal Aid, Pro Bono, and Lawyer Referral Services (LRS) Partnerships and Remote Services

Explore partnerships between lawyer referral services and legal aid and pro bono programs as a means to increase pro bono work and facilitate referrals. Leverage those partnerships to provide services to underserved areas of the state through virtual/remote means (e.g., video consultations, email, etc.).

LRS Data Collection

Amend applicable State Bar rules to require LRS programs to collect and report data on modest means program participation and outcomes to inform future policy and partnership efforts.

Public Defenders and LRS Partnerships

Include public defender offices in the recently authorized LRS partnership program to better address the complex civil legal needs of individuals involved in the criminal justice system.

Small Business Outreach and LRS Partnerships

Launch an educational campaign centered on the legal needs of small business owners and include the needs of small business owners in development of the planned LRS partnership program.



ADDITIONAL DATA COLLECTION AND ANALYSIS

Attorney Deserts: Increasing Representation

Analyze attorney census data to gauge interest in and understand the barriers to practicing in rural parts of the state, as a precursor to initiatives aimed at increasing attorney representation in these areas.

Legal Incubator Program Outcomes

Collect data regarding participant career outcomes at established intervals to determine impact on the availability of services for low- to moderate-income clients and identify which models are most supportive and relevant for future practice.

ACKNOWLEDGMENTS

The State Bar of California gratefully acknowledges the many individuals and organizations that contributed to the development of this report. Their expertise, dedication, and collaboration made this work possible.

To ensure the NORC survey on Californians' civil legal needs reflected the experiences of legal service providers, the State Bar undertook extensive stakeholder engagement in partnership with the California Access to Justice Commission (CalATJ). In summer 2023, focus groups were held with the Consumer Attorneys of California (CAOC), the California Employment Lawyers Association (CELA), and State Bar-funded legal aid organizations to gather feedback on the 2019 Justice Gap Study. Solo practitioners and small-firm attorneys who participated in a separate State Bar survey were invited to a ThoughtExchange exercise to share what they believed Californians should be asked in a statewide survey. Legal aid organizations receiving State Bar funding were invited to a similar exercise. This input helped refine survey questions, identify new areas of inquiry, and strengthen the relevance and impact of the 2024 study. Preliminary survey results were shared with CAOC and CELA, leading to identification of a gap in the list of civil legal problems asked about in the survey (personal injury issues). This gap was addressed in a 2025 follow-up survey that also included two new consumer-related problems. The NORC survey was enriched by the thoughtful feedback and shared commitment to access to justice demonstrated by these stakeholders, whose contributions helped ensure the study was grounded in the realities of those working on the front lines of California's civil legal system.

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APPENDIX 1

Civil Legal Problems in the 2024 NORC Survey

The first wave of the 2024 California Justice Gap Measurement Survey collected responses from 6,330 adults between August 8 and October 7, 2024. A follow-up (re-ask) was conducted in early 2025 with 2,209 of the original respondents to correct a questionnaire error and gather data on three additional civil legal problems.[105] The additional questions creates a potential undercount of problems, given that 65 percent of respondents were asked about up to 83 civil legal problems, while 35 percent were asked about up to 86 civil legal problems. Data on these three problems is reported separately from the original 11 problem categories.

The survey began with household-level questions, including household size, income, and whether anyone was a parent, was a veteran, or had a disability. The main section assessed the prevalence of civil legal needs, asking about 83 problems in the first wave and 86 in the second, grouped into 11 categories.

The prompt was "The next part of this survey asks whether you or others in your household have experienced different types of problems that people can have in their daily lives. Please note that some of the topics covered in the following sections may be sensitive or distressing to some. If you experience distress or need help, we've included a list of helpful resources linked at the bottom of your screen. For each problem listed below, please indicate whether you or (if applicable) someone else in your household has experienced the problem in the last 12 months."

Some problems were only shown to relevant subgroups based on earlier responses (e.g., veteran-related questions were only shown to veterans). To support comprehension, the survey included definitions and, when needed, hover-over text with examples. The civil legal problems presented to survey respondents fell into the following categories:

Consumer issues[106]

These questions were asked of all respondents.

1. Problems getting credit because of identity theft
2. Victim of a scam over the internet, by phone, or from someone who came to the door
3. Problems with companies that offer debt reduction or "credit repair" service
4. Problems accessing, refinancing, or repaying student loans
5. Problems with terms for repayment or interest rates charged on a credit card or loan (excluding student loans and mortgages)
6. Problems related to paying a fine or judgment resulting from a criminal or juvenile case
7. Harassment from creditors or collection agencies, including being threatened with criminal prosecution or jail
8. Problems with defects, warranties, installment payments, or repossession of a car, truck, motorcycle, or large appliance like a television or refrigerator

105 Respondents were also asked about whether they experienced the new legal problems over the previous 12 months from the time of the re-ask survey. As a result, the 12-month period for the new set of problems is different than the 12-month period from the original survey.
106 In the 2019 California Justice Gap Measurement Survey, these problems were referred to as "Finance issues."

9. Problems with insurance companies unfairly rejecting claims (excluding health insurance companies)
10. Filed or needed to file for bankruptcy
11. Disputed taxes or tax liens
12. Had wages garnished by a judge or court
13. A utility, such as water, sewer, electricity, gas, phone, or internet, was disconnected due to problems paying the bill

The following consumer issues were only asked of second-wave respondents. Because they were not asked during both waves, they are not included in aggregate analysis of consumer issues.

- Were hurt or injured because of someone else's actions or negligence, such as in a car accident, a slip and fall, or another type of accident
- Had problems with having your personal information, like your Social Security number, credit card, or other sensitive data, stolen, misused (identity theft) or exposed in a data breach
- Had problems with contracts, such as disagreements over terms, conditions, or obligations, feeling pressured to sign a contract you didn't fully understand, or a company or individual failing to follow through on their part of an agreement, such as not delivering goods or services you paid for

Disabilities

These questions were asked of those in households where anyone has a disability.

1. Difficulty accessing or participating in government programs, activities, or services because of a disability and was not provided necessary accommodations
2. Difficulty accessing a store, theater, or other business open to the public because of a disability and was not provided necessary accommodations
3. Lived in a mental health or long-term care facility but preferred to live at home or in some other community setting

Education

These questions were asked of those who had someone in their household attend school in the past 12 months.

1. Could not complete or was repeatedly absent from school or college, including being suspended, expelled, or truant
2. Attended a school or college with building(s) or grounds that were unsafe
3. Required to attend elementary, middle, or high school classes online and did not have reliable internet access, a working computer, or videoconferencing software
4. Attended elementary, middle, or high school and necessary supplies or equipment were not provided or were faulty, broken, or out-of-date
5. Attended a school or college where students were not adequately protected from threats, harassment, or bullying by other students
6. Harassed, bullied, or discriminated against by a teacher, professor, or staff member
7. Denied access to educational services or accommodations

Employment

These questions were asked of all respondents.

1. Employer did not pay wages or benefits that were owed for work performed
2. Denied payments, medical treatment, or rehabilitation services for a job-related injury, including problems relating to Worker's Compensation
3. Exposed to working conditions that were physically unsafe or unhealthy
4. Inability or difficulty performing job duties due to a disability or other medical condition and was not provided necessary accommodations
5. Terminated, demoted, or denied an opportunity for unfair or discriminatory reasons
6. Workplace grievance was not taken seriously or adequately dealt with
7. Subjected to unfair treatment from a supervisor or coworker, including sexual harassment or intimidation
8. Problems with benefits from an employer-sponsored pension or retirement account, including problems accessing accounts

Family and safety

These questions were asked of all respondents.

1. Divorce or separation from a legal spouse
2. Problems adopting a child or providing foster care, including licensing, support services or financial assistance
3. Served or was asked to serve as the guardian or primary caregiver of a family member's child(ren)
4. Difficulties with custody or visitation arrangements for child(ren)
5. Problems related to child support, including collecting and paying it or setting up or changing a child support agreement
6. Problems with alimony payments (excluding child support payments)
7. Domestic violence from a current or former household member or intimate partner
8. Abuse, stalking, or sexual assault from someone outside your household and took or wanted to take out a restraining order
9. Problems involving an elderly or disabled person being taken advantage of or abused by a guardian or caregiver
10. Problems with paternity of a child
11. Had Child Protective Services or other state agency focused on children and family safety get involved in a family situation

Health care

These questions were asked of all respondents.

1. Problems getting or keeping private health insurance paid for by an employer or on one's own
2. Problems getting or keeping Medicaid, Medicare, the State Children's Health Insurance Program (sCHIP), or other government-funded health insurance
3. Billed incorrectly for medical services, including through co-pays and deductibles

4. Health insurance company would not cover procedures, prescriptions, equipment, or services that were thought to be medically necessary
5. Health care provider would not provide or made a mistake when providing medically necessary procedures, prescriptions, equipment, or services
6. Denied an interpreter or had to rely on a friend or family member for help with interpretation when communicating with a health care provider or someone from a health insurance company
7. Have unpaid medical debt or someone tried to collect money for medical debts
8. Problems with a nursing home, group home or other long-term care facility These include problems getting or keeping care accommodation or problems with quality of care provided

Housing

These questions were divided into those for homeowners and those for renters. Homeownership and rental housing problems are combined to produce housing problem results.

Homeownership: These questions were asked of those who own their home.

1. Fell behind on mortgage repayments or had to make special arrangements for payment with the lender, such as mortgage forbearance
2. Had a home go into foreclosure
3. Dispute about rules or fees with a homeowner's association, governing board, or other property management entity in shared property communities
4. Unfair treatment or discrimination by a landlord, property manager, lender, seller, or real estate agent, including when applying for rental housing, making offer to purchase, or applying for a mortgage or home loan
5. Misleading or dishonest mortgage lending practices
6. A lender said that extra financial products needed to be purchased in order to get a mortgage
7. Problems in the process of buying or selling a home, including problems with property surveys, deeds, or titles
8. Problems in the process of purchasing or owning a mobile or manufactured home, including problems with financing, warranties, or fees
9. Disputes over the terms, payment, or quality of work with someone you hired to work on a home

Rental housing: These questions were asked of those who rent their home.

1. Landlord or other property manager failed to keep a rented home in good repair
2. Dispute about rules, rent, or other terms of a lease with a landlord, public housing authority, or other property manager
3. Landlord or other property manager interfered with the use of a rented home, such as by entering without notice, shutting off utilities, locking out occupants, destroying or taking property, or threatening to do these things
4. Experienced difficulty getting a security deposit back or dealt with excessive claims for damages when moving out
5. Fell behind in paying rent, were threatened with eviction, needed to invoke the eviction moratorium, or were evicted
6. Landlord or property manager denied reasonable accommodation for a disability or other medical condition

If respondents indicated that they fell behind in paying rent, were threatened with eviction, needed to invoke the eviction moratorium, or were evicted, they were asked the following follow-up questions:

1. Had any conversations with or were warned by your landlord or property manager about eviction or being told to leave before your lease ended
2. Your landlord or property manager began the formal eviction process
3. You were evicted by order of a judge or court or otherwise had to leave your home before the regular end of your lease

Renter households are defined as those who reported that they rent their home for cash. Housing problems includes home ownership problems and renter problems.

Immigration
These questions were asked of all respondents.

1. Needed to fill out or file paperwork or legal documents relating to U.S. immigration
2. Attended court, trial, or other legal actions related to U.S. immigration

Income maintenance
These questions were asked of all respondents.

1. Problems claiming or keeping Social Security income, including Social Security survivors' benefits
2. Problems claiming or keeping state or federal disability benefits, including Supplemental Security Income (SSI) and Social Security Disability Income (SSDI)
3. Problems claiming or keeping Veterans Administration (VA) disability, housing, educational, job training or other military service-related benefits
4. Problems claiming or keeping subsidized housing or a Section 8 voucher
5. Problems claiming or keeping unemployment benefits, including benefits that were denied or stopped before they were supposed to
6. Problems claiming or receiving a COVID stimulus payment, including problems with the amount of the payment
7. Problems claiming, keeping, or using food stamps (SNAP), Temporary Assistance to Needy Families (TANF), or other government assistance for basic needs
8. Problems claiming, keeping, or using other government assistance for individuals or families

Official records
These questions were asked of all respondents.

1. Wanted to expunge or remove something from a criminal record
2. Problems obtaining government-issued identification, licenses, permits, and documents

Wills and estates

These questions were asked of all respondents.

1. Set up or changed an advance medical directive, health care power of attorney, or living will
2. Made or changed a will, trust, or power of attorney
3. Went through a probate process, administered an estate, trust or will, or was in a dispute about wills, inheritances, or beneficiaries

Veterans' problems

These questions were asked of those in households where anyone has served in the military.

1. Problems getting a job back after discharge or returning from deployment
2. Problems with discharge status or the stated reason for separation from the military
3. Unable to get medical care for military service-related physical or mental health conditions when they were needed

APPENDIX 2

Methodology

California Attorney Counts and State Residency

The data in table 9 comes from the annual reports prepared by the State Bar's Regulation Division that reflect the status of licensees as of January 1 each year. Information on licensees' current addresses was obtained from the State Bar's Membership Data database, which includes attorney status and address details. This information was used to determine whether attorneys reside within or outside of California.

Attorney Residency Within California

Analyses that explore where attorneys live within California are based on a cleaned version of the data files used to produce the official annual reports described above. Correcting for minor errors (such as duplicate or misclassified entries) produced a data file for 216,175 attorneys (170,339 active attorneys and 45,836 inactive attorneys). These differences are minimal and do not affect the findings or conclusions presented.

URBAN/RURAL DESIGNATION

Areas of California were categorized as urban, rural, or frontier using geographical units known as MSSAs. MSSAs are clusters of census tracts within counties and are used by the OSHDP to identify areas with an unmet need for primary care family physicians. Applying the same logic, access to legal services should require no greater travel distance than access to medical care.

There are 541 MSSAs across California: 58 percent are urban, 32 percent are rural, and 10 percent are frontier. Counties across California vary in the total number of and distribution of urban/rural/frontier MSSAs within them: 17 are only urban and rural, 14 are only rural and frontier, 12 have all three, 8 are entirely rural, 4 are entirely frontier, and 3 are entirely urban. Counties also vary by the number of MSSAs within them, with an average of 9.

View the Department of Health Care Access and Information's Medical Survey Study Areas (MSSA) map.

MSSA Categories

Urban
75,000–125,000 residents, reflecting recognized community boundaries that share similar socioeconomic and demographic characteristics
Rural
50,000 or fewer residents, reflecting recognized community boundaries that share similar socioeconomic and demographic characteristics and a density of fewer than 250 residents per square mile
Frontier
Fewer than 11 residents per square mile

Current active and inactive attorneys were categorized as residing in a rural, urban, or frontier MSSA in two steps: 1) assigning an address to a census tract and 2) matching the census tract to an MSSA. In some cases, zip code was used to assign an address to an MSSA, as explained below.

Assigning Census Tracts. Of the 216,175 California addresses analyzed, 191,874 were assigned a census tract using the U.S. Census website. An additional 22,231 addresses were assigned a census tract using U.S. Department of Housing and Urban Development's (HUD) Office of Policy Development and Research HUD-USPS ZIP Code Crosswalk data. Because zip codes can have multiple census tracts with different urban/rural/frontier designations, only zip codes with one type of designation were matched. After this step, a total of 214,105 addresses matched.

Assigning MSSAs. The remaining 2,070 unmatched addresses were matched using the same HUD-USPS ZIP Code Crosswalk data via cities with only one type of designation. After this fourth round, an additional 66 addresses were matched, for 214,171 matches and 2,004 non-matches. As a result, 99 percent of active and inactive attorneys were assigned an MSSA.

California: Resident Population and Poverty Rates

The analysis explores California's 58 counties categorized into 10 regions.

Population Data for Counties and MSSAs

Population data for the state, counties, and MSSAs for 2015 were drawn from the U.S. Census Bureau's American Community Survey (ACS) five-year estimates for 2015. Population data for counties and MSSAs for 2025 were drawn from the most recent U.S. Census Bureau's ACS five-year estimates, which are for 2023.

Poverty Rates for Counties

Poverty data for counties and MSSAs for 2015 were drawn from the U.S. Census Bureau's ACS five-year estimates for 2015. Poverty data for counties and MSSAs for 2025 were drawn from the most recent U.S. Census Bureau's ACS five-year estimates, which are for 2023.

APPENDIX 3

Attorney Deserts Across California

Results discussed in this analysis are available for all California counties in the PowerBI visualization below. A pop-up displaying data will appear when hovering over a county on the map. Please note that poverty rate represents the percentage of the population at or below 200% of the FPL. "N/A" indicates that the filter is not applicable. For example, if the "N/A" option in the Attorney Desert Status for Rural Areas filter is selected, the map and table will display counties that do not have rural areas.

Counties	Attorney Desert Status	Attorney Desert Status for Rural Areas	Attorney Desert Status for Urban Areas
All	All	All	All

Population Change from 2015 to 2025	Active Attorney Change from 2015 to 2025	Inactive Attorney Change from 2015 to 2025
All	All	All

Attorney Desert Status of California Counties

● Is an Attorney Desert ● At Risk of Becoming an Attorney Desert ● Not an Attorney Desert



58

Count of Counties

The State Bar of California

Percent of Residents and Attorneys Living in Rural Areas

Counties	Population	Active Attorney	Inactive Attorney
Amador County	100%	100%	100%
Calaveras County	100%	100%	100%
Del Norte County	100%	100%	100%
Lake County	100%	100%	100%
Madera County	100%	100%	100%
Nevada County	100%	100%	100%
San Benito County	100%	100%	100%
Sutter County	100%	100%	100%
Yuba County	100%	100%	100%
Tuolumne County	93%	99%	97%
Humboldt County	92%	95%	94%
Imperial County	91%	100%	100%
Mendocino County	91%	98%	99%
Colusa County	90%	100%	100%
San Luis Obispo County	86%	94%	93%
Tehama County	85%	87%	68%
Mariposa County	85%	100%	100%
Lassen County	76%	94%	75%
Siskiyou County	74%	94%	84%
Inyo County	71%	70%	80%
Merced County	71%	17%	26%
El Dorado County	64%	66%	56%

APPENDIX 4

State Bar of California's Pro Bono Resolution

The State Bar's Pro Bono Resolution formally acknowledges the dire need for pro bono legal services in the state and urges California attorneys "to devote a reasonable amount of time, at least 50 hours per year, to provide or enable the direct delivery of legal services, without expectation of compensation other than reimbursement of expenses, to indigent individuals, or to not-for-profit organizations with a primary purpose of providing services to the poor or on behalf of the poor or disadvantaged, not-for-profit organizations with a purpose of improving the law and the legal system, or increasing access to justice."

In addition, the resolution urges all law firms, government, and corporate employers to promote and support the involvement of their attorneys in pro bono and other public service through actions such as counting time spent on these activities toward their billable hour requirements or as work credit. The resolution also encourages law schools to promote and support the participation of law students in pro bono activities, including requiring any law firm wishing to recruit on campus to provide a written statement of its policy concerning the involvement of its attorneys in public service and pro bono activities. Finally, the resolution urges all attorneys and law firms to contribute financial support to not-for-profit organizations that provide free legal services to the poor, especially those attorneys precluded from directly rendering pro bono services.

APPENDIX 5

Pro Bono Practice Program and Other Pro Bono Opportunities

The rule changes that went into effect July 2024 streamlined the eligibility requirements for attorneys to participate in the program. Attorneys may apply for the PBPP if they are in good standing with no pending disciplinary charges and have no record of public discipline during the prior three years. If certified as a pro bono practice attorney, the licensee must provide free legal assistance for a pro bono legal services provider and not otherwise engage in activities that require active status. A pro bono legal services provider may be a qualified legal services provider, the no-fee panel or pro bono clinic of a certified lawyer referral service, a court-based self-help center, or a nonprofit organization that provides free legal services to or on behalf of indigent Californians and has been approved by the State Bar as a pro bono legal services provider for the purposes of the program. The attorney cannot provide any legal services for pay. (See State Bar rule 3.329.)

The pro bono legal services provider with which the attorney volunteers must indicate whether it will accept the attorney as a volunteer if approved as a pro bono practice attorney, provide "adequate support and supervision" to the attorney, provide no compensation to the attorney except for reimbursement of expenses, and agree with the attorney to provide a minimum number of pro bono legal services hours annually. Currently, State Bar Rules recommend a minimum of 100 hours. (See State Bar rule 3.330.3) For more information, see the Pro Bono Practice Program on the State Bar's website.

The State Bar publishes a Pro Bono Opportunities Directory on its website listing nonprofit legal services organizations that receive funding from the State Bar Legal Services Trust Fund Program. The California Pro Bono Portal is another statewide resource where legal services organizations post pro bono opportunities and volunteers find opportunities in which they are interested.

APPENDIX 6

American Bar Association 2023 Pro Bono Survey Methodology

The ABA's 2023 Pro Bono Survey was conducted by Baylor Law School, between May 2023 to August 2023. To support participation, the State Bar of California distributed the survey link to active and inactive California licensees via email with an invitation to participate. With permission from the ABA, researchers at Baylor Law School provided the State Bar with a cleaned dataset containing the survey results for 3,035 respondents who reported California as their primary practice location.[107] The State Bar also recoded some write-in responses into existing multiple-choice categories. This dataset included 33 judges who were not asked most questions and removed from all analyses and 20 attorneys who participate in a state licensure program for which their practice is limited to pro bono work only. Therefore, the final dataset included results from 3,002 attorneys.

To assess the representativeness of the final sample relative to the California attorney population, the State Bar compared the gender and racial/ethnic distributions of the sample to those of the active attorney population, as reported in the 2023 Report Card on the Diversity of California's Legal Profession and the workplace sector sample distribution to the active attorney sector distribution as reported in the 2022 Diversity Report Card. The results in the table below suggest that attorneys who identify as "Asian Pacific American, not Hispanic" and those who report working as "Corporate counsel" were underrepresented among the sample, while those who report working in an "Other" sector were over represented.

To address the differences in the representation of these groups, staff explored the impact of post-stratification weighting on two key data points: the percent of attorneys that have/have not provided pro bono (as reported in figure 33) and the average number of pro bono service hours provided in 2022 (as reported in figure 34). The analysis revealed that weighting the data by race/ethnicity did not impact the results; the weighted and unweighted data produced similar outcomes, suggesting that the unweighted data accurately reflects the racial/ethnic composition of California's attorney population. However, weighting the data by workplace sector resulted in a lower average number of pro bono hours reported.[108] As a result of these exploratory analyses, all data presented in this report has been weighted by workplace sector.[109]

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107 A response rate is not calculated for this survey because only 30 percent of the over 250,000 active and inactive California licensees opened the email invitation. The final survey data set provided by Baylor Law School (with permission by the ABA) was refined by researchers who excluded respondents with incomplete surveys, missing demographic information, and responses deemed invalid. Of the 3,035 respondents in the file, 99 percent reported active status, including 33 judges, while 20 attorneys reported they participated in "a state licensure program for which my practice is limited to pro bono work only." Attorneys with inactive status were asked a different set of questions than those analyzed in this report, and their responses were not included in the dataset provided to the State Bar.

108 The average number of pro bono hours provided in 2022 for the unweighted sample was 128 hours.

109 Adding "weights" to survey data is a common methodological technique to ensure that the voices of underrepresented groups within a sample are properly reflected in the analysis. Without weighting, the underrepresented group's views and experiences may be undervalued, leading to biased conclusions, and limiting the generalizability of the findings.

Demographic Composition of California Participants in ABA 2023 Pro Bono Survey and California's Active Attorney Population

ABA Categories	ABA survey (%)	California active attorneys (%)
Race/Ethnicity		
Asian Pacific American, not Hispanic	7	14
Black, not Hispanic	2	3
Hispanic	6	6
Mixed race/ethnicity	5	8
Native American	0.5	0.3
Other	3	0.3
Refused to answer	1	…
White, not Hispanic	75	68
Gender identity		
Female	44	44
Gender nonconforming/Transgender	0.4	1.1
Male	54	55
Refused to answer	1	…
Sector		
Corporate counsel	8	15
Government	12	14
Law School/Academics	2	…
Nonprofit organization	6	4
Other	7	2
Private practice	67	65

Note. The State Bar's demographic categories were combined and reported in this table as follows: Asian and Native Hawaiian/Other Pacific Islander were combined into "Asian Pacific American, not Hispanic;" White and Middle Eastern/North African were combined into "White, not Hispanic." A small percentage of California's active attorneys (0.3 percent) identified as "Other race/ethnicity" but were not reported in the 2023 Diversity Report Card but their results are included here. The State Bar's workplace sector reporting categories were also combined as follows: law firm, solo practitioner, and "other private sector" were combined as "Private practice." The State Bar reports law school and academic settings as "Other" sector. Respondents who skipped the sector question were recategorized as "Other" sector.

Methodology Used to Calculate Pro Bono Hours

The amount of pro bono hours attorneys provided in 2022 shown in figures 34 and 35 was calculated by evaluating several survey items. Respondents were asked: "In what year did you provide your most recent pro bono service?" and were provided with a set of responses that included 2022. Respondents who responded to this question and did not select 2022 were coded as completing zero hours of pro bono in 2022.

Respondents who selected "2022" were asked: "To whom did you provide pro bono in 2022? Select all that apply." Respondents were presented with three categories: individual(s), class(es) of individuals, and organization(s).

Those who provided pro bono services in 2022 to individual(s) or to class(es) of individuals were prompted to fill out a free-response matrix indicating the number of legal matters and number of hours they provided for each of the five following pro bono activities: full case representation, limited scope representation – litigation, limited scope representation – non-litigation, representation in mediation, and representation of a class of individuals. Those who provided pro bono services in 2022 to organizations were asked to fill out a free-response matrix and indicate the number of legal matters and number of hours they provided for each of the four pro bono activities: full case representation, limited scope representation (handled specific task/s), legal advice, and representation in mediation.

Staff engaged in data cleaning as follows: ranges were recoded as the number in the middle of the range (e.g., "3 or 4" was recoded as 3.5); special characters and letters were removed and replaced with the most conservative estimate (e.g., "75+" was recoded as 75); and answers that could not be coded to numerical were recoded as non-responses (e.g., "Many" was recoded as a non-response).

Total pro bono hours were calculated by adding all reported hours across all types of pro bono activities. Eight respondents who reported hours above a typical full-time position (i.e., 2080 hours) were excluded from the analysis of hours of pro bono service provided.

Methodology Used to Estimate Pro Bono Hours Provided by all California Active Attorneys

In 2022 there were approximately 195,000 active attorneys in California.

The State Bar estimated the total pro bono hours provided by all California active attorneys in 2022 using survey data through the following steps:

1. Estimate the number of attorneys providing pro bono services
a. From the survey data, 45 percent of attorneys provided pro bono services in 2022 (see figure 34). Applying this percentage to the total number of active attorneys (195,000 attorneys), the number of active attorneys who provided pro bono services in 2022 is estimated to be 87,750 attorneys.

b. From the 45 percent of surveyed attorneys who provided pro bono services in 2022, a distribution was generated by sector by calculating the percent of attorneys who provided pro bono by sector. For example, 979 of the 1,238 surveyed attorneys, or 79 percent, who provided pro bono were private practice attorneys.

c. Finally, the percent of attorneys who provided pro bono services by sector was applied to the California attorney population who are estimated to have provided pro bono. For example, 79 percent of the 87,750 attorneys, or 69,395 attorneys, who provided pro bono were in private practice.

2. Calculate average pro bono hours per attorney
The average number of pro bono hours for attorneys who reported pro bono service hours was calculated separately for each sector. For instance, private practice attorneys who provided pro bono services reported an average of 101 hours in 2022.

3. Estimate total pro bono hours per sector
The estimated number of attorneys providing pro bono services in each sector was multiplied by the sector's average pro bono hours. For example, 69,395 private practice attorneys multiplied by 101 hours resulted in 7,013,412 total pro bono hours for private practice attorneys.

4. Calculate the total and full-time equivalent (FTE) hours
Summing across all sectors, the total estimated pro bono hours provided in 2022 was 9,901,907. Dividing this figure by 2,080 (the typical annual hours for a full-time position) equates to 4,761 FTE pro bono attorneys.

Estimated 2022 Pro Bono Service for California Active Attorneys

Sector	Estimated attorneys who provided pro bono services	Average hours	Estimated pro bono hours provided	Estimated full-time attorneys
Corporate counsel	9,838	124	1,217,116	585
Government	3,436	216	740,970	356
Non-profit	3,530	237	836,560	402
Other	1,552	60	93,848	45
Private Practice	69,395	101	7,013,412	3,372
Total	87,750		9,901,907	4,761

The ABA survey defined "pro bono services" and "limited means" as follows:

"Pro bono services are:

legal services
personally performed
without charge or expectation of a fee
to persons of limited means or organizations that serve persons of limited means

Pro bono does not include legal services performed to develop a paying client (e.g., a free initial consultation to a potential paying client) or legal services for which payment was expected, but not collected. It also does not include free legal services provided for family or friends who are not of limited means. And, it does not include pro bono activities you performed as part of your paying job responsibilities.

For this survey, persons of limited means are defined as financially disadvantaged persons who are unable to pay for legal services. The determination of this threshold should be made by a pro bono attorney or a legal aid (or similar) organization at the time of screening and according to the program's criteria. In some circumstances, it may include individuals and families earning below 125% of the Federal Poverty Line (approximately $15,000 annually for a family of one or $30,000 annually for a family of four), or up to 200% of the Federal Poverty Line (approximately $25,000 for a family of one or $50,000 annually for a family of four), depending upon the type of case and client involved."

APPENDIX 7

California Attorney Reporting of Pro Bono Clients Served in 2022

Client categories	Total attorneys (%)
An ethnic minority	51
A non or limited English speaker	46
A single parent	41
Elderly	40
Disabled	27
An undocumented immigrant	24
A victim of domestic violence	24
A veteran	20
A student	19
A child/juvenile	19
A documented immigrant	18
LGBT	17
Homeless	16
Incarcerated	12
A rural resident	11
A victim of consumer fraud	11
A migrant worker	6

Note: Respondents who reported providing pro bono service in 2022 were asked, "Please indicate if any of your pro bono clients in 2022 fell into any of the following categories (select all that apply)."

APPENDIX 8

Ways California Attorneys Connect with their Pro Bono Clients: All Response Options

Indirect Connection	Total attorneys (%)
Referral from a family member or friend	15
Referral from legal aid/services pro bono program	14
Referral from a nonprofit organization	10
Referral from a present or former client	6
Referral from your employer	5
Referral from an attorney outside of your organization	5
Referral from a judge or court administrator	3
Referral from a professional acquaintance	3
Referral from a bar association pro bono program	2
Referral from an independent pro bono program	2
Referral from a coworker within your organization	2
Referral from a religious organization	2
Other	2
From a posting on a pro bono listserv to which I subscribe	1
Referral from a law school clinic	1
Referral from a lawyer referral service	1
Referral from a public or law library	1
Referral from a self-help desk	0.3
Referral from a mediation center	0.3
Direct Connection	
None of the above – no prior relationship	38
An acquaintance	17
An organization with which I was personally involved	11
A personal friend	9
A former client	8
A relative	6
A class of persons with whom I had a relationship with at least one class member	4
A class of persons to whom a friend or family member had a connection	2
An organization with which a friend or family member was personally involved	1
A coworker	1
Another relationship	1
A class of persons to whom my employer had a connection	0.3
An organization with which my employer was involved	0.3

APPENDIX 9

Ways California Attorneys Connect with their Pro Bono Clients: All Response Options

Statement	Total attorneys (%)	Attorneys who have provided pro bono (%)	Attorneys who have not yet provided pro bono (%)
I feel happyd oing prob ono work.	88	94	66
I feel like Im adea difference doingp ro bono work.	88	94	63
I feel that doingp ro bono work makes me ag ood role modelf or others.	87	90	77
My career is meaningful from doing pro bono work.	79	88	46
I feel more connectedt om y community afterd oing prob ono work.	78	81	63
I felt accomplished as al awyer after completing my firstp ro bono case.	77	83	56
I feel valued by my organization for my prob onow ork.	72	81	39
I worrya bout malpractice with pro bono work.	49	43	68
I don'th avet he resourcest o do prob onow ork.	48	41	75
I feel prob onow orkd oesn't advance my career as a lawyer.	45	42	59
I wouldn ot feel like a good lawyer if my pro bono client lost theirc ase.	40	39	44
Pro bono work isn'tr ealistic for the firstf ew yearsa fter getting licensed.	32	24	57
I don'tt hink my volunteer efforts improve my prob onoc lient's overall situation.	14	11	28
I don'th avea clear understanding of what prob onow ork involves.	12	7	29
Pro bono work doesn'tm akea difference.	6	4	10
Pro bono work underminest he value of my lawd egree.	5	4	10

APPENDIX 10

California Attorneys' Ratings of Factors as "Very Discouraging" in Doing Pro Bono by Previous Pro Bono Experience: All Response Options

Factor	Total attorneys (%)	Attorneys who have provided pro bono (%)	Attorneys who have not yet provided pro bono (%)
Lack of time	63	58	77
Commitment to family or otherp ersonal obligations	46	42	59
Lack of malpracticei nsurance	43	39	59
Competing billable hour expectations and policies	40	37	48
Lack of skillso re xperiencei n the practice areasn eeded by pro bono clients	38	36	43
Scheduling conflicts, making it difficult to be availablef or court appearances	36	32	50
Too costly;f inancially burdensome to my practice	36	33	45
Discouragement from your employer	35	32	42
The unrealistice xpectationso fc lients	35	33	41
Lack of interest in thet ypes of cases	34	33	38
Lack of clarityo nh ow much time Iw ould end up having to commit in order to complete ther epresentation	31	28	41
Lack of administrative supporto rr esources	25	22	34
Concerns that doing prob onow ork would compromise the interests of my otherc lients	20	17	29
A preference fors pendingv olunteer time on non-legalm atters	17	15	25
Lack of informationa bout opportunities	15	14	19
Personal or philosophicalo bjectionst op roviding pro bono	10	10	12
I feel that al ot of pro bono clientsr eallyc an afford legala ssistance	7	7	10
A preference forp rovidingr educed fee assistance rather than no fee assistance	6	5	8

APPENDIX 11

California Attorneys' Rating of Factors as "Very Influential" in Encouraging to Provide Pro Bono by Previous Pro Bono Experience: All Response Options

Factor	Total attorneys (%)	Attorneys that have provided pro bono (%)	Attorneys that have not yet provided pro bono (%)
Malpractice insurance provided by referral organization	31	30	33
If a judge solicited my participation in a pro bono case	24	27	14
Limited scope representation opportunities instead of full representation of the client	23	24	20
CLE credit for doing pro bono	20	21	17
Mentorship/supervision by an attorney specializing in the legal matter	20	19	22
Opportunities to do pro bono remotely	17	17	16
More support from my firm	16	15	20
Administrative or research support	14	15	14
Opportunities to act as a mentor to young attorneys or law students	13	14	10
If I were matched with another attorney to share the work	12	12	13
The option of selecting a client to assist based on specific demographics	12	13	9
Alternative Dispute Resolution pro bono opportunities	11	12	9
Free or reduced cost CLE	11	11	10
If a colleague asked me to take a case	10	12	6
Reduced fee opportunities as opposed to free service opportunities	8	9	6
Self-reporting and State Bar tracking of voluntary pro bono contributions	8	8	6
The availability of networking opportunities with other attorneys providing pro bono in my community	7	7	4
Periodic contact by a referral organization	5	6	4
Formal recognition of my past volunteer efforts	4	5	3

APPENDIX 12

Ways Employers Discouraged or Encouraged Pro Bono According to California Attorneys: All Response Options

Employer actions	Total attorneys (%)	Attorneys that have provided pro bono (%)	Attorneys that have not yet provided pro bono (%)
Encouraging Employer Actions			
Allows pro bono during regular business hours	53	65	16
Allows use of internal resources for pro bono activities	45	55	14
Has a pro bono policy that supports employee pro bono	26	31	9
Has procedures in place for identifying and referring pro bono cases internally	22	27	6
Has a pro bono manager	19	24	6
Provides mentoring for pro bono activities/matters	19	24	3
Allows billable hour credit for pro bono work	17	21	3
Requires a specific number of pro bono hours or matters per year	5	6	0
Discouraging Employer Actions			
Does NOT allow pro bono during regular business hours	25	15	54
Disallows use of internal resources for pro bono activities	20	14	38
Does NOT allow pro bono at all	8	4	20
Places restriction on number of pro bono clients or matters in a fiscal year	5	5	4
Other	8	7	9

APPENDIX 13

Organizations Currently Receiving State Bar Grants

2024 State Bar Legal Aid Grants

In 2024, the State Bar distributed three formula and eight discretionary grants, disbursing $180.8 million to 110 legal aid organizations. The table below summarizes the grants, the number of grantees, and the total amounts disbursed.

Grant Name	Description	Number of grantee organizations	Total amount disbursed in 2024
Formula grants			
Interest on Lawyer's Trust Accounts (IOLTA)	Free civil legal services to indigent Californians for a variety of civil legal needs; funding generated from interest revenue and voluntary attorney contributions administered by the State Bar	110	$95.3 million
Equal Access Fund (EAF)	Free civil legal services to indigent Californians; funding may be used for a variety of civil legal needs	110	$31.7 million
Homelessness Prevention 3	One of several rounds of funding aimed at preventing homelessness through a variety of legal interventions, including eviction defense, foreclosure prevention, and legal services for issues that may precipitate homelessness	75	$20.4 million
Discretionary grants			
Bank grants	Legal services intended to prevent foreclosure and for community redevelopment legal assistance	10	$2.3 million
California Housing Finance Agency (CalHFA) grants	Legal services intended to prevent foreclosure or displacement.	11	$4.0 million
Community Assistance, Recovery, and Empowerment (CARE) Court	Funding for legal aid providers to represent clients who are the subject of a CARE Court petition (The CARE Act creates a new court program where adults with qualifying, severe mental health issues can access behavioral health care, stabilization medication, housing, and other community services.)	0	N/A
Consumer debt grants	Civil legal services for consumer debt matters stemming from the COVID-19 pandemic	20	$4.75 million
Homelessness Prevention 3	One of several rounds of funding aimed at preventing homelessness through a variety of legal interventions, including eviction defense, foreclosure prevention, and legal services for issues that may precipitate homelessness	23	$6.9 million
Homelessness Prevention 4	Subsequent round of homelessness prevention funding (see above)	46	$8.4 million
Homelessness Prevention 4 Supplemental	Subsequent round of homelessness prevention funding (see above)	17	$1.6 million
Legal Aid Leaders Fellowship	Law student summer fellowships for the purpose of encouraging and supporting law students to pursue a career in legal aid	34	$751,767
Partnership	Joint projects between courts and legal services programs offering assistance to self-represented litigants at or near the courthouse	37	$ 4.7 million
TOTAL			**$180.8 million**

APPENDIX 14

IOLTA Grants

For over 40 years, the interest earned on IOLTA accounts has been remitted to the State Bar to support grants to eligible legal services organizations. IOLTA accounts can only be housed in approved financial institutions certified by the State Bar to ensure compliance with the IOLTA statute (California Business and Professions Code sections 6210-6228).

How It Works
Funds are distributed based on a formula contained in statute (Business and Professions Code section 6216).

For direct service providers—also known as qualified legal services projects, or QLSPs—offering free civil legal aid in California, the formula distributes 85 percent of the funds on a by-county basis based on the number of indigent persons living at or below 125 percent of the federal poverty level in each county. Organizations providing services in a particular county then receive a pro rata share of the funds available based on their proportion of expenditures on free civil legal services in the prior fiscal year compared to other organizations in the county.

The remaining 15 percent of the funds are distributed to support centers: organizations that operate statewide to provide free legal training, legal technical assistance, and advocacy support to the organizations that directly serve indigent persons. The 15 percent is divided equally among all eligible support centers.

Other funding sources included in IOLTA grants are Justice Gap Fund donations, voluntary contributions made as part of attorney licensing fee payments, grant repayments, investment income, and tax intercept funds; IOLTA revenue makes up the largest share of the grant fund. Table 2 provides more details regarding these various funding components.

Type	Description
Interest on Lawyers' Trust Accounts	The primary source of funding for IOLTA grants is based on interest remitted to the State Bar from client trust accounts.
Justice Gap Fund donations, including licensee fee donations	A suggested donation amount of $100 is included in California attorneys' annual licensing fee statements, but attorneys can adjust or eliminate this fee from their statement. Donations are also accepted from the public or as cy pres. A $45 fee is included in California attorneys' annual licensing fee statements to support services provided by State Bar grantees, but attorneys can deduct this fee from their statement. In 2024, $40 of the fee supported IOLTA grants (the other $5 supported law student fellowships). Beginning in 2025, $10 of the $45 will go toward law student fellowships until January 2030.
Grant repayments	Unspent IOLTA and/or EAF funds are returned to the State Bar at the end of the grant period and held for redistribution in the next cycle.
Investment income	The State Bar deposits some of its IOLTA funds that are not required for immediate use in interest-bearing accounts. The interest is then added to the funds available for distribution as IOLTA grants.
Tax intercept funds	The California Franchise Tax Board manages a collections program for unpaid amounts owed to the State Bar. Funds received through this program are designated for awards to legal services programs under Business and Professions Code section 6034.

APPENDIX 15

Equal Access Fund Statistics

As part of its agreement with the Judicial Council to administer EAF funds, the State Bar collects data on the use of EAF funds, including how many individuals were served, what level and type of services they received, and what outcome resulted from the services (if known). The 101 organizations that received EAF funds in 2023 reported the following:

- Staffing: 1,174 staff were hired or retained, with over half (53 percent) being legal aid attorneys.
- Direct legal assistance: 28,675 low-income Californians received services where an attorney–client relationship was established.
- Nonrepresentational services: 83,444 low-income Californians were helped through hotline calls, self-help clinics, educational workshops and trainings, and outreach events.
- Case outcomes: There were 29,597 case outcomes, mostly related to housing, immigration, and domestic violence.
- Financial impact: Over $23.8 million was recovered for clients through lump-sum awards, settlements, or monthly benefits, and clients saved $5.4 million through the reduction or elimination of amounts that clients were alleged to have owed or would have owed to creditors if found liable.

APPENDIX 16

Discretionary Grants

State Bar Discretionary Grants

In 2024, the State Bar distributed three formula and eight discretionary grants, disbursing $180.8 million total to 110 legal aid organizations.[110] Discretionary grants make up almost 30 percent of the grant funding disbursed in 2024 ($53.7 million). Some discretionary grants, such as Partnership Grants, are funded annually through the state budget, whereas others are established through a one-time or limited funding source. Some grants support service models that improve access to the legal system, while others attempt to ameliorate unmet needs in a particular issue area.

Bank Grants

As part of settlements with Bank of America and Citibank due to their actions during the subprime mortgage crisis of 2007–10, the United States Department of Justice chose the LSTFC to administer funds targeted toward foreclosure prevention and community redevelopment legal services. Several rounds of funding have supported a variety of projects since 2018.

California Housing Foreclosure Agency (CalHFA) Foreclosure Prevention Grants

This federally funded grant supports legal services organizations in providing foreclosure prevention and home retention legal services. It covers a broad range of services, from initial outreach and education to limited-scope document review and preparation, as well as full-court representation.

Consumer Debt Grants

Consumer debt grant awards, distributed by the Judicial Council and administered by the LSTFC, must be used to provide civil legal services related to consumer debt matters precipitated by the COVID-19 pandemic. Issues addressed can include debt collection, wage garnishment, or bank account levy defense; financial abuse related to consumer debt; protection against unfair debt collection practices; protection against unfair or predatory lending and consumer scams; credit reporting and credit discrimination; bankruptcy; and other debt matters including those related to student loan, auto loan, credit card, and medical debt.

110 Of the 110 organizations that received IOLTA and EAF grants, 89 (81 percent) received one or more additional grants from other State Bar funds. On average, organizations received four other State Bar grants. State Bar of California, "2024 Grant Awards."

Homelessness Prevention Grants

Since 2019, several iterations of homelessness prevention (HP) funding, which primarily comes from EAF grants, have been distributed, seeking to counter California's housing affordability crisis and rising income inequality, among other factors, that are causing low-income Californians to lose their homes. In response, HP competitive grants fund organizations that provide "eviction defense, other tenant defense assistance in landlord–tenant rental disputes, or services to prevent foreclosure for homeowners, including pre-eviction and eviction legal services; counseling, advice, and consultation; mediation; training; renter education; and representation; and legal services to improve habitability; increasing affordable housing; ensuring receipt of eligible income or benefits to improve housing stability; legal help for persons displaced because of domestic violence; and homelessness prevention."[111]

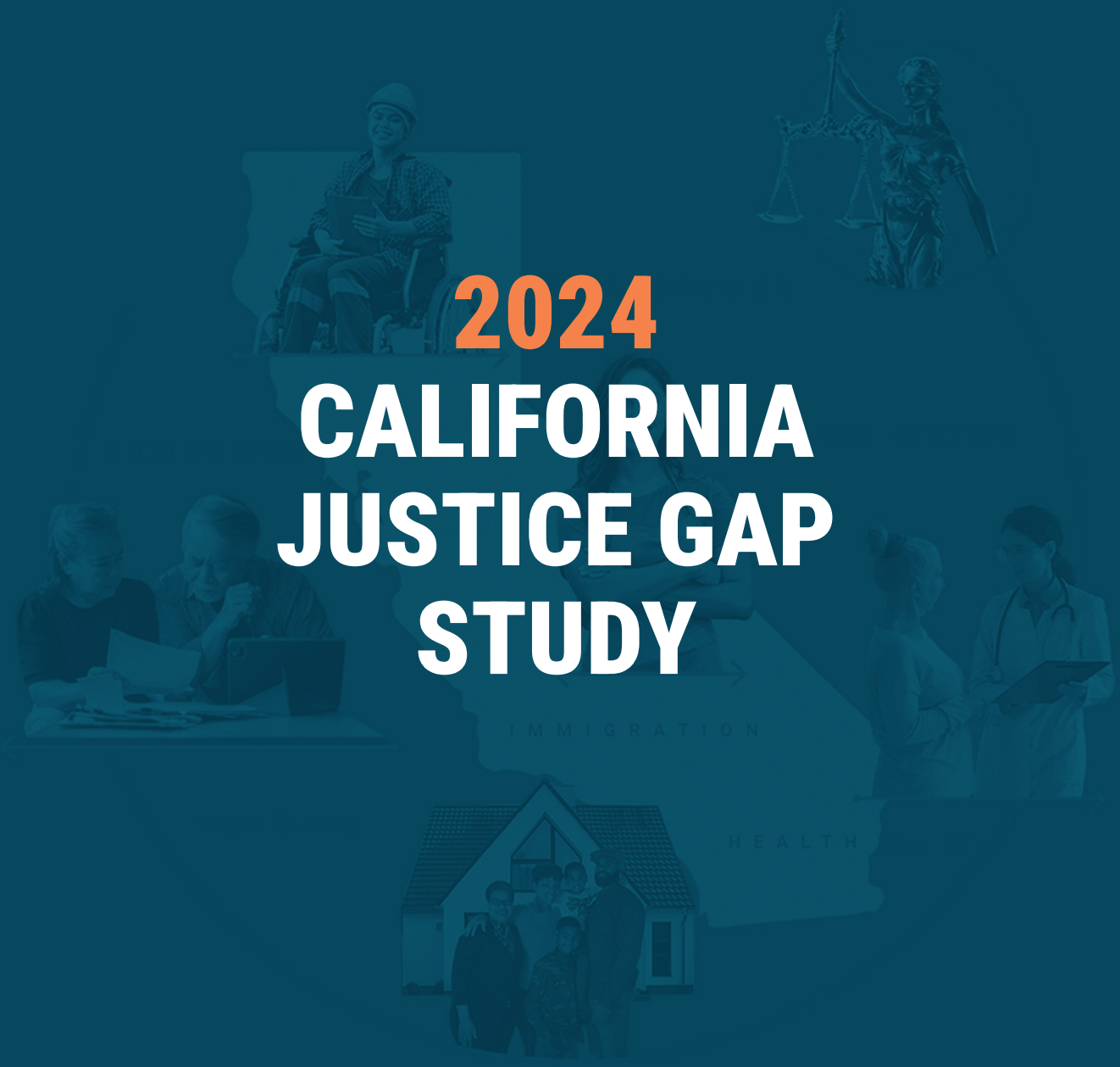
Partnership Grants

The State Budget Act established Partnership Grants in 1999 as discretionary grants for joint projects between courts and legal service programs to provide legal assistance at or near courthouses to self-represented litigants. Ten percent of the EAF funds included in the Judicial Council's budget each year are designated for use as Partnership Grants. However, unlike the EAF and IOLTA grants that are distributed to IOLTA-eligible organizations through a statutory formula based on qualified and county expenditures, Partnership Grants are awarded through a competitive process managed by the LSTFC. Successful proposals should demonstrate the need to be met through these services. Providing services at or near the courthouse for this client population improves access to justice by reducing the need to seek services elsewhere to address the legal issue.

Legal Aid Leaders Fellowship Grants

These grants support the pipeline for law students interested in pursuing a career in legal aid through paid summer fellowships with legal aid organizations. The fellowships aim to provide mentorship, skills development, and networking opportunities for law students. A $45 fee is included in California attorneys' annual licensing fee statement to support services provided by State Bar grantees, but attorneys can deduct this fee from their statement. In 2024, $40 of the fee supported IOLTA grants, and the other $5 supported the Legal Aid Leaders Fellowships. Beginning in 2025, $10 of the $45 will go toward Legal Aid Leaders Fellowships until January 2030.

111 See the Budget Act of 2021, AB 164 (Ting, Ch. 84).



2024 CALIFORNIA JUSTICE GAP STUDY

The State Bar of California